

MASONIC JURISPRUDENCE

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I. THE DATA OF MASONIC JURISPRUDENCE

At the outset we may well ask ourselves why do we say Masonic Jurisprudence? Why not simply Masonic Law? Is there a science of Masonic law as distinct from Masonic law itself? For in its original and etymological meaning and in the best usage, jurisprudence means the science of law. It is true there are two other uses of the term. The French use it to mean the course of decision in the courts as contrasted on the one hand with legislation and on the other hand with doctrine or the consensus of opinion of learned writers and commentators. To some extent this French usage has been received with us, particularly in the phrase "equity jurisprudence," signifying the course of decision in Anglo-American courts of equity, which has gained currency through the classical work of Judge Story. But it must be obvious that Masons do not employ the word in this sense. Although the course of decision in Masonic tribunals in the form of rulings of the Grand Masters and action of Grand Lodges thereon and of review of trials in or by Grand Lodges, is an important form of Masonic law; it furnishes but a part, and relatively a modern part, of the materials of what we are wont to style Masonic jurisprudence.

By a not unnatural transition from the French use of the term it has come to be used also chiefly in this country, simply as a polysyllabic synonym for law. Medical jurisprudence, for the forensic applications of medicine, has much vogue. Dental jurisprudence for the law of interest to dentists, engineering jurisprudence for the law of interest to engineers, architectural jurisprudence for the law of interest to architects, are heard occasionally. These seem quite indefensible. But even if they were not to be criticized, they would not warrant Masonic jurisprudence, for the latter term calls to mind not that part of the general law of the land which has special interest for the Mason, but the internal law of the fraternity itself. We come back, therefore, to our question whether Masonic jurisprudence is simply a grandiose name for Masonic law or whether, on the other hand, there is a science of Masonic law distinct from the law of each Masonic jurisdiction? Is there, in other words, an organized body of knowledge above and behind each particular local Masonic law upon which the latter rests as fully and truly as the particular legal rules of one of our commonwealths rest upon the principles of general legal science and the principles of Anglo-American legal tradition? For the moment I shall assume that there is, and my purpose in this course will be, not to expound dogmatically the rules of Masonic law which obtain here or elsewhere, but to show, if I may, that there is a science of Masonic law, to examine its material and its methods, and to set forth its principles.

In studying the law of politically organized society we say that it may be expounded dogmatically, that is, the content and application of its several rules and principles may be investigated and set forth, or it may be studied by one of the methods of jurisprudence — analytical, historical, or philosophical. In truth dogmatic study is of little value except as it makes use of and rests upon these methods of legal science. They justify themselves in the end by making for effective understanding and criticism and improvement of the law of each state. But they are methods of legal science generally, while the dogmatic method is applicable not to jurisprudence but to a particular body of law. We may study a particular body of law analytically, that is, we may investigate the structure, subject matter and rules of a legal system in order to reach by analysis the principles and theories which it logically presupposes. As a method of jurisprudence, however, the analytical method is comparative. It involves a comparative study of the purposes, methods and ideas common to developed systems of law by analysis of such systems and of their doctrines and institutions in their matured forms. Again, a particular body of law may be studied historically. That is, investigation may be made of the historical origin and development of the legal system and of its institutions and doctrines, looking to the past of the law to disclose the principles of the law of today. But here also, as a method of jurisprudence the historical method must be comparative. It involves a comparative study of the origin and development of law, of legal systems, and of particular doctrines and institutions in order to draw therefrom

universal principles of legal science. Finally, a particular body of law may be studied philosophically. That is, investigation may be made of the philosophical bases of the institutions and doctrines of a legal system in order to reach its fundamental principles through philosophical speculation. When this method is pursued comparatively and the philosophical basis of law generally and of general legal institutions and universal legal doctrines is sought, in order to reach universal principles, the philosophical method becomes a method of jurisprudence. Formerly these three methods, the analytical, the historical and the philosophical, contended for the mastery. Today we recognize that no one of them is self-sufficient and that jurisprudence must employ each of them in order to achieve a well-rounded science.

If we apply these ideas to Masonic law, we may say that a dogmatic exposition of the law of any jurisdiction would, indeed, very likely be profitable. But it would be relatively of little value, certainly of little permanent value, unless it made use of and rested upon the analytical, the historical and the philosophical methods. Moreover these methods should be developed comparatively, as methods of a Masonic legal science, if they are to give their best results. On the other hand these methods are not pursued for their own sake. In the end they must justify themselves by making the law of each Masonic jurisdiction more scientific, better organized, more easy of comprehension and of application and more effective for the purposes for which it exists. Unless he can give us principles of systematization, of criticism and of improvement in those parts of our law which are subject to change, the jurist has no claim upon the attention of a craft of workmen.

Another preliminary question confronts us. How far are we justified in speaking of Masonic law? Is the body of rules to which we give that name law in any proper sense of the term? Are we warranted in applying to it the methods and in attaching to it the ideas which are appropriate when treating of the law of politically organized society?

There are three common uses of the term "law": (1) Law as used in the natural and physical sciences; (2) natural law or law of nature as the term has been used by writers on ethics, politics and the philosophy of law; (3) law in the juridical sense. In the sciences, law is used to mean deductions from human experience of the course of events. Thus the law of gravitation is a record of human observation and experience of the manner in which bodies which are free to move do in fact move toward one another. Similarly Grimm's law in philology is a record of the observations of philologists as to the manner in which consonantal changes have taken place in the several Aryan languages. By natural law ethical, philosophical and political writers mean the principles which philosophy and ethics discover as those which should govern human action and the adjustment of human relations, and hence as those with respect to which obligatory rules of human conduct ought to be framed. Law in the juridical sense is said to be the body of rules, principles and standards recognized or enforced by public or regular tribunals in the administration of justice. Obviously there is an idea in common here, namely, the idea of a rule or principle, underlying a sequence of events, whether natural or moral, or judicial. In this wide sense, therefore, we may speak of the rules or principles which underly a sequence of events in a fraternal organization as law, just as we should so style the rules or principles underlying a sequence of events in a political society. But this wide use of the term law has been the subject of much objection and much dispute and we may put ourselves on firmer ground by looking at certain analogies between the rules which govern the decision of controversies and the adjustment of relations in a politically organized society and those which govern disputes and adjust relations in religious organizations and in fraternal organizations.

At bottom we must rest the whole structure of state and law upon the hard fundamental fact that in a finite world, human demands are infinite. If there were enough material goods to go around and enough room so that each of us might move in the widest orbit his fancy could picture or his desires could dictate without coming into collision with his fellow men, we should not need any elaborate system of balancing conflicting interests nor any elaborate machinery for putting into effect the standards for delimiting and enforcing interests which result from such balancing. Unhappily the material goods of existence do not suffice to give to each everything which he may

claim or which he does claim. Hence to conserve the values of life and to eliminate waste men organize themselves and organize or invent rules and standards and principles by which to eliminate waste and make the available stock of values go as far as possible. In the beginning these organizations are simply groups of kindred. Presently religious and maternal organizations develop. Subsequently political organizations arise. In time trade and professional associations are added. All these seek in one way or another to secure to men values which might otherwise be dissipated. They have their justification in the necessity of conserving what would otherwise be lost in the struggle of individuals to satisfy infinite claims upon a limited store. Accordingly, if we look for a moment at the state, we see that it eliminates waste by means of the law in several ways. For one thing it furnishes a rule of decision in case of dispute and thus obviates resort to private war when controversies arise. One has only to consider what happens today in case of an industrial dispute in order to see what this means.

In an ordinary dispute between man and man today we have a measure of conduct which is ascertainable within reasonable limits in advance. If the dispute becomes acute, one party or the other may summon his adversary before a public tribunal and may have the dispute adjudicated upon the basis of settled rules, according to a settled procedure, and with reference to settled modes of redress. When the judgment is pronounced, it is not optional with the defeated party to adhere to it or not. The whole power of the state is behind it and the force of organized society may be invoked to carry it out. In an industrial dispute on the other hand, we have no clear measure of conduct. Each party is referred to his individual sense of fairness and to the general sense of fairness of the public at large. But in a highly diversified community in which groups and classes with apparently divergent interests understand each other none too well and have conflicting ideas of justice, general public opinion is seldom sufficiently definite and consistent to serve as a restraint upon the partisan notions of justice entertained by the contending parties and hence is left to be the judge of its own case. With no clear predetermined measure of adjustment of such controversies, with no settled mode of procedure, with no settled mode of redress and no strong, permanent tribunal, backed by the moral sense of the community, long tradition, and the force of the state, to pronounce and give effect to a judgment, there is no way to satisfy or to coerce the disputants and in practice, as like as not, the interests of each and the interests of society suffer equally. Society struggles to maintain its interest in the general security and to prevent waste under such circumstances by seeking peace at whatever sacrifice. It is not a question of equal and exact justice. The paramount demands of peace and good order are to be met first. The policy is not "let justice be done though the heavens fall," but "peace at any price." Hence society endeavors to put pressure upon the disputants, directly, indirectly, openly or covertly, to submit to arbitration and to abide the award. A public service company may be threatened with forfeiture of franchise. A private owner may be threatened with extra-legal sequestration of his property. Both parties may be threatened with a report as to the causes of the dispute and the issues involved to be made public after an official inquiry. Press, pulpit and platform may exhort and rebuke. Thus in one way or another a compromise or an arbitration may be brought about. But when such a result has been achieved, no guide has been provided for the next dispute. No precedent has resulted. Nothing has been accomplished beyond averting or terminating a condition of private war in that one case. The whole process is crude and wasteful. Every time that this happens we act over again the inception of law. The Roman magistrate who stepped between the contending litigants and called out, "Let go, both of you," the praetor who pronounced the interdict, "I forbid that violence take place," and the indirect devices whereby a case for arbitration was formulated, not upon direct statement of their claims by the parties but through indirectly inducing or coercing a reference or an arbitration, testify to a general condition of which the special condition that obtains in a modern industrial dispute is perhaps the last remnant. By furnishing a rule for decision and by furnishing a guide to conduct the law enables society to reconcile conflicting interests, to conserve values and to eliminate waste.

This same problem of reconciling conflicting interests, of conserving values and of eliminating waste arises in every group — in religious and fraternal organizations no less than in political organizations. And it is met in the same way. By slow and painful development of customs through experience, followed by deliberate formulation of

rules invented for the purpose, men select out of the great mass of possible claims those which seem to call most urgently for security, define them, weigh them against other recognized interests and devise means for giving them effect. This process of recognizing, delimiting and securing interests when carried on by a political society is called lawmaking and the rules and standards of conduct and rules and principles of decision thereby set up are called law. In like manner the rules and standards of conduct and the rules and principles of decision developed or devised to secure interests and conserve values in the universal medieval church are called the canon law. No less justly may we apply to the rules and standards of conduct and the rules and principles of decision evolved or devised to secure interests and conserve values in our universal fraternal organization the name of Masonic law. For if it is said that we cannot enforce our law as the state enforces its law — that the sheriff and his posse looms in the background of the latter while the former is but hortatory — the answer must be that our law has behind it the same sanction that was behind the law of the medieval church, namely, excommunication and that this is essentially nothing else than the sanction of the earlier stages of the law of politically organized society — namely, outlawry. The group in each case casts out the individual who, through defiance of its law threatens a waste of the values which it seeks to secure.

Assuming, then, that we are justified in speaking of Masonic law, what are the component parts of our Masonic legal system; what are the jural materials with which the Masonic lawyer must work? I venture to distinguish three types of rules: (1) The landmarks; (2) the Masonic common law; (3) Masonic legislation. I cannot deny that in so classifying the jural materials of Masonry I am influenced by our Anglo-American distinction of constitutional rules, common law and legislation. And one should not turn to such an analogy hastily or unadvisedly. For I shall endeavor to show in another connection that Masonic jurisprudence has suffered in this country from overzealous attempts to mould our law by the analogies of the political law of the time and place and from the hasty assumption that our American legal and political institutions might be relied upon to furnish principles of law for a universal fraternity. Nevertheless the craft has engaged the hearty service of great lawyers for at least two centuries and the revival from which we date the Masonry of today took place in a time and in a country in which certain legal and political ideas were universally entertained and were almost taken to inhere in nature.

Hence we have more than analogy — we have, if not a causal relation, at least a relation of great influence.

Presupposing this three-fold division, we have first, the landmarks, a small not clearly defined body of fundamentals which are beyond reach of change. They are the prescriptive or unwritten constitution (using constitution in the purely American sense) by which every thing must be judged ultimately and to which we must all conform. Second, we have Masonic common law — the body of tradition and doctrine, which falling short of the sanctity and authority of the landmarks, nevertheless is of such long standing, and so universal, and so well attested, that we should hesitate to depart from it and are perforce wont to rely upon it whether to apply our own law or to appreciate the law of our neighbors.

These first two elements of Masonic law rest in tradition and in doctrinal writing. They take the form of: (a) Tradition — the mode of conducting Masonic affairs which has been handed down from master to master, from lodge to lodge for centuries and embodies the experience of countless sincere, zealous, well-informed brothers; (b) treatises, of which Oliver's *Institutes of Masonic Jurisprudence* and Mackey's *Masonic Jurisprudence* are the best types; (c) decisions of Grand Masters and review thereof by Grand Lodges, recorded in the published proceedings of Grand Lodges, chiefly in America; and (d) reports of the committees on correspondence of our American Grand Lodges, in which the decisions in other jurisdictions are reviewed and criticized and a comparative and universal element is introduced which is of the highest value to the Masonic jurist. These committees on correspondence have been much kicked at and it cannot be denied that the work of some of them at times has been crude. Yet for the present purpose their work has been invaluable. No one who has studied Masonic jurisprudence attentively can fail to testify to the unifying force exerted by these committees. The stimulus of their criticism, even when ill directed has made our local Masonic jurists pause to think of the rest of the Masonic world; it has exerted the

scientific influence which is always involved in comparison; it has worked everywhere for universality in our welter of independent local jurisdictions, each ambitious to make its own law.

The two main elements just enumerated make up the unwritten law of Masonry. A third element, namely, Grand Lodge legislation, of which our American Grand Lodges have been exceedingly prolific, constitutes the written law of Masonry.

A moment's digression is required to explain these terms. As soon as legal systems attain any degree of maturity, they are made up of two elements: A traditional element and an imperative element. Following the Roman jurists, the traditional element is generally known in jurisprudence by the name of the unwritten law — *jus non scriptum* — and the imperative element by the name of the written law — *jus scriptum*; not that we do not find the principles and rules of each today only in writings, but because the latter was deliberately and authoritatively reduced to writing at its inception.

Our main interest is in the unwritten law — the traditional element — which, except as local decisions interpret or apply local legislation, proceeds or purports to proceed on universal lines and is or seeks to be in principle permanent and general, even as legislation is ephemeral and local.

Let me develop this point a bit. As has been said, a developed legal system is made up of two elements, a traditional element and an enacted or imperative element. Although at present the balance in our law is shifting gradually to the side of the enacted element, the traditional element is still by far the more important. In the first instance, we must rely upon it to meet all new problems, for the legislator acts only after they attract attention. But even after the legislator has acted, it is seldom if ever that his foresight extends to all the details of his problem or that he is able to do more than provide a broad, if not a crude outline. Hence even in the field of the enacted law, the traditional element of the legal system plays a chief part. We must rely upon it to fill the gaps in legislation, to develop the principles introduced by legislation and to interpret them. Let us not forget that so-called interpretation is not merely ascertainment of the legislative intent. If it were, it would be the easiest instead of the most difficult of judicial tasks. Where the legislator has had an intent and has sought to express it, there is seldom a question of interpretation. The difficulties arise in the myriad cases with respect to which the law maker had no intention because he had never thought of them — indeed perhaps he could never have thought of them. Here under the guise of interpretation the court, willing or unwilling, must to some extent make the law, and our security that it will be made as law and not as arbitrary rule lies in the judicial and juristic tradition from which the materials of judicial law-making are derived. Accordingly the traditional element of the legal system is and must be used even in an age of copious legislation, to supplement, round out and develop the enacted element, and in the end it usually swallows up the latter and incorporates its results in the body of tradition. Moreover a large field is always unappropriated by enactment, and here the traditional element is supreme. In this part of the law fundamental ideas change slowly. The alterations wrought here and there by legislation, not always consistent with one another, do not produce a general advance. Indeed they may be held back at times in the interests, real or supposed, of uniformity and consistency, through the influence of the traditional element. It is obvious, therefore, that above all else the condition of the law depends upon the condition of this element of the legal system.

Another feature of the twofold composition of developed legal systems is of no less importance. The traditional element rests at first upon the traditional mode of advising litigants on the part of those upon whom tribunals rely for guidance or upon the usage and practice of tribunals. Later it rests upon juristic science and the habitual modes of thought of a learned profession. Thus the ultimate basis of its authority is reason and conformity to ideals of right. On the other hand the imperative element rests upon enactment. It rests upon the expressed will of the sovereign. The basis of its authority is the power of the state.

The parallel with Masonic law is exact. With us, the most important of our jural materials are in the traditional element.

First, we must rely upon the traditional element to meet all new problems, and the normal course of growth in Masonic law is: (1) A new application of a traditional principle by the decision of a Grand Master; (2) review thereof in a Grand Lodge; (3) comment thereon by the various committees on correspondence; (4) the growth of a consensus of opinion on the subject among Masonic jurists; and (5) incorporation in some text book of Masonic law or in declaratory legislation. Secondly, we must rely on the traditional element to fill all gaps in Masonic legislation. Thirdly, we must rely on it to interpret legislation and to develop legislation. Fourthly, above all, as we are a universal institution and ought to legislate cautiously, we must rely on the traditional element to furnish the principles of legislation and a critique of legislation. We are not like a political organization — mere will has no place in any theory of Masonic law-making.

Accordingly it is of the first importance to have a theory of the unwritten law of Masonry and an organized, systematic science of this traditional element of our law — in other words, to have a science of Masonic jurisprudence.

What are the data of this science? What are the materials which we may use in constructing it?

I take it they are five: (1) History; (2) general Masonic tradition; (3) philosophy; (4) logical (or systematic) construction on the basis of history, philosophy and tradition; and (5) authentic modern materials of Masonic common law.

Let me take these up in order. First as to history. Here there are two questions: (a) What materials does Masonic history furnish which are important for Masonic jurisprudence; (b) what is the function of history in Masonic jurisprudence — how and for what purpose should we use history in this connection? On such an occasion one can only speak summarily. In a few words, the historical materials which are important for the Masonic jurist seem to be five:

1. The manuscript constitutions of British Freemasons — a series of manuscripts the oldest of which go back to the fourteenth century, which are the foundation of authentic Masonic history. These are of especial importance on the subject of the landmarks. Thus, when we trace in the manuscripts the old charge to be true to God and holy church and the new charge of 1738 that if the Mason understands his art aright he will never be a stupid atheist, history reinforces the tradition contained in the master's obligation.
2. Seventeenth and eighteenth-century notices of English Masonry prior to 1717. From these materials we are able to see how Masons met and what they meant by a lodge prior to the rise of Grand-Lodge Masonry and are enabled to distinguish between the landmarks and the common law as to Masonic organization.
3. Old lodge records in England and Scotland. These also throw great light upon the organization of the Craft prior to 1717. When we find presidents and wardens and deacons as the highest officers of lodges, we see again what was from the beginning and what is simply common law.
4. Eighteenth-century writers who had or purported to have access to traditions current among Masons at and prior to the organization of the Grand Lodge of England in 1717 and to old manuscripts not now extant. Even if some or much of the information which they purport to give on the basis of such traditions and such manuscripts is apocryphal, it has entered into the stream of subsequent Masonic tradition and may not be overlooked.
5. Grand Lodge records, beginning in England in 1723, which show the settled practice of the formative period of Masonry as we know it today.

Of these five classes of historical materials, the fourth calls for some special notice. It is made up of three well-known books which have exerted an almost controlling influence upon our ideas of Masonic history and have largely determined Masonic tradition. These books are: Anderson's *Constitution* (1723, second edition 1738), Preston's *Illustrations* (1772) and Dermott's *Ahiman Rezon* (1756, second edition 1764). It would be out of place to attempt an appraisal of their historical value here. Moreover the thorough-going critique of Gould, which has definitely overthrown much which had long been accepted on the authority of these books has not wholly

destroyed their importance for Masonic jurisprudence. As Hobbes puts it, "authority not truth makes the law." It may well happen that historical mistakes may become fixed in the legal fabric. For example, Lord Coke very likely erred in much that he laid down in his Second Institute as to the history of our Anglo- American constitutional doctrine of the supremacy of law. Yet his writing is the foundation of our public law and his results have amply justified themselves. It is no fatal objection in practical affairs that the conclusions must sustain the premises. Hence if Anderson and Preston and Dermott cannot be vouched for landmarks, they must be read diligently in order to reach the sources of much of our Masonic common law.

Let us turn now to the other question, what are the uses of Masonic history? One use is to correct tradition, as for example, in the case of the apocryphal long list of royal and noble Grand Masters. Another is to hold philosophy in bounds, as for example, in the case of the controversy which raged once in one of our American Grand Lodges as to the wearing of white gloves, on the theory that gloves were unknown at the time of the building of the temple, or, again, in the rejection of the letter G on philosophical grounds by another of our Grand Lodges. Another use is to test doctrinal (systematic, logical) exposition, as in the case of Mackey's twenty-five landmarks. But this correction by history should not be pressed too far. It should not be used as the basis of rejecting settled Masonic common law, shown by universal practice since the end of the eighteenth century. For example, nothing is better settled than the doctrines of territorial jurisdiction in Craft Masonry and the impropriety of invasion of jurisdiction. If there are no landmarks here, there are settled principles of Masonic conflict of laws which are a part of the universal law of the Craft.

Our second main source of law is tradition. Today this is set forth in the form of doctrinal exposition and Grand-Lodge decision. Much of it is declared by Grand-Lodge legislation. It is of the highest value in fixing the principles of Masonic common law. But elsewhere it is dangerous. It must always be corrected by careful historical consideration of whether the tradition in question is authentic, immemorial and pure.

Our third main source of law is philosophy, that is, deduction from principles found by philosophical study of the ends and purpose of Masonry — for example, deduction from the principle of universality, from the principle of organization of moral sentiments of mankind, from the principle of furthering human civilization. It may be compared with the metaphysical method in jurisprudence which seeks to deduce all legal rules from or correct them by a fundamental principle of human freedom. Philosophy is chiefly useful as a check on Masonic history. For example, if one were to look only to history, he might make a strong argument that the dinner or banquet following the work on important occasions was a landmark. Certainly as far back as we have accounts of Masonic work we find the brethren sitting about the board in this way. But consideration of the purposes and ends of the order shows us at once that we have here but an incident of ordinary human social intercourse. So in the case of the objection to white gloves above referred to. The Masonic philosopher perceives at once that we have here a traditional symbol and that purely historical considerations cannot be suffered to prevail.

Our fourth main source of law is logical construction. It has the same place with us as juristic science has in the law of the state. It is of the first importance if the data are sound and are well used. Mackey's famous text book of Masonic jurisprudence (1859) is still the best example of the use of logical construction.

The fifth main source of Masonic law is to be found in authentic modern materials of Masonic customary law and in settled Masonic usage since the last half of the eighteenth century. Indeed the general principles of this settled usage have all but the force of landmarks. Thus Mackey recognizes: (1) Landmarks; (2) general laws or regulations; (3) local laws or regulations. Here the second is substantially what I call Masonic common law and the third what I call Masonic legislation. Mackey says of the second: "These are all those regulations that have been enacted by such bodies as had at the time universal jurisdiction. They operate, therefore, over the Craft wheresoever dispersed; and as the paramount bodies which enacted them have long ceased to exist, it would seem that they are unrepealable. It is generally agreed that these general or universal laws are to be found in the old constitutions or charges, so far as they were recognized and accepted by the Grand Lodge of England at the revival

in 1717 and adopted previous to the year 1726." This would receive Anderson's first edition without question as a conclusive exposition of the principles of the traditional element. Today it is clear that we cannot accept it. But the idea at the bottom of Mackey's system is sound.

I take it we must distinguish two things. (a) We may perceive certain settled principles adhered to by all regular and well-governed lodges since the last quarter of the eighteenth century. For example, with one exception it has always been recognized that at least three lodges are required to set up a Grand Lodge. But we must be cautious here. It will be noticed that Mackey assumes that fluidity is at an end by 1721. We cannot accept this proposition. We must recognize a great deal of fluidity till much later. But Masonry is not bound to retain forever the fluidity of the first half of the eighteenth century. (b) Next we must differentiate from the principles themselves the development of these principles (i) by logical deduction and juristic speculation, and (ii) by judicial empiricism in the decisions of Grand Masters and the review thereof by Grand Lodges.

The latter is almost wholly American and much of it is worthy to rank with the best achievements of legal development in any political organization. If the law of the medieval church became for a time the law of the world and gave ideas and doctrines to the law of the state which are valuable for all time, it is not at all impossible that our universal organization, coming much later to the work of law-making, may in its turn develop legal ideas of universal value and thus contribute indirectly to the furtherance of civilization while contributing directly thereto in its ordinary work.

***The Builder*, April 1917 Vol. 3 No. 4**

MASONIC JURISPRUDENCE

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I. THE LANDMARKS

By landmarks in Freemasonry we are generally supposed to mean certain universal, unalterable and unrepealable fundamentals which have existed from time immemorial and are so thoroughly a part of Masonry that no Masonic authority may derogate from them or do aught but maintain them. Using constitution in the American political sense, as I said in the first lecture, they may be said to be the prescriptive constitution of Freemasonry.

Not long ago it was a general article of Masonic belief that there were such landmarks. The charge to the Master Mason taken by our American monitors from Preston's *Illustrations*, seemed to say so. The first and second charges to the master in the installation service (numbered 10 and 11 in Webb's version) — also taken from Preston's *Illustrations* — seemed to say so. The books on Masonic jurisprudence in ordinary use and Masonic cyclopedias told us not only that there were landmarks but exactly what the landmarks were in great detail. Probably any master of an American lodge of a generation ago, who was reasonably well posted would have acquiesced in the confident dogmatism of Kipling's Junior Deacon, who "knewed the ancient landmarks" and "kep' 'em to a hair." Hence it may well shock many even now, to tell them that it is by no means certain that there are any landmarks at all — at least in the sense above defined. For myself, I think there are such landmarks. But I must confess the question is not so clear as to go without argument in view of the case which has been made to the contrary. Accordingly I conceive that there are two questions which the student of Masonic jurisprudence must investigate and determine: (1) Are there landmarks at all; (2) if so, what are the landmarks of the Craft? And in this investigation, as I conceive, he will find his path made more straight if he attends carefully to the distinction between the landmarks and the common law of Masonry, which I attempted to explain in my former lecture.

It is well to approach the question whether there are landmarks historically. The first use of the term appears to have been in Payne's "General Regulations," published with Anderson's *Constitutions* of 1723. Payne was the second Grand Master after the revival of 1717. If entirely authentic, these regulations, coming from one who took a prominent part in the revival, would be entitled to the very highest weight. But many believe that Anderson took some liberties with them, and if he did, of course to that extent the weight of the evidence is impaired. There

is no proof of such interpolation or tampering — only a suspicion of it. Hence in accord with what seem to me valid principles of criticism, I must decline to follow those who will never accept a statement of Anderson's, creditable in itself, without some corroboration, and shall accept Anderson's *Constitutions* on this point at their face value.

How then does Payne (or Anderson) use the term "landmark"? He says: "The Grand Lodge may make or alter regulations, provided the old landmarks be carefully preserved." It must be confessed this is not clear. Nearly all who have commented on the use of the term in Payne's Regulations, as reported by Anderson, have succeeded in so interpreting the text as to sustain their own views. Perhaps there could be no better proof that the text is thoroughly ambiguous. Three views as to what is meant seem to have support from the text.

One view is that Payne used the word landmark in the sense in which we now commonly understand it. This is consistent with the text and has in its favor the uniform belief of Masons of the last generation, the Prestonian charge to the Master Mason and the Prestonian installation ceremony. I should have added tradition, were I sure that the tradition could be shown to antedate the end of the eighteenth century, or indeed to be more than a result of the writings of Dr. Mackey, in combination with the charges just referred to. A second view is that Payne used the word landmark in the sense of the old traditional secrets of the operative Craft and hence that for use today the term can mean no more than a fundamental idea of secrecy. This interpretation is urged very plausibly by Bro. Hextall, P. Prov. G. M. of Derbyshire, in an excellent paper on the landmarks — entitled "The Old Landmarks of the Craft" — in the *Transactions of Quatuor Coronati Lodge*, vol. 25, p. 91.

A third view is that Anderson, finding the term in Payne's Regulations, where the word was used in an operative sense — for Payne undoubtedly used operative manuscripts — used it without inquiry into its exact meaning, and without troubling himself as to how far it had a concrete meaning, and so made it available as a convenient and euphonious term to which others might attach a meaning subsequently as Masonic law developed. This last view, which eminent authorities now urge, is a fair specimen of the uncharitable manner in which it is fashionable among Masonic scholars to treat the father of Masonic history. But it should be said that such a phenomenon would have an exact counterpart in the law of the land under which we live. Historians are now telling us of the "myth of Magna Carta," and it is undoubtedly true that the immemorial rights and privileges of Englishmen which our fathers asserted at the Revolution were at least chiefly the work of Sir Edward Coke in the seventeenth century and that he succeeded in finding warrant therefor in what we have since regarded as the charters of civil liberty. Nevertheless Coke was right in finding in these charters the basis for a fundamental scheme of individual rights. And may we not say that Mackey was equally right in insisting upon a scheme of Masonic jural fundamentals and finding warrant therefor in his books in the references to the landmarks, even if Payne and Anderson were not very clear what they meant by that word?

Next we may inquire how the term has been used since Anderson's *Constitutions*.

In 1775 Preston, in his *Illustrations of Masonry*, clearly uses the word landmarks as synonymous with established usages and customs of the Craft — in other words as meaning what I have called Masonic common law. This is indicated by the context in several places. But it is shown conclusively by two passages in which he expressly brackets "ancient landmarks" with "established usages and customs of the order" as being synonymous. He does this in referring to the ritual of the Master Mason's degree, which in each case he says preserves these ancient landmarks. Preston's *Illustrations of Masonry* was expressly sanctioned by the Grand Lodge of England. Hence we have eighteenth-century warrant for contending that every thing which is enjoined in the Master Mason's obligation is a landmark. But, if this means landmark in the sense of merely an established custom, we are no better off.

Perhaps one might argue that the Grand Lodge of England was more concerned with sanctioning the proposition that the Master's degree preserved ancient landmarks than with Preston's definition of a landmark! However this may be, it is manifest that here, as in the case of Anderson, there is very little basis for satisfactory argument.

Some further light is thrown on Preston's views by the charge to the Master Mason and the charges propounded to the Master at installation, as set forth in the *Illustrations of Masonry*. The former may well refer to the landmarks contained in the Master Mason's obligation. The proposition in the latter, however, suggests the idea of an unalterable prescriptive fundamental law. The Master elect is required to promise to "strictly conform to every edict of the Grand Lodge or General Assembly of Masons that is not subversive of the principles and groundwork of Masonry." Also he is required to testify "that it is not in the power of any man or body of men to make alterations or innovation in the body of Masonry." These principles, this groundwork, this body of Masonry, whether we use the term landmarks or not, convey the very idea which has become familiar to us by that name.

The next mention of landmarks is in Ashe's *Masonic Manual*, published in 1813. But Ashe simply copies from Preston.

In 1819 the Duke of Suffolk, G. M. of England, issued a circular in which he said: "It was his opinion that so long as the Master of the lodge observed exactly the landmarks of the Craft he was at liberty to give the lectures in the language best suited to the character of the lodge over which he presided." The context here indicates clearly that he meant simply the authorized ritual.

Next we find the term used by Dr. George Oliver in a sermon before the Provincial Grand Lodge of Lincolnshire in 1820. In this sermon Oliver tells us that our "ancient landmarks" have been handed down by oral tradition. But he does not suggest what they are nor does he tell us the nature of a landmark. Afterwards in 1846 Oliver published his well-known work in two large volumes entitled *Historical Landmarks of Freemasonry*. One will look in vain to this book, however, for any suggestion of Dr. Oliver's views on the matter we are now discussing. The book is an account of the history of the Craft, and the word landmark in the title is obviously used only in the figurative sense of important occurrences — as the phrase "beacon light," for example, is used in Lord's "Beacon Lights of History." Oliver does not use the term again till his *Symbol of Glory*, in 1850. In that book he asks the question: "What are the landmarks of Masonry, and to what do they refer" — in other words, the very thing we are now discussing. His answer is most disappointing. He begins by telling us that what landmarks are and what are landmarks "has never been clearly defined." He then explains that in his book, *Historical Landmarks*, just spoken of, he is speaking only of "the landmarks of the lectures," and adds — obviously referring to the sense in which we are now using the term — that there are other landmarks in the ancient institution of Freemasonry which have remained untouched in that publication, and it is not unanimously agreed to what they may be confined.

Next (1856) occurred the publication of Dr. Mackey's epoch-making exposition of the term and his well-known formulation of twenty-five landmarks. I shall return to these in another connection. But it is interesting to see the effect of this upon Oliver. In 1863, in his *Freemason's Treasury*, Oliver classifies the "Genuine landmarks of Freemasonry" into twelve classes, of which he enumerates some forty existing, and about a dozen others as obsolete (*nota bene*) or as spurious. But he admits that we "are grovelling in darkness" on the whole subject, and that "we have no actual criterion by which we may determine what is a landmark and what not." Nevertheless, Oliver's ideas were beginning to be fixed, as a result of Mackey's exposition, and it is significant that in 1862, Stephen Barton Wilson, a well-known English Masonic preceptor of that time, published an article in the *Freemason's Magazine* entitled "The Necessity of Maintaining the Ancient Landmarks of the Order" in which he takes landmarks to mean those laws of the Craft which are universal and irrevocable — the very sense which Mackey had adopted. After this, Mackey's definition of a landmark, his criteria of a landmark, and his exposition of the twenty-five landmarks obtained for a time universal acceptance. The whole was reprinted without comment in England in 1877 in Mackenzie's *Royal Masonic Cyclopaedia*. In 1878, Rev. Bro. Woodford, one of the best of the Masonic scholars of the time, questioned the details of Mackey's list, but without questioning his definition or his criteria. In the same way Lockwood, accepting the definition and the criteria, reduced Mackey's list of twenty-five to nineteen.

Presently Masonic scholars reopened the whole subject. Today three radically different views obtain. The first I should call the legal theory, the second the historical theory, the third the philosophical theory. The legal theory accepts Mackey's idea of a body of universal unalterable fundamental principles which are at the foundation of all Masonic law. But the tendency has been to reduce Mackey's list very considerably, although two of our jurisdictions greatly extend it. Nine American Grand Lodges tell us that the old charges contain the ancient landmarks. Six Grand Lodges have adopted statements of their own, varying from the seven of West Virginia and the noteworthy ten of New Jersey to the thirty-nine of Nevada and fifty-four of Kentucky. These declaratory enactments — exactly analogous to the attempts to reduce the fundamental rights of man to chapter and verse in the bills of rights in American constitutions — are highly significant for the study of Masonic common law, and deserve to be examined critically by one who would know the received doctrines of the traditional element in the Masonic legal system. But since the admirable report in New Jersey in 1903 and the careful examination of Mackey's list by Bro. George F. Moore in his paper in the *New Age* in 1911, it is quite futile to contend for the elaborate formations which are still so common. If, however, we distinguish between the landmarks and the common law, we may still believe that there are landmarks in Mackey's sense and may hope to formulate them so far as fundamental principles may be formulated in any organic institution.

The historical theory, proceeding upon the use of the word landmarks in our books, denies that there is such a thing as the legal theory assumes. The skeptic says, first, that down to the appearance of Mackey's *Masonic Jurisprudence* "landmark" was a term floating about in Masonic writing without any definite meaning. It had come down from the operative Craft where it had meant trade secrets, and had been used loosely for "traditions" or for "authorized ritual" or for "significant historical occurrences," and Oliver had even talked of "obsolete landmarks." Second, he says, the definition of a landmark, the criteria of a landmark, and the fixed landmarks generally received in England and America from 1860 on, come from Mackey. Bro. Hextall says: "It was more because Mackey's list purported to fill an obvious gap than from any signal claims it possessed that it obtained a rapid circulation and found a ready acceptance." Perhaps this is too strong. But it must be admitted that dogmatism with respect to the landmarks cannot be found anywhere in Masonic writings prior to Mackey and that our present views have very largely been formed — even if not wholly formed — by the influence of his writings.

Granting the force of the skeptic's argument, however, it does not seem to me that the essential achievement of Mackey's book is overthrown. I have already shown that a notion of unalterable, fundamental principles and groundwork and of a "body of Masonry" beyond the reach of innovation can be traced from the revival to the present. This is the important point. To seize upon the term landmark, floating about in Masonic literature, and apply it to this fundamental law was a happy stroke. Even if landmark had meant many other things, there was warrant for this use in Payne's Regulations, the name was an apt one, and the institution was a reality in Masonry, whatever its name. The second theory seems to me to go too much upon the use of the word landmark and not enough upon the thing itself.

Under the influence of the second theory, and in a laudable desire to save a useful word, a philosophical theory has been urged which applies the term to a few fundamental ethical or philosophical or religious tenets which may be put at the basis of the Masonic institution. Thus, Bro. Newton in a note to the [valuable paper](#) of Bro. Shepherd in Volume One of *The Builder*, proposes as a statement of the landmarks: "The fatherhood of God, the brotherhood of man, the moral law, the Golden Rule, and the hope of a life everlasting." This is admirable of its kind. The Masonic lawyer, however, must call for some legal propositions. Either we have a fundamental law or we have not. If we have, whether it be called the landmarks or something else is no great matter. But the settled usage of England and America since Mackey wrote ought to be decisive so long as no other meaning of the term can make a better title.

Next then, let us take up Mackey's theory of the landmarks, and first his definition. He says the landmarks are "those ancient and universal customs of the order, which either gradually grew into operation as rules of action,

or if at once enacted by any competent authority, were enacted at a period so remote that no account of their origin is to be found in the records of history. Both the enactors and the time of the enactment have passed away from the record, and the landmarks are therefore of higher authority than memory or history can reach." In reading this we must bear in mind that it was written in 1856, before the rise of modern Masonic history and before the rise of modern ideas in legal science in the United States. Hence it is influenced by certain uncritical ideas of Masonic history and by some ideas as to the making of customary law reminiscent of Hale's *History of the Common Law*, to which some lawyer may have directly or indirectly referred him. But we may reject these incidental points and the essential theory will remain unaffected — the theory of a body of immemorially recognized fundamentals which give to the Masonic order, if one may say so, its Masonic character, and may not be altered without taking away that character. It is true Mackey's list of landmarks goes beyond this. But it goes beyond his definition as he puts it; and the reason is to be found in his failure to distinguish between the landmarks and the common law.

Next Mackey lays down three requisites or characteristics of a landmark — (1) immemorial antiquity; (2) universality; (3) absolute irrevocability and immutability. He says:

"It must have existed from time whereof the memory of man runneth not to the contrary. Its antiquity is an essential element. Were it possible for all the Masonic authorities at the present day to unite in one universal congress and with the most perfect unanimity to adopt any new regulation, although such regulation would while it remained unrepealed be obligatory on the whole Craft, yet it would not be a landmark. It would have the character of universality, it is true, but it would be wanting in that of antiquity." As to the third point, he says:

"As the congress to which I have just alluded would not have the power to enact a landmark, so neither would it have the prerogative of abolishing one. The landmarks of the order, like the laws of the Medes and the Persians, can suffer no change. What they were centuries ago, they still remain and must so continue in force till Masonry itself shall cease to exist."

Let me pause here to suggest a point to the skeptics — for though I am not one of them, I think we must recognize the full force of their case. The point as to the regulation unanimously adopted by the universal Masonic congress is palpably taken from one of the stock illustrations of American law books. The legal futility of a petition of all the electors unanimously praying for a law counter to the constitution or of a resolution of a meeting of all the electors unanimously proclaiming such a law is a familiar proposition to the American constitutional lawyer. One cannot doubt that Mackey had in mind the analogy of our American legal and political institutions. Yet to show this by no means refutes Mackey's theory of a fundamental Masonic law. The idea of an unwritten fundamental law existing from time immemorial is characteristic of the Middle Ages and in another form prevailed in English thought at the time of the Masonic revival. To the Germanic peoples who came into western Europe and founded our modern states, the Roman idea of law as the will of the sovereign was wholly alien. They thought of law as something above human control, and of law-making as a search for the justice and truth of the Creator. In the words of Bracton, the king ruled under God and the law. To Coke in the seventeenth century even Parliament was under the law so that if it were to enact a statute "against common right and reason, or repugnant, or impossible to be performed" the common law would hold that statute void. In the reign of Henry VIII the English Court of Common Pleas actually did hold a statute void which attempted to make the king a parson without the consent of the head of the church and thus interfered with the fundamental distinction between the spiritual and the temporal. In 1701, Lord Holt, Lord Chief Justice of England, repeated Coke's doctrine and asserted that there were limitations upon the power of Parliament founded on natural principles of right and justice. This idea took form in America in our bills of rights and our constitutional law. But it is not at all distinctively American. On the contrary the accidents of legal history preserved and developed the English medieval idea with us although it died in the eighteenth century at home. In the whole period of Masonry in England prior to the revival and in the formative period after the revival, this idea of an unwritten, immemorial fundamental law would have been accepted in any connection in which men spoke or thought of law at all.

When presently I come to the subject of Masonic common law I shall have to take up Mackey's twenty-five landmarks in detail. For I take it his list may I still stand in its main lines as an exposition of our common law. But are there any of his twenty-five which we may fairly accept as landmarks? Perhaps it is presumptuous, after the labors of Lockwood, of Robbins, of the New Jersey committee, and of Moore to venture a formulation of the landmarks simply on my own authority. But the matter is too important to be allowed to rest in its present condition without some attempt to set off what is fundamental on the one hand and what is but established custom on the other hand. Moreover there is less disagreement at bottom than appears upon the surface. To a large extent the difficulties besetting this subject are due to reluctance on the one hand to reject established usages and on the other hand to admit those usages to the position of universality and unalterability involved in putting them in the category of landmarks. When, therefore, we recognize an important category of established customary law, not indeed wholly unalterable, but entitled to the highest respect and standing for the traditional element of our Masonic legal system, we are able at once to dispose of many subjects of controversy and to reduce the matter to a footing that eliminates the most serious features of disagreement. For myself, I should recognize seven landmarks, which might be put summarily as follows: (1) Belief in God; (2) belief in the persistence of personality; (3) a "book of the law" as an indispensable part of the furniture of every lodge; (4) the legend of the third degree; (5) secrecy; (6) the symbolism of the operative art; and (7) that a Mason must be a man, free born, and of age. Two more might be added, namely, the government of the lodge by master and wardens and the right of a Mason in good standing to visit. But these seem doubtful to me, and doubt is a sufficient warrant for referring them to the category of common law.

"Belief in God, the G.A.O.T.U.," says Bro. Moore, "is the first landmark of Freemasonry." Doubtless Mackey would have agreed, though in his list it bears the number nineteen. For this landmark we may vouch:

1. The testimony of the old charges in which invariably and from the very beginning there is the injunction to be true to God and holy church. Anderson's change, which produced so much dispute, was directed to the latter clause. As the medieval church was taken to be universal, the addition was natural. In eighteenth-century England there was a manifest difficulty. But the idea of God is universal and there seems no warrant for rejecting the whole of the ancient injunction.
2. The resolution of the Grand Lodge of England that the Master Mason's obligation contains the ancient landmarks.
3. The religious character of primitive secret societies and all societies and fraternities founded thereon.
4. The consensus of Masonic philosophers as to the objects and purposes of the fraternity.
5. The consensus of Anglo-American Masons, in the wake of the Grand Lodge of England, in ceasing to recognize the Grand Orient of France after the change in its constitutions made in 1877.

The second landmark, as I have put them, is number twenty in Mackey's list. He says:

"Subsidiary to this belief in God, as a landmark of the order, is the belief in a resurrection to a future life. This landmark is not so positively impressed on the candidate by exact words as the preceding; but the doctrine is taught by very plain implication, and runs through the whole symbolism of the order. To believe in Masonry and not to believe in a resurrection would be an absurd anomaly, which could only be excused by the reflection that he who thus confounded his skepticism was so ignorant of the meaning of both theories as to have no foundation for his knowledge of either."

Perhaps Mackey's meaning here is less dogmatic than his words. Perhaps any religious doctrine of persistence of personality after death would satisfy his true meaning, so that the Buddhist doctrine of transmigration and ultimate Nirvana would meet Masonic requirements. Certainly it is true that our whole symbolism from the entrance naked and defenseless to the legend of the third degree is based on this idea of persistence of personality. Moreover this same symbolism is universal in ancient rites and primitive secret societies.

True in the most primitive ones it signifies only the passing of the child and the birth of the man. Yet even here the symbolism is significant. I see no reason to reject this landmark.

We come now to an alleged landmark about which a great controversy still rages. I have put it third. In Mackey's list it is number twenty-one. I will first give Mackey's own words:

"It is a landmark that a 'book of the law' shall constitute an indispensable part of the furniture of every lodge. I say advisedly book of the law because it is not absolutely required that everywhere the Old and New Testaments shall be used. The book of the law is that volume which, by the religion of the country, is believed to contain the revealed will of the Grand Architect of the Universe. Hence in all lodges in Christian countries, the book of the law is composed of the Old and New Testaments. In a country where Judaism was the prevailing faith, the old testament alone would be sufficient; and in Mohammedan countries and among Mohammedan Masons, the Koran might be substituted."

Perhaps the point most open to criticism here is that it must be the book accepted as the word of God by the religion of the country. For example, in India, lodges in which Englishmen sit with Hindus and Mohammedans, keep the Bible, the Koran and the Shasters among the lodge furniture, and oblige the initiate upon the book of his faith.

The essential idea here seems to be that Masonry is, if not a religious institution, at least an institution which recognizes religion and seeks to be a co-worker with it toward moral progress of mankind. Hence it keeps as a part of its furniture the book of the law which is the visible and tangible evidence of the Mason's adherence to religion. In so doing we are confirmed by the evidence of primitive secret societies; for religion, morals, law, church, public opinion, government were all united in these societies at first and gradually differentiated. The relation of Masonry with religion, in its origin, in its whole history, and in its purposes, is so close that there is a heavy burden of proof on those who seek to reject this tangible sign of the relation, which stood unchallenged in universal Masonic usage till the Grand Orient of France in 1877 substituted the book of Masonic constitutions. In view of the universal protest which that action brought forth, of the manifest impossibility of accepting the French resolution as fixing the ends of the order, of the uniform practice of obligating Masons on the book of the law, as far back as we know Masonry, and as shown uniformly in the old charges, it seems impossible not to accept Mackey's twenty-first landmark in the sense of having a recognized book or books of religion among the furniture of the lodge and obligating candidates thereon. Indeed the English Grand Lodge resolution that the Master Mason's obligation includes the landmarks of Masonry, seems fairly to include the taking of that obligation upon the book of the law, as it was then taken.

Fourth I have put the legend of the third degree. This is Mackey's third landmark. "Any rite," he says, "which should exclude it or materially alter it, would at once by that exclusion or alteration cease to be a Masonic rite." Here certainly we have something that meets the criteria of immemorial antiquity and of universality. The symbolism of resurrection is to be found in all primitive secret rites and in all the rites of antiquity and the ceremony of death and re-birth is one of the oldest of human institutions.

Fifth I have put secrecy. Mackey develops this in his eleventh and twenty-third landmarks. The exact limits must be discussed in another connection. But if anything in Masonry is immemorial and universal and if the testimony of ancient and primitive rites counts for anything at all, we may at least set up the equipment of secrecy as an unquestioned landmark.

Sixth I should recognize as a landmark employment of the symbolism of the operative art. This is Mackey's twenty-fourth landmark. Perhaps one might say that it is a fundamental tenet of Masonry that we are Masons! But it is worthy of notice that this symbolism is significantly general in ancient and primitive teaching through secret rites.

Finally I should put it as a landmark that the Mason must be a man, free born, and full age according to the law or custom of the time and place. This is in part Mackey's eighteenth landmark, though he goes further and

requires that the man be whole. I shall discuss the latter requirement in connection with Masonic common law. As to the form for which I contend, perhaps I need only vouch (1) the vote of the Grand Lodge of England that the Master Mason's obligation contains the landmarks; (2) universal, immemorial and unquestioned usage; and (3) the men's house of primitive society and its derivatives.

A special question may possibly arise in connection with the proposition that it is a landmark that no woman shall be made a Mason. No doubt all of you have heard of the famous case of Miss St. Leger, or as she afterwards became, the Hon. Mrs. Aldworth, the so called woman Mason. Pictures of this eminent sister in Masonic costume, labelled "The Woman Mason" are not uncommon in our books. The initiating of Mrs. Aldworth is alleged to have taken place in 1735 in lodge No. 44 at Donraile in Ireland. She was the sister, of Viscount Doneraile who was Master, and as the lodge met usually at his residence, Doneraile House, the story is she made a hole in the brick wall of the room with scissors and so watched the first and second degrees from an adjoining room. At this point she fell from her perch and so was discovered. After much debate, so the story goes, the Entered Apprentice and Fellowcraft obligations were given her. This translation was first made known in a memoir published in 1807 — seventy-two years afterwards. Modern English Masonic historians have examined the story critically and have proved beyond question that it must be put among the Masonic apocrypha. The proof is too long to go into here, where in any event it is a digression. But I may refer you to Gould's larger work where you will find it in full.

Of course the action of a single lodge in 1735 would not be conclusive — against (1) the terms of the Master Mason's obligation; (2) the resolution of the Grand Lodge of England in the eighteenth century; (3) the weighty circumstance that all secret societies of primitive man and the societies among all peoples in all times that continue the tradition of the men's house were exclusively societies of men. But it is after all a relief in these days of militant feminism, to know that we are not embarrassed by any precedent.

Such are the landmarks as I conceive them. But much remains to be said about other institutions or doctrines which have some claim to stand in this category when we come next to consider Masonic common law.

***The Builder*, April 1917 Vol. 3 No. 7**

MASONIC JURISPRUDENCE

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3. MASONIC COMMON LAW

Part One

IN England, the common law, using the term to mean the traditional element of the legal system, is the customary course of decision in the English courts from the thirteenth century to the present, as developed and applied to the conditions of the present by jurists and judges in the nineteenth century. In America, the common law, using the term in the same sense, has four chief constituents: (1) the course of decision in the English courts prior to colonization, or at least prior to the Revolution, so far as applicable to the social, political, economic, and physical conditions in America; (2) the course of decision in American courts since the Revolution; (3) the course of decision in England and other countries with England legal institutions since the Revolution; and (4) international law, or the body of rules governing the relations of individuals with foreign states and citizens of one state with those of other states which has been received by general agreement of the community of nations in modern times. Thus it will be seen there are two types of rules which go to make up the common law of the lawyer — universal principles, upon which English and American courts alike have proceeded since the Revolution, and local American usages, of a general and permanent nature, which have developed in this country since our independence.

In the same way we may recognize two types of usages in our Masonic common law: on the one hand a universal body of usage, developed in eighteenth-century Masonry after the revival of 1717, and on the other hand a general body of usage developed in the United States, chiefly in the nineteenth century, through decisions of

Grand Masters and the review thereof in Grand Lodges, in which the former is developed and applied. In this lecture I shall speak only of the former.

Masonic common law, in the stricter sense, I take to be the body of tradition and doctrine, developed in eighteenth-century Masonry, which is of such long standing, is so universal and is so well attested, that, although it lacks the absolute authority of the Landmarks, it stands at the foundation of our Masonic legal system. It is to be used to interpret and supply gaps in Masonic legislation and it is never lightly to be set aside. Our fathers used to say that statutes in derogation of the common law were to be strictly construed. Whether or not this is true in the everyday law of the state it may well be true in Masonry where these settled customs have entered into the very structure of the Order. The foundation of all study of Masonic common law is in Mackey's exposition of the Landmarks. We may grant that not more than one-third of his twenty-five Landmarks are to be accepted as such. Nevertheless he succeeded wonderfully in putting his finger on the significant points in generally accepted Masonic usage. Everything that has been done since has been done in the light of his exposition and on more than one point he said all that was to be said. Hence the most effective mode of treating Masonic common law is to take up his list of Landmarks seriatim and expound those which seem to be rather doctrines or institutions of our common law as such, showing that they are not to be classed as Landmarks.

Dr. Mackey puts as the first Landmark the modes of recognition. These, he says, are the most legitimate and unquestioned of the Landmarks. To use his own words, "They admit of no variation; and if ever they have suffered alteration or addition, the evil of such a violation of the ancient law has always made itself subsequently manifest." Indeed at first sight, nothing might seem more fundamental, and yet Masonic history gives us pause.

For one thing, there is Preston's version of the causes of the great schism in Masonry in the eighteenth century. Even if we do not accept this — and I take it Gould has shown that we should not — it is highly significant as to the development of the important Masonic institution in question.

Preston's narrative is that in consequence of the expose of Masonry in Prichard's *Masonry Dissected*, a change was made in the mode of communication of the degrees, so that the words of the Entered Apprentice and Fellowcraft degrees were exchanged. This change, he gives us to understand, took place in 1739. But there is pretty conclusive evidence that the order of the Moderns, which Preston tells us, represents a change made in 1739, was the order which obtained in 1737 and the assertion that there was a change, made by Dermott and by Preston a generation later, seems traceable to two sources: (1) The change from two parts to three degrees definitely established in 1738, which was the cause of much discontent at the time and was one of the causes of a revolt from the Grand Lodge of England in 1739; and (2) a statement of a spurious ritual of 1766, one of a crop of spurious rituals and exposes of which the decade 1760 to 1770 was prolific, that such a change was made in consequence of Prichard's *Masonry Dissected*. What the author knew was that Prichard's order and that of the Grand Lodge of England were not the same. Of course Prichard could not be wrong! That Prichard's book had a considerable influence on Masonic ritual is a significant as well as a curious fact, showing how fluid the Masonry of the period really was. The conclusion that the order of 1737 was what it remained till the union with the ancients in 1813 might at first seem to sustain Mackey's view. But how can we adhere to it when we find that the prevailing order today is not that of 1737 and that two distinct systems of recognition prevailed in England from 1747 to 1813?

Again, we are taught not to be dogmatic when we note that a distinct substitute word has prevailed in many parts of the world and may possibly go back to Jacobite Masons in the first quarter of the eighteenth century. Even if we do not accept the view that "macbenac" is mac benach (blessed is the son) and is an allusion to the Pretender, the prevalence of this distinct word puts a heavy burden of proof upon those who would assert the immemoriality and universality of our present modes of recognition. If we suppose it to be a corruption, analogous to "Peter Gower" and "Naymus Graecus," when we put our substitute word of four syllables (pronounced as three) beside "macbenac" and the mysterious "maughbin" of operative manuscripts, we may well wonder whether we have anything more than a clever working into Hebrew of a corrupt word hopelessly lost or an eighteenth-century

endeavor to make a word worthy of the occasion. At any rate, such reflections compel modesty in laying down Landmarks. Perhaps the card or receipt for dues now required of the visitor in more than one jurisdiction is not so counter to fundamental principles as has been asserted.

Yet one cannot doubt that the established modes of recognition are upon a much firmer basis than the ephemeral creatures of Grand-Lodge legislation and Grand-Lodge decision. As far as anything can be established short of the Landmarks these are established. They are a part of our common law and deserve to be cherished as such.

Dr. Mackey's second Landmark is the division of Craft Masonry into three degrees. Here he has support in the English pronouncement of 1813 "that ancient Craft Masonry consisted of the three degrees of Entered Apprentice, Fellowcraft, and Master Mason, including the Holy Royal Arch." But, he adds, "that disruption has never been healed, and the Landmark, although acknowledged in its integrity by all, still continues to be violated." A Landmark universally violated since 1813 may indeed excite our suspicion. And here again history compels us to take a different stand. For whether 1717 was a revival or a beginning in Craft Masonry, there can be no doubt that the middle of the eighteenth century did not preserve our high degrees — it created them. The first known reference to the Royal Arch is in 1741. In that year the records of a Lodge (No. 21) set forth that in a procession the Master was "preceded by the Royal Arch carried by two excellent Masons." In 1744 Dassigny, an Irish Mason, tells us that there was an assembly of Royal Arch Masons at York, that the degree had been brought from York to Dublin, and that it had been practised in London "some small space before." He also tells us that the Royal Arch Assembly at York was "an organized body of men who have passed the chair." The evidence seems clear that this was the first additional or high degree. On the whole we may be pretty sure it was worked in England at least from 1740 and Gould thinks it has its origin in the alteration of the Master's creed in the constitutions of 1723. The Past Master's degree does not appear till the Grand Lodge of the so-called Ancients in 1751, and this was not admitted by the regular or so-called Modern Grand Lodge till 1810. But gradually, as the thirst for high degrees grew, probably influenced not a little by the growth of elaborate "systems" of high degrees on the Continent, a practice arose of conferring the Royal Arch upon Masons not qualified to receive it by a fictitious or constructive passing them through the chair, and thus a Past Master's degree arose and in effect a new rite. For this a new ceremony was evolved which, it is shown clearly enough, has no relation to the simple communication of secrets known to Payne, Desaguliers, and Anderson. This rite or these degrees were worked in the Craft Lodges, and during the schism both the Modern and the Ancient Grand Lodges came to permit them indifferently. Thus at the union it was possible to recognize the Royal Arch as a component part of ancient Freemasonry. By this time, however, it had achieved an independent existence. One might say, of course, that this is but the tale of the disruption of which Mackey speaks. But there is clear testimony to the contrary. In 1757, Manningham, Deputy Grand Master of the Grand Lodge of England (Modern), in a letter on the subject of the high degrees, said: "These innovations are of very late years, and I believe the Brethren will find a difficulty to produce a Mason acquainted with any such forms twenty, nay ten years ago. My own father has been a Mason these fifty years and has been at Lodges in Holland, France and England. He knows none of these ceremonies. Grand Master Payne, who succeeded Sir Christopher Wren, is a stranger to them, as is also an old Brother of ninety I conversed with lately. This Brother assures me he was made a Mason in his youth and has constantly frequented Lodges till rendered incapable by advanced age, and never heard or knew of any other ceremonies or words than those used in general amongst us." This is not conclusive. But it is very suggestive that the Royal Arch was attributed by Ireland to distant York, and yet has no warrant in York records till 1761. A priori, one must feel the true word is an essential part of Masonry; that it is, as Dermott put it, "The root, heart, and marrow of Masonry." Yet in the face of history this is no warrant for pronouncing it a Landmark that communication of the true word is a part of Craft Masonry. On the contrary it is notorious Masonic common law that this is a matter for rites that build on Craft Masonry and vary infinitely in the details.

So also with the division into three degrees. I discussed the evidence upon this point in a lecture last year upon the causes of divergence in ritual [1]. Perhaps it is enough to say that there seems indubitable proof that originally there were two "parts" and that our present system of working the two parts in three degrees arose in some way between 1723 and 1728 and was not accepted universally for many years after the latter date. And yet nothing in Masonry short of a Landmark could be better established. If the system of three degrees cannot claim the immemorial existence that characterizes a Landmark, it can claim to be of such long standing, to be so universal, and to be so well attested — in that it is the common element in every rite that has ever been devised — as to be a fundamental institution of Masonic common law.

The third Landmark in Mackey's exposition, namely, the legend of the third degree, was considered in the last lecture. [2]

Next Mackey puts, as his fourth Landmark, to use his own words, "The government of the fraternity by a presiding officer, called a Grand Master, who is elected from the body of the Craft." Here again history gives us pause. Tradition does indeed tell us of Grand Masters prior to 1717 and Anderson, in 1738, gave us a long and palpably apocryphal list. As to Sir Christopher Wren, whom Anderson has taught us to consider the last Grand Master prior to the so-called revival, there is at least much doubt whether he was a Mason at all. And there is every reason to hold that there were no Grand Masters prior to the election of Sayer on St. John the Baptist's day, 1717. It might be said that the name is not important if it may be shown that some such officer, elected from the body of the Craft, has existed from time immemorial. But this cannot be shown and evidently is not true.

We have abundant evidence as to speculative Lodges in England at least as far back as 1646, and have good reason to believe that speculative Masonry was widely diffused in seventeenth-century England and that persons of the first rank were joining eagerly. Had there been such an institution as a Grand Mastership with the dignity and authority which it involves, it could not possibly have left no trace in the voluminous writings and loquacious diaries of the time. Moreover, we have actual written minutes of the Masons at York from 1712 and minutes from 1705 were once extant and are authentically established. These show that there was no Grand Lodge and no Grand Master at York till 1725. Prior to that time there was an annual assembly of Masons presided over by a "President" for the time being. But this President was a mere chairman of what was really a sort of convention. In 1778 when a claim of priority was made for the Grand Lodge at York, these presidents were made into Grand Masters. But the contemporary records show they were nothing of the sort and that the Grand Lodge organization at York in 1725 was fashioned upon the model of the London Grand Lodge of 1717. Likewise in Scotland we have abundance of evidence, including Lodge records, covering the whole of the seventeenth century. Nowhere is anything disclosed at all like a Grand Mastership, unless it be the appointment by the crown of a "Warden-General" for the Masons at the end of the sixteenth century. This obviously proves too much.

It must be concluded, therefore, that the institution of the Grand Master is no Landmark. Yet here also is an undoubted and fundamental institution of Masonic common law. From the revival in 1717 to the present the Grand Mastership has been the cornerstone of Masonic organization. It has established itself as a universal institution and is as thoroughly a part of Masonry as anything short of a Landmark may be. Hence one must needs feel some pain in reading in the proceedings of American Grand Lodges that "the office of Grand Master is a constitutional office" — meaning that it is derived from, gets its powers by virtue of, and has its prerogatives determined by Masonic legislation. One may suspect, indeed, that those who so speak confound the "constitution" of an American state and the "constitutions" of Freemasonry. The latter, let us ever bear in mind, are but statutes. So far as we have a "constitution" in the sense of American public law, it is to be found in the Landmarks. The Grand Master is not the creature of Masonic legislation. To that extent Mackey was absolutely right. If his office and his prerogatives are not Landmarks, then we may grant that Masonic legislation in any jurisdiction may impair the office and shear it of its time honored prerogatives. In the same way the ruthless hand of the legislator may, as a mere display of power, alter any of our established usages short of a handful of Landmarks. But unless and until this is clearly and expressly

done, the common law of Masonry prevails. Surely the mouth of the Masonic legislator is speaking great things when he tells us that we are to look to the pages of his codes to tell us the full measure of the powers and prerogatives of the Grand Master, who is older than legislation. For the Grand Master dates from 1717, while the first Masonic legislation — itself only declaratory — is the compilation of General Regulations by Grand Master Payne in 1720, approved by the Grand Lodge of England in 1721. Legislation may alter and take away, but is not the source and will not be until ignorance or innovation go so far as to lead some jurisdiction to set up a "constitution" in the sense of American public law in the place of the "constitutions" (as a body of legislation) which alone are known to Masonic law.

Mackey's fifth, sixth, seventh and eighth Landmarks have to do with prerogatives of the Grand Master and hence cannot be admitted to be Landmarks for the reasons above set forth. If the office of Grand Master did not exist in form or in substance prior to 1717 it is obvious that the prerogatives of that office cannot be of immemorial antiquity. Some of these prerogatives, however, are undoubted common law. Thus Mackey's fifth Landmark reads: "The prerogative of the Grand Master to preside over every assembly of the Craft, wheresoever and whensoever held." As he is Grand Master only within his jurisdiction, this means that he may assume the chair at any and every communication not only of the Grand Lodge but of any subordinate or constituent Lodge. This is certainly Masonic common law and is not a power derived from legislation, although constitutions may have declared it. Until constitutions add or subtract something we may not concede that they are sources. When they merely declare we may look to the universal practice of Masons since the eighteenth century and to the established customs of the Craft since the Grand Lodge system became established as the real sources of Masonic law.

The sixth and seventh Landmarks in Mackey's system have to do with the prerogative of the Grand Master to grant dispensations for conferring degrees at irregular times and for opening and holding Lodges. Here again we have undoubted institutions of Masonic common law. For we have here an idea perfectly familiar to the formative period of Masonic Institutions however alien to the political and legal ideas of today. The dispensing power was part of the royal prerogative in England down to 1688 and a dispensing power for special occasions upon special reasons was regarded — and perhaps must to some extent be regarded always — as inherent in all magisterial office. Adaptation and application of general rules to actual cases which are sometimes particular rather than general in their significant characteristics is the essence of administration.

As laws are general rules the process of making them involves elimination of elements of particular controversies which are special to those controversies. In eliminating immaterial factors to reach a general rule, in view of the infinite variety of controversies and the almost imperceptible differences of degree in their approximation to recognized types, it is not possible entirely to avoid the elimination of factors which will be more or less material in some particular controversy. To take account of all these variations an over-wide discretion in the magistrate would be required. On the other hand, if exceptions and qualifications and provisos are appended to legal rules to any great extent the system of law becomes cumbrous and unworkable. A compromise must be made; a middle course must be found between over-wide discretion and over-minute law making. Necessarily, therefore, legal standards are more or less artificial. In the law of the state we meet this difficulty by discretion of judges and magistrates by the pardoning power of the supreme executive, by a certain extra-legal power of juries to run away with the law in bringing in a general verdict. All these are but phases of a dispensing power that is inevitable if lifeless rules are to be made to govern creatures of flesh and blood. Hence the equitable powers of the Roman praetor, the interference of the Roman emperor in cases of shocking breach of confidence that led to the law of testamentary trusts, the power of the Frankish king to decide *secundum aequitatem*, the power of the Anglo-Saxon king to mitigate the law, the power of the king's chancellor to deal with particular cases of great hardship in accordance with equity and good conscience. Hence we commit the regulation of public utilities today to administrative commissions rather than to courts. Hence the ecclesiastical law recognized a dispensing power in the pope and to less extent in the bishops. Thus the dispensing power of the Grand Master is inherent in his office. It

has its origin in the nature of things and is but recognized and declared by Masonic legislation where such legislation purports to confer it.

More serious question arises with respect to the eighth of Mackey's list, namely, the alleged prerogative of the Grand Master to make Masons at sight. This has been the subject of much debate and clearly is not a general institution of Masonic common law. Brother Hughan, indeed, styled it an "American pretension." But much misapprehension has prevailed in the discussion of the subject. Some tell us that the power has not existed "since 1717," apparently reasoning that it is incompatible with the Lodge and Grand-Lodge system that has prevailed since that date. On the other hand we are told that it is a Landmark which has been suffered to fall into disuse by some while others have vindicated it in its integrity. Neither position can be maintained. When we are dealing with a question of Masonic common law our only criterion is long-standing, general, well attested usage. And authorities and jurisdictions will necessarily differ as to the application of this criterion and will reach different results, exactly as the courts of our states differ as to what are principles of common law under which we live and reach different results so frequently that, with a common foundation in each, the details of the traditional law differ in all our states. Certainly one may say with confidence that the power in question is not a general much less a universal institution of Masonic common law. But if it is recognized and obtains anywhere by custom or declaratory legislation, there is no reason why Masonic jurists elsewhere should hurl argumentative thunderbolts at the authorities of that jurisdiction. The nine American Grand Lodges that accept Mackey's twenty-five Landmarks in their entirety are at least entitled to claim that with them this prerogative is Masonic common law and rests in their law on a higher basis than such purely legislative rules as those which in some American jurisdictions preclude those who follow certain occupations from becoming Masons. For a logical argument may be made for the power as an incident of the common-law prerogative of the Grand Master to dispense with the law for grave reasons or on important occasions and it is at least disputable whether some such power was not exercised by eighteenth-century Grand Masters.

Mackey's ninth Landmark is thus stated: "The necessity of Masons to congregate into Lodges." He adds:

"It is not to be understood by this that any ancient Landmark has decreed that permanent organization of subordinate Lodges which constitutes one of the features of the Masonic system as it now prevails. But the Landmarks of the order always prescribe that Masons should from time to time congregate together for the purpose of either operative or speculative labor and that these congregations should be called Lodges. Formerly these were extemporary meetings called together for special purposes and then dissolved, the Brethren departing to meet again at other times and other places according to the necessity of circumstances. But warrants of constitution, by-laws, permanent officers, and annual arrears are modern innovations entirely outside the Landmarks and dependent entirely on the special enactment of a comparatively recent period."

The comment of Brother George F. Moore in this connection is very pertinent. He says: "This amounts to saying that a society of men must be a society — that an association of men must associate, that a fraternity of men must fraternize. A common definition of a Freemason is 'one of a secret association composed of persons united for social enjoyment and mutual assistance.' But it is not so clear that the meeting of Freemasons were to be called 'Lodges' nor is there any evidence of a Landmark prescribing the use of the word 'Lodge'."

We must remember that the Lodges of seventeenth-century England were often mere occasional assemblies of Masons and indeed were called "assemblies" at York. Often any number of Masons who find themselves in a convenient place at a convenient time are seen holding a Lodge. As a Landmark, therefore, this must fail. Yet nothing is more undoubted in Masonic common law than the system of regular and permanent Lodges that grew up in England after 1691, became an established part of the Grand Lodge system of 1717, and obtained universal authority in the Masonic world.

Mackey states his tenth Landmark thus:

"The government of the Craft when so congregated [i. e. in a Lodge] by a Master and two Wardens is also a Landmark. A congregation of Masons meeting together under any other government, as that for instance of a president and vice-president, or a chairman and subchairman, would not be recognized as a Lodge. The presence of a Master and two Wardens is as essential to a valid organization of a Lodge as a warrant of constitution is at the present day. The names, of course, vary in different languages; but the officers, their number, prerogatives and duties are everywhere identical."

A few points are noteworthy in connection with the organization of a Masonic Lodge: (1) the organization with a Master and two Wardens is analogous to that of a parish in England, with the rector and two wardens. (2) It is the same as that of the Craft guilds in England, where there was a Master or governor (or some such title) and two wardens. (3) We know the title Master was not always used. In York the chief officer was called President. In Scotland he was called Warden. But this is not decisive and is no proof that there were not three officers. (4) The Master and Wardens were recognized and their duties defined in the old ordinances of the Steinmetzen of the fifteenth century. (5) The relation of the number three to the numerical symbolism so universal in Masonry suggests strongly the antiquity of the Master and Wardens.

On the whole this tenth of Mackey's Landmarks comes very near to fulfilling the requirements. In a former article [\[3\]](#) I indicated my reasons for not so recognizing it. But Brother Moore accepts it as a Landmark. At any rate its place as an unquestioned institution of our common law is secure.

We come next to Mackey's eleventh Landmark. His language is:

"The necessity that every Lodge when congregated should be duly tiled is an important Landmark of the institution which is never neglected. The necessity of this law arises from the esoteric character of Masonry. The duty of guarding the door and keeping off cowans and eavesdroppers is an ancient one which constitutes, therefore, a Landmark."

I suppose if there is such a thing as a Landmark, we should have to agree that secrecy is a Landmark. But notice that Mackey claims not only secrecy as a Landmark, but also the mode of maintaining secrecy by purgation of the Lodge and by tiling. Notice also the way he proves this, not historically, but logically or analytically. This is a good example of the analytical method in Masonic jurisprudence. Mackey's argument may be put thus: Masonry is a secret institution in its very nature. Hence secrecy is an unalterable fundamental. But the traditional incidents of secrecy, which are necessary to the maintenance of this fundamental institution of secrecy, are logically inseparable from secrecy and therefore they also are Landmarks. Consequently in his *Encyclopedia*, under the word "tiler," Mackey says that the name tiler and the office itself are based "not on any conventional regulation, but on the Landmarks of the Order." In other words, not only secrecy, but the tiling of the Lodge and the tiler, as a means of maintaining secrecy, are Landmarks.

Undoubtedly we must agree that secrecy is a Landmark. We do not need analysis or logic for this. It is an immemorial, universal characteristic not merely of Masonry, but of all the like societies which, as I told you in another connection, have existed among all men in all times. But how far are the means of preserving secrecy Landmarks? How far are they fundamental and immutable, and how far are they but Masonic common law? This is not so easy to answer. For myself, I should say they are not a Landmark. One might say that where there is nothing against tradition in such a case we should accept it. And here we have, so far as there is evidence, the evidence of universal and immemorial usage. So one might say that the tiling of the Lodge and the doorkeeper, sentinel, outside guard, or tiler are Landmarks. But this is only saying that secrecy is a Landmark. As to the name "tiler" — we cannot be sure. It is hard to say what the word means. Some think it means one who lays tiles and is symbolical of the building roofed or completed. And in justification of this we are cited to the old practice that when a clandestine or a cowan got into the lodge a brother called out — "It rains" — signifying that the roof leaked for want of proper tiling. This is ingenious, and may be so. Others derive tiler from "tailleur," stone-cutter. This is philologically erroneous. There is some philological evidence that it may mean only guard. If so, the whole is clear. The symbolism

of the roofed building is not well enough established to make it safe to rely on this for a Landmark. Probably recognition of secrecy and of purgation and tiling as a Landmark is as far as we can go. Brother Moore accepts Mackey's view entirely.

Mackey states his twelfth Landmark thus:

"The right of every Mason to be represented in all general meetings of the Craft and to instruct his representatives is a [twelfth] Landmark. Formerly these general meetings, which were usually held once a year, were called General Assemblies, and all the fraternity, even to the youngest Entered Apprentice, were entitled to be present. Now they are called Grand Lodges and only the Masters and Wardens of the subordinate Lodges are summoned. But this is simply as the representatives of their members. Originally each member represented himself; now he is represented by his officers."

This is certainly Masonic common law, but I am confident it cannot be maintained as a Landmark.

(1) In the first place it contains a refutation in itself. If prior to 1717 all Masons had a right to attend, what warrant was there in that year for changing a right of personal attendance into a right to attend by representatives? This shows that we are hardly dealing here with a Landmark.

(2) As I showed in other lectures, the existence of these general assemblies prior to 1717 is involved in great doubt historically. I think there is evidence of such assemblies in the seventeenth century. But I do not believe there is evidence of regular assemblies, much less of a system of periodical assemblies prior to 1717. To dispose of the matter in a few words, Masonic history is against this alleged Landmark, and Mackey's argument for it as a Landmark is in conflict with his assertion. But as a bit of Masonic common law, it is undoubted.

In passing it should be noted that here, as in so many cases of Masonic common law, we have a purely English idea. Representation of every Englishman in Parliament through the knights of the shire and the burgesses is the obvious analogy. Indeed Mackey's very language is taken from Blackstone. A very large part of Masonic common law is English. But when we have an idea so peculiarly English we may well pause and ask ourselves whether we are sure that we have a Landmark.

Two matters of some practical importance are involved in the question as to the existence of this supposed twelfth Landmark. One is the question, once much mooted, of the right of the Entered Apprentice to ballot for candidates for the Entered Apprentice degree. This was the subject of a characteristically learned report by Albert Pike in 1854. As is well known, the question has been settled in the negative. The other point is one still controverted in many jurisdictions, namely, whether a Lodge of Master Masons is opened on the Entered Apprentice degree or a Lodge of Entered Apprentices is opened. This is really, it is submitted, but a matter of local law. One may think that the local law should be this or that on general principles of Masonic common law. But it cannot be that any Landmark is violated by a jurisdiction which takes the one view or the other.

Mackey states his thirteenth Landmark thus:

"The right of every Mason to appeal from the decision of his Brethren in Lodge convened to the Grand Lodge or General Assembly of Masons is a Landmark highly essential to the preservation of justice and the prevention of oppression. A few modern Grand Lodges, in adopting a regulation that the decision of subordinate Lodges in cases of expulsion cannot be wholly set aside upon appeal, have violated this unquestioned Landmark as well as the principles of just government."

Notice how Mackey proves this Landmark. He says the right of appeal is essential to justice: therefore it is a Landmark. It is a fundamental notion in justice that there shall be a review of a decision; therefore it is fundamental in Masonic justice. But unappealable decisions are known to all legal systems. For example: Criminal appeals were not allowed in England till a few years ago; judgments and decrees for less than \$5,000 in our federal courts were not appealable prior to 1891; petty judgments are unappealable in many states, and judgments were not appealable in Roman law prior to the empire. Hence it is by no means clear that Mackey's premises are maintainable. Moreover, as he admits, the practice has not been universal in modern times. But the conclusive

objection is that this alleged Landmark assumes the existence of Grand Lodges prior to 1717, which we cannot concede. Nevertheless this is clearly a doctrine of Masonic common law.

Mackey states his fourteenth Landmark in these words:

"The right of every Mason to visit and sit in every regular Lodge is an unquestioned Landmark of the Order. This is called the right of visitation. This right of visitation has always been recognized as an inherent right which inures to every Mason as he travels through the world and this is because Lodges are justly considered as divisions for convenience of the universal Masonic family. This right may of course be impaired or forfeited on special occasions by various circumstances; but when admission is refused to a Mason in good standing who knocks at the door of a Lodge as a visitor, it is to be expected that some good and sufficient reason shall be furnished for this violation of what is in general a Masonic right founded on the Landmarks of the order."

This is a matter of great difficulty, not merely as to the existence of a Landmark of visitation, but also with respect to the limits of the right, whether founded on a Landmark or on common law. That there is a Landmark that Masons have a right of visitation is quite possible. There are several good reasons for asserting this. (1) Originally Lodges were not necessarily permanent. The Masons present at the time and place opened a Lodge. A striking illustration of this may be found in Ashmole's well known account of his initiation. Under such circumstances all who were there had a right to take part. But there were also permanent Lodges in Scotland, at least, in the sixteenth century. (2) The right of visitation, it may be said, inheres in the ideas of fraternity and universality. So far as we can use logic and philosophy they sustain Mackey on this point. (3) Visitation exists in all brotherhoods and societies in all time, so far as not purely local. It is said to have been a maxim of the Pythagoreans. (4) The old charges uniformly prescribe a duty of receiving "strange fellows" — that is, foreign Masons — and of treating them well. This is a very strong argument.

We might, then, accept a Landmark of visitation. What, however, are its limits? This is one of the most difficult and vexed questions in Masonic jurisprudence. Hence I prefer to regard visitation as a common law right, the limits and scope whereof must be considered in the next lecture.

[\(To be continued\)](#)

1. "Causes of Divergence in Ritual," THE BUILDER, vol. III, Nov. C. C. B: pp. 4-10. [↵](#)
2. "Masonic Jurisprudence - II, The Landmarks," THE BUILDER, vol. III, pp. 211-216. [↵](#)
3. Idem. [↵](#)

The Builder, April 1918 Vol. 4 No. 4

MASONIC JURISPRUDENCE

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3. MASONIC COMMON LAW

Part Two

AS I said in the last lecture, [\[1\]](#) there is much to be said for a Landmark of visitation. On the other hand, four points may be urged against such a Landmark: (1) The serious differences among Masonic writers of authority as to the existence of an absolute right of visitation; (2) The pronouncements of important Grand Lodges to the contrary; (3) The obvious necessity of restraints upon visitation under the conditions of today, which give great force in this connection to what lawyers call the argument *ab inconvenienti*; (4) The difficulties growing out of legislation in Grand Lodges with respect to membership in clandestine bodies conferring higher degrees and the effect thereof upon one's rights as a Craft Mason.

Let us look at these in order.

(1) While Mackey lays down the right of visitation as a Landmark and says in his Principles of Masonic Law: "Every Master Mason who is an affiliated member of a Lodge has the right to visit any other Lodge as often as he may desire to do so," Doctor Morris lays down the contrary with equal positiveness, saying: "There is no question in

our mind but that a Lodge has the right to prohibit intrusion from visitors at any and all times at its own discretion." Likewise Brother Moore, whose excellent papers on the Landmarks have been referred to heretofore says: "The very custom of asking permission to visit implies the power to refuse the visitor admission." He concludes, therefore, that there is a duty of hospitality, but not a right of visitation, that the duty is moral rather than legal, and hence that there is no unchangeable Landmark. In other words, visitation is an old institution of Masonic common law. But, since it falls short of a Landmark, the subject is open to regulation, and the circumstances of today call urgently for the regulation which has sprung up through Masonic legislation.

(2) Masonic decision and legislation have not regarded the right of visitation as a Landmark. Thus, in 1857, the Grand Lodge of England decided that "the Master and Wardens may refuse admission to any visitor of known bad character." According to Mackey's view the sole question would be whether he was in good standing in a regular Lodge. Brother Moore asks why he remains a Mason if he is of known bad character? No doubt a strong presumption arises from his good standing in another Lodge. Still a Lodge may not do its duty and such persons may remain unchallenged. If so, when we are told that another Lodge may refuse to receive them, the result is to deny Mackey's Landmark. In Massachusetts and in Kentucky visitation has been held not to be an absolute right, but to be a favor which the Master may grant or may refuse in his discretion. Michigan also rests the whole matter on discretion, holding that a Lodge may admit or exclude visitors as it sees fit. These holdings are wholly incompatible with the alleged Landmark and amount to a recognition of the proposition for which Brother Moore contends, namely, that there is no more than a moral duty of hospitality.

(3) This view of the so-called right of visitation becomes almost imperative under the conditions of visitation today. With the best of intention toward the honest Masonic traveler, we are compelled today, in view of the enormous increase in the number of Masons, to restrict more and more the hospitality we extend to the visiting brother. Imposters and Masons for revenue only, traveling about the country, have not only required us to adopt elaborate precautions in the way of boards of relief, extending even to an international Masonic relief association, but have also driven our Grand Lodges to enact somewhat strict rules as to visitation. Moreover, nearly everywhere, with the great growth of the Order, clandestine Masonry has grown also. And this growth of clandestine Masonry, rendered inevitable by the prosperity of legitimate American Masonry, has been aggravated by controversies as to the legitimacy of Scottish Rite bodies and by attempts of Masonic charlatans to peddle high degrees of other rites, with which our Grand Lodges in many jurisdictions have felt it necessary to deal by legislation. Thus in one of the great states of the union — a state which took an honorable part in the spreading of Masonry over the country — there is a so-called Grand Lodge made up entirely of clandestine and irregular particular Lodges, having for their sole *raison d'être* a claim that the legitimate Grand Lodge had violated the ancient Landmarks by declaring the Scottish Rite bodies of Cerneau origin to be clandestine. The propriety of such legislation has been much controverted and is not relevant in the present connection. It is enough to say here that the competency of Grand Lodges to enact it seems indisputable. Nothing with any degree of pretension to be a Landmark is violated and the question is simply one of expediency. Hence such schisms have no legitimate basis. None the less they do exist, and elsewhere clandestine so-called Grand Lodges exist with even less justification. Obviously some barriers beyond the ordinary examination by a committee become necessary under such conditions.

But the Grand Lodge legislation last referred to leads to greater difficulties in that as a result a Mason may be in good standing in one of two jurisdictions, each recognizing the other, and yet, if he were a member in the jurisdiction where he seeks to visit he would not be eligible to sit in Lodge. For example, in Iowa, if a Mason joins a Cerneau Scottish Rite body, the law of his Grand Lodge pronounces him a clandestine Mason. Also in Pennsylvania an adherent of the Cerneau Scottish Rite is not permitted to visit a Craft Lodge. Many other states have like legislation. In view of such legislation, Brother George F. Moore puts this case: "There is, we will say for example, a symbolic Lodge in session in the District of Columbia, where there is no law forbidding a regular Mason to sit with a Cerneau Scottish Rite Mason. Seated in this Lodge are two or three 'Cerneauites' and Brethren are present from

Pennsylvania, Ohio, Iowa, and other states which have declared Cerneaus to be clandestine Master Masons. The visiting brethren from Pennsylvania, Ohio, and Iowa are prohibited by the Masonic laws of their own states from sitting in a Lodge with the Cerneaus. They are not aware of the presence of the clandestine Masons in the Washington City Lodge, and sit with them. Afterwards one of the Cerneaus meets one of the Iowa Brethren who had sat with him in the Washington Lodge, and the latter vouches for the Cerneau who is admitted because of this voucher in a Lodge in another state. Has not the vouching brother violated his obligation and the laws of his Grand Lodge?

Clearly the Iowa brother has violated his obligation, and the laws of Masonry in his own state by vouching for a "clandestine Mason."

That such a situation may arise innocently and may very easily arise is unfortunate. It puts the Masonic visitor in a most awkward position, and seems to require him either to be offensively discourteous, or to know thoroughly the Masonic legislation both of his own jurisdiction and of that in which he seeks to visit, or else to abstain from visiting. As Brother Moore justly observes in the paper already quoted from, we can hardly expect the visitor from a state where a Cerneau Scottish Rite Mason is deemed clandestine also in the Craft Lodges, to say publicly, if he visits in a jurisdiction without such legislation: "If there are any Cerneaus present I must not sit here with you because I make myself liable to Masonic laws of my own state." Very likely those who deny the concern of the Craft Lodge with the higher degrees would suggest to him that he inform himself at his peril before he visits. But what becomes of the right of visitation under such circumstances? What shall we say of the Cerneau in good standing as a Master Mason at home who claims by virtue of Mackey's alleged Landmark an absolute right to visit a Craft Lodge in a jurisdiction which pronounces him clandestine?

We have here a question similar to the class of questions now very common in the law of the state to which we give the name of Conflict of Laws. Some explanation is necessary. In most of the cases which come before the courts in Massachusetts, for example, the parties are American citizens residing in Massachusetts and the transaction or occurrence out of which the controversy arises took place in this commonwealth. But an increasing number of cases are coming before tribunals which involve a foreign element. One or both of the parties may be foreign; the transaction or some part of it may have taken place abroad; or one or both of the parties may reside in another state of the union or the transaction may have taken place in another state or with reference to the laws of another state. In such cases the court must ask whether and how far it is to apply the law of the foreign country or of the other state, and the principles by which it answers these questions are said to belong to the subject of Conflict of Laws. When the law was substantially the same in our several states and interstate business was not extensive the subject was of no great importance. Today, however, in view of the great volume of interstate business and of foreign trade, and in view of the increasing divergence in the laws of the several states due to the huge output of legislation and judicial decision in recent years; the subject has become one of great consequence as well as one of much difficulty. A like situation has arisen in Masonry. When Masonic law and custom was simple and alike in all substantial details in each of our states conflict of laws was not an item in Masonic jurisprudence. Today Masons are so numerous and so peripatetic and the law in most of our jurisdictions is becoming so minute, so detailed, and hence often so diverse, that serious questions of what the lawyer would term Conflict of Laws arise continually. Doubtless, so far as the lawyer's theories of Conflict of Laws are grounded on natural reason and not merely upon historical accident, they are available to the Masonic jurist where not in conflict with the Landmarks or with Masonic common law.

In general the lawyer holds that a man's status, opposition before the law, is governed by the law of his home. Yet if his home law puts him in a position unknown to the local law, it may not recognize the status, and even if the local law does recognize the status it does not follow that effect will be given to the legal results which it involves at home. If we may apply this analogy — on the theory that it represents natural reason and formulates human experience of the just way of solving a difficult problem — we may say that in the case put the Mason's

standing as a Master Mason is determined by the law of his home jurisdiction, and yet the jurisdiction where he seeks to visit, recognizing this standing, is not bound to give effect to the legal result involved at home, namely, the right to visit. He is in good standing by the law of his home jurisdiction, whose Masonic competency is admitted. But the policy of the local law requires that we refuse to give to that standing all the results which it involves at home. If such a solution is admissible under Masonic law, it is surely expedient, and the practical necessity of some such solution is a strong argument against an absolute right of visitation.

Mackey's fifteenth Landmark is thus stated: "No visitor unknown to the Brethren present or to some one of them as a Mason can enter a Lodge without first passing an examination according to ancient usage." In commenting upon this supposed Landmark he adds that it "refers only to the cases of strangers who are not to be recognized unless after strict trial, due examination, or lawful information." Hence the visitor may be vouched for and the examination may be dispensed with. There is some warrant for the claim of a Landmark here in the pronouncement of the Grand Lodge of England that the Landmarks are contained in the Master Mason's obligation. But after all the requirement of voucher or examination is a necessary consequence of the fundamental principle of secrecy. If we put secrecy as the Landmark, voucher or examination are but common-law or customary modes of giving it effect. It is important to recognize this not only because the practice of American jurisdictions varies, but because the great increase in the number of clandestine organizations in recent times and the ever-growing tribe of imposters render legislation on the subject expedient if not imperative, and it would be unfortunate if we were hampered by a Landmark. As to the first point, it may be enough to say that some jurisdictions take the phrase "lawful information" to mean that he who vouches for another must have sat with the other in a regular Lodge, while in other jurisdictions satisfactory evidence will suffice although the brothers vouching and vouched for have never sat together in Lodge. This divergence is not inconsistent with Mackey's claim of a Landmark. But the continually increasing reliance upon cards, receipts for dues, or diplomas is not unlikely to encroach upon it very materially and emphasizes the desirability of confining the absolute and unalterable requirement to the broad principle of secrecy. Nevertheless, examination or voucher are the established customary practice and, as in other matters of Masonic common law, legislative innovation ought to proceed cautiously and with assurance of sound reason for any change.

Doctor Mackey states his sixteenth Landmark in these words: "No Lodge can interfere in the business of any other Lodge nor give degrees to Brethren who are members of other Lodges." As in so many other cases, Mackey seeks to make a case for this Landmark analytically. "It is," he says, "undoubtedly an ancient Landmark founded on the great principles of courtesy and fraternal kindness which are at the very foundation of our institution." But Landmarks cannot be deduced from general principles in this way. Philosophy and logic may confirm history, but they cannot demonstrate a Landmark in the face of history. The conclusive objection to this supposed Landmark is that it assumes the established system of permanent Lodges with local jurisdiction which dates only from the eighteenth century. The second argument which Mackey brings forward is universal recognition in Masonic legislation. He says: "It has been repeatedly recognized by subsequent statutory enactment of all Grand Lodges." The remarks of Brother Moore in this connection are very pertinent: "It is the 'statutory enactments' which have made the so-called Landmark, and not the Landmark which has produced the statutes." In other words, the legislation of our Grand Lodges on this subject is not declaratory of a Landmark, but Doctor Mackey after studying the legislation was able to deduce a general principle underlying it, which he sought to set up as a Landmark. Together with all other rules that presuppose our modern Lodge system, it can only be a rule of Masonic common law.

We have here, however, a very important and difficult series of questions of Masonic Conflict of Laws. Although courtesy and fraternal spirit obviate many difficulties that might else arise, it is evident that they may not be relied upon entirely. Legislation has dealt with the matter everywhere as between the particular Lodges of the same jurisdiction. But as men move about so frequently and in such large numbers and as the volume and detail of

Masonic legislation increases conflict between the legislation or usage of different Grand Lodges becomes inevitable. Such controversies as those which have raged over the question of perpetual jurisdiction illustrate the possibilities involved. There must be some general principles by which we may be governed in the absence of legislation and by which we may be guided in shaping, interpreting, and applying legislation. The nature of the case calls for something more than courtesy and comity, and Mackey's principle of non-interference and of keeping hands off of those who are members of other Lodges while giving us some guidance is not sufficiently definite. No doubt it is dangerous to turn to the law of the land for analogies. If this is done too much an alien element may creep into Masonry which would be undesirable. But the problems of law are often the same, whether we look to the law of the state, the law of the church, or the law of a fraternal order. And, so far as the answers proceed on natural reason and not on history, so far as they are universal and not the results of special circumstance of the society in which they originated, the solutions arrived at in the one society, embodying experience in the attainment of justice in the elimination of waste and conservation of values by means of a rule — these solutions, I say, arrived at in one type of society may well afford valuable suggestions for the law giver in another type. Thus we may well supplement the principle of Masonic common law contained in Mackey's fifteenth Landmark with the further principles of exclusive competence of a sovereign to determine the status or legal position of those subject to its authority, of the independence of legal control from without involved in the very idea of sovereignty, and of recognition of rights duly acquired under the law of other sovereigns as a matter of comity, which human experience has established in connection with the legal regulation of the everyday affairs of life. But we must not be dogmatic. These are but principles by the light of which independent Masonic sovereignties may co-exist, as independent political sovereignties co-exist. Details are subject to legislation in which every jurisdiction ultimately must decide what it deems expedient.

The seventeenth Landmark in Mackey's system is thus stated: "Every Freemason is amenable to the laws and regulations of the Masonic jurisdiction in which he resides, and this although he may not be a member of any Lodge." In other words, it is said to be a Landmark that all Masonic bodies have jurisdiction over all Masons residing within their territorial limits, whether affiliated or unaffiliated, and if affiliated, no matter where they hold their Masonic membership. This alleged Landmark, as a Landmark, is open to the conclusive objection that it presupposes a territorial jurisdiction in Lodges, something which did not come into existence till well along in the eighteenth century. Brother Moore goes further and denies that territorial jurisdiction over foreign and unaffiliated Masons is Masonic law at all. He says: "If a Mason in good standing in a Lodge chartered by one of our American Grand Lodges were guilty of a Masonic offense in France made so by the French law, he would not and could not be tried by a Lodge under the Grand Orient of France for the offense. Nor would a member of a Lodge under the Grand Orient of France, who has been guilty of a Masonic offense made so by our law, here be tried in one of our Lodges, and much more so is it the case where unaffiliated Masons are concerned. The status of the Mason is determined not alone by the fact of his having been a Mason and becoming unaffiliated, but also by the relations between the jurisdictions under which he became a Mason, and that where he resides and has committed some Masonic offense. Some years ago nearly all the Grand Lodges in the United States broke off fraternal relations with the Grand Lodge of the State of Washington, because the latter had recognized certain negro Lodges. While that condition existed does anyone for a moment suppose that an unaffiliated Mason made in Washington state but residing in Massachusetts, who had committed a Masonic offense in the latter state, would have been tried for it in a Bay State Lodge?"

Perhaps a follower of Mackey might answer the last question by saying that it might depend on whether, after the severance of relations, the Washington made Mason was recognized as a Mason at all. As the point was that the Washington Masons were communicating Masonically with clandestine Masons, such an answer might well be returned. But in any event Brother Moore's next observation must be conceded: "This alleged Landmark," he

says, "illustrates very forcibly the danger of generalizing without noticing all the facts which go to make up the problem."

As a matter of common law, how far is there such a territorial jurisdiction over resident Masons, regardless of where made?

To understand Mackey's position and the position of Brother Moore, who criticizes Mackey and not only rejects the alleged Landmark — which undoubtedly we must do — but also denies that there is any such jurisdiction by virtue of territory at all — to understand the two positions, I say, we must turn to a burning question in jurisprudence generally as to jurisdiction over crimes.

There are four theories of criminal jurisdiction in the modern world. The first is the territorial theory, the theory of the *forum delicti commissi*, the theory that offenses are punishable and only punishable by the sovereign of the place where the offense is committed, without regard to the allegiance of the offender. This is the theory of Anglo-American law, and it is one to which our law has thus far adhered very obstinately so that it has given rise to some curious cases.

Two examples of the territorial theory of criminal jurisdiction as applied in Anglo-American law may be of interest in the present connection. In one well known case, an American editor in Texas wrote a libellous article concerning a Mexican. Afterward, going into Mexico, where his paper circulated, the editor was taken under process from a Mexican court and required to go before a Court of Conciliation and enter into a settlement with the person he had libelled. Thereafter he again libelled the Mexican in his paper and going once more into Mexico was prosecuted criminally for the libel. The American government insisted upon his release, asserting the principle of English and American law that crimes are only to be prosecuted in the territorial jurisdiction in which they are committed as a principle of universal law. In another well-known case, one person, standing upon the North Carolina side of the line between North Carolina and Tennessee, shot and killed another, who stood in Tennessee. The crime being complete in Tennessee according to the common law could only be prosecuted in that state. There could be no prosecution in North Carolina because the act did not take effect there. On the other hand, as the murderer was never in Tennessee, he could not be regarded as a fugitive from Tennessee justice and therefore could not be taken from North Carolina to Tennessee on extradition. This case shows strikingly the type of difficulties involved in the Anglo-American theory, difficulties which indeed are compelling our several states by legislation to adopt more liberal views of criminal jurisdiction.

The territorial theory grows out of our conception that there must be a trial by a jury of the vicinage where the crime was committed. Historically it is a feudal theory. Obviously, Mackey took it without question that the doctrine he found in our American law books was a principle of universal justice and so erected it as a Landmark.

A second theory is the personal theory, the theory of the *forum ligeantiae* or theory of the forum of allegiance. According to this theory, the sovereign to which the offender owes political allegiance has jurisdiction to deal with him for offenses done anywhere in the world. This is the Roman theory, and it is held very strongly in the modern world by France. Hence Brother Moore, whose studies in the Scottish Rite have led him to read the French authors, sees this principle of jurisdiction and rightly criticizes Mackey for overlooking it. But I think, with submission, Brother Moore is equally wrong in laying down that there is no territorial jurisdiction over Masonic offenses. The basis of my view that there is such a jurisdiction — not as a Landmark indeed, but as a matter of Masonic common law — will appear from the other two theories of criminal jurisdiction, which I am about to explain.

A third theory is the theory of self-preservation, the theory of the *forum laesae civitatis*, or theory of the forum of the injured state. According to this theory, if an offense, wherever committed, is an injury to any particular sovereign, if that sovereign can reach the offender, he may deal with him. For example, in a leading case a Frenchman in Switzerland forged German government securities. He then went from Switzerland into Germany. He could not be dealt with by the French on the theory of the forum of allegiance because he was not in France, and

could not be dealt with by Switzerland on the theory of the forum where the crime was committed because he was no longer in Switzerland. The German authorities, however, dealt with his case on the theory of the forum of the injured state, and this solution has generally been regarded as proper in Continental Europe. I will speak of possible Masonic applications of this theory in a moment.

Finally there is the theory of cosmopolitan justice, the theory of the *forum deprehensionis*, or forum of capture, the theory that when an offense has been committed anywhere in the world, by any person, no matter what his allegiance, any sovereign in the world who happens to be able to reach him, may deal with him in order to prevent failure of justice. The Italians insist in this theory. The English and Americans cannot adopt it because of our requirement of jury trial and producing of witnesses in court. Our mode of trial is in the way of proof by deposition. But as no such difficulties are in the way of Masonry, there would seem no reason why territorial jurisdiction should not be admitted, so far as the self-preservation theory or the theory of a cosmopolitan Masonic justice may require. In other words, we may agree with Brother Moore in rejecting Mackey's alleged Landmark of a territorial jurisdiction and yet may claim that there is such a jurisdiction as a matter of Masonic common law, along with the personal jurisdiction for which Brother Moore contends.

Suppose, for example, a Mason made abroad or made in another state whether unaffiliated or retaining his old membership, advertised his Masonic membership generally and thereupon so conducted himself as to bring scandal upon Masonry. Here there is an injury to the local Masonic sovereignty. There is good ground for it to interfere, and the person is before it where he can be reached. Masonic discipline can be given the same publicity which he has given his membership. Are we to say this cannot be done? Again, why should we not hold here to a doctrine of cosmopolitan justice? In such a case the Masonic sovereignty on the spot may be far the best able to try the case and to apply the remedy. Are we to take so narrow a view of Masonic justice as to deny this jurisdiction? It seems to me that, if nothing prevents, the most liberal view is perfectly open in Masonic jurisprudence and hence that Masonic common law admits of both territorial and personal jurisdiction over Masonic offenses. But, mark you, the territorial jurisdiction ought to be over general Masonic offenses, over offenses which injure Masonry generally and hence are either a danger to the local Masonic sovereign or are within a principle of cosmopolitan justice, and not offenses against mere local regulations. As the lawyer would say, they ought to be *mala in se* — not *mala prohibita*.

Mackey is generally very sound as to Masonic common law, where his wide experience of what actually obtained in practice, his keen sense of justice, and his sound common sense were safe guides.

But how about Mackey's proposition as to territorial jurisdiction to try for non-affiliation? Brother Moore rejects this idea wholly. His argument is "If non-affiliation is a Masonic offense as is asserted by Mackey, every Mason wherever he may be, is liable to be tried by any Lodge in whose territorial jurisdiction he resides. This would, indeed, be a strange and, it would seem, unbrotherly proceeding. It is quite true that the duty of the Mason to remain a working member may be traced to the ancient Gilds, but to raise to the dignity of a Landmark the proposition that every man once initiated must keep his dues paid and thereby keep up his affiliation wherever he may be on the surface of the earth or if he does not or becomes unaffiliated by dimit, he is guilty of a Masonic offense for which he may be tried like a criminal wherever he may be found, seems quite unmasonic. The unaffiliated Mason, according to that principle, bears on him the mark of Cain and everyone who finds him can slay him! There is nothing to show this is a Landmark, and against such a position is the conclusive argument that the permanent local Lodge is an eighteenth-century institution."

Moreover Mackey's idea that non-affiliation is necessarily, inevitably, and unalterably a Masonic offense is not merely uncharitable, it is very unseemly. While bestirring ourselves to collect dues to meet the expenses of the Lodge, we are apt to forget some things of much more importance than the merely financial side of Masonry. Every organization, no matter how high its purposes, encounters this obstacle to the attainment of its ideals as it becomes prosperous. Unhappily we cannot attain great things spiritually without a certain material foundation. And it is very

easy, in our zeal for the former, to forget that the latter is but a means and to make it consciously or subconsciously an end. At the end of the Middle Ages the church, with its wonderful spiritual heritage, very nearly forgot its essential character as something not of this world in the press of temporal interests which were but the byproducts of its true activities. The Reformation was the result. Let us not make the same mistake. For in our proper zeal to punish wilful evasion of the duties of membership in a Lodge, we may easily fall into the grave error of measuring too much by a money standard and may easily commercialize the Fraternity. We may grant that the unaffiliated are not exempt from Masonic discipline to the extent that their conduct, ascribed by the world at large to Masons, may endanger the good report of the Order, and yet we may not be bound to regard non-affiliation in and of itself as an offense. Mackenzie's language on this subject is noteworthy. He says: "That a Mason, by non-affiliation, does not relax his fealty to the Craft at large or exempt him[self] from censure for Masonic offenses from the Grand Lodge whence his certificate has been derived." I think we may well add that the Masonic jurisdiction where he resides may deal with him, at least in case his Masonic offenses committed in that jurisdiction are injurious in their effects to Masonry in that locality. But it is quite a different proposition to lay down that he must absolutely affiliate at all events, and that his failure to keep up the payment of dues so long as he lives is in and of itself to be branded as an offense.

Mackey's eighteenth Landmark has to do with the qualifications of a candidate. Mackey states these qualifications thus: "He must be a free-born man, and of full age; . . . he must not be mutilated, a woman, an idiot, or a slave." This alleged Landmark was considered in part in a former lecture.^[2] So far as it requires the candidate to be a man, free, free-born, and of the age of discretion by the law or custom of the place, we may accept it. But the requirement that the candidate be whole or un mutilated is not so clear. There is, indeed, more to be said for Mackey's position than some have perceived. It is not to be denied that primitive society looked upon the man who was not whole very differently from the way in which we now regard him. In civilized society there is a place for him. Serious physical injuries or physical defects will not prevent him from being a useful and a happy member of society. Very likely they may involve little more than inconvenience to the afflicted person. In primitive society the situation was very different. The man who was not physically whole was at least of no use to society and was very likely to be a serious incumbrance. If he was congenitally defective society in self-defense simply put him out of the way. If the defect was acquired later the defective man, if he was able to drag out a miserable existence, very likely had to associate with the women and children through inability to take a man's part in the community. He had no place in the men's house and hence primitive rites and secret societies were not favorably inclined toward him. Thus there was an immemorial prejudice against the physically defective which left traces even in so enlightened an institution as the Roman law and even in so unworldly an institution as the canon law. This immemorial prejudice against the mutilated or defective gains additional support in Masonry from the requirements of the operative art and from logical arguments based on the requirements of our ritual. Immemorial prejudice, growing out of the circumstances of primitive society, the practice of ancient rites, the requirements of the operative art, logical deduction from our ceremonies, and a certain amount of Masonic usage combine to make a formidable case. Most jurisdictions in the United States have accepted or assumed some requirement of wholeness, and our American Grand Lodge proceedings are full of discussions as to just what degree of mutilation will disqualify. Few things have been more debated in Masonic common law. But much as may be said for some such requirement as an ancient custom of the Craft, the practice in England is conclusive that the doctrine as to wholeness is not even universal Masonic common law. So far from admitting or regarding it as a Landmark, the English Masons have never insisted on physical perfection as so many jurisdictions do in America and our American distinctions and discussions are quite unknown to them. At most, therefore, this is but common law, and any jurisdiction which feels disposed to take a liberal view of the subject in the light of the conditions of modern civilized society and of the purposes and ideals of Masonry is clearly entitled so to do.

The remainder of Mackey's list of twenty-five Landmarks were considered in a prior lecture,^[3] and require nothing further.

It would be unjust to close this view of the leading principles of Masonic common law without a tribute to Doctor Mackey. It has been necessary to criticize his theories at many points. But this necessity of criticism should not blind us to the permanent value of his work in formulating the main ideas that underlie Masonic law.

Where he erred chiefly was in assuming too rigid a body of fundamental law. But this was a natural error for an American in the nineteenth century. American lawyers of that time believed that an ideal version of our traditional Anglo-American legal system was, as it were, ordained by nature; they believed that the sections of our American bills of rights simply declared universal and eternal principles inherent in the very idea of free government. Hence it was not unnatural for an American Mason of that time to assume that an ideal development of the generally received customs of the Craft in America was the eternal jural order in Freemasonry. We may reject this idea and yet recognize the invaluable service which Mackey performed for us by working out and formulating the leading principles of our customary law.

1. "Masonic Common Law — Part I," THE BUILDER, April, 1917, p. 117. [↵](#)
2. "The Landmarks," vol. III, p. 211. [↵](#)
3. Idem. [↵](#)

***The Builder*, April 1918 Vol. 4 No. 5**

MASONIC JURISPRUDENCE

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4. MASONIC LAW MAKING

NO idea is today more familiar than the idea of making law. Wherever any sort of sovereign authority exists, men take for granted that it will proceed to justify its existence by copious legislation and assume as a matter of course that the quantity of its legislative output is the measure of its efficiency. This was not always true. Indeed conscious law-making on any large scale is a wholly modern phenomenon not only in the state but in those human organizations which exist to conserve other than political values and secure other than political interests, but are organized along lines analogous to those which govern politically organized society. Hence by way of introduction it is worth while to give some account of the development of legislation in the legal systems of modern states.

Five stages may be perceived in the development of legislation as the everyday agency of law-making: (1) unconscious legislation in the period of customary law, (2) declaratory legislation in the period when the traditional law is reduced to writing, (3) selection and amendment when by the political union of peoples with divergent customs it becomes necessary to choose in declaring the custom of the new whole, (4) conscious constructive law-making as an occasional expedient, at first to meet political exigencies, but gradually to effect important changes here and there in the legal system in great emergencies, and (5) habitual legislation as the ordinary agency of development, usually culminating in codification of the law as a whole.

In the first stage of legal development. the stage of traditional modes of decision based upon repeated decisions by supposed divine inspiration, there is not a little unconscious law-making. The case in hand may not be exactly like one which has arisen previously, but those who have the custody of the tradition may assimilate it thereto. Moreover the custodians of the tradition may warp it more or less unconsciously to meet new needs. The laws obeyed are regarded as having always existed. Men are not conscious of the innovations which creep in from time to time and in the best of faith confuse new usages with the old. Thus for a time law-making is a purely subconscious process.

Later we come upon a stage of declaratory legislation. In the beginnings of law all legislation, as such, is of this type. It is not an authoritative making of new law — it is an authoritative publication of law already existing. All the so-called ancient codes are of this type. Indeed the prologue to the laws of Manu, reciting how Bhrigu, who had

learned the tradition from Manu, authoritatively dictated them to the sages, the prologue to the Senchus Mor, in the Ancient Laws of Ireland, telling how the bards were brought together and recited the traditional laws to St. Patrick, and the prologue to the Salic Law, telling how chosen men from the different villages were brought together and discussed among themselves the traditions, as they remembered them, till they arrived at an authoritative text to be reduced to writing — such prologues tell the story of primitive legislation.

Conscious law-making begins when it becomes necessary to make choice between conflicting traditions or when conflicting traditions must be harmonized through amendment. This necessity arises whenever attempt is made to reduce the tradition to writing or to compare and re-edit different versions of the written tradition. It becomes acute when attempt is made to declare the common custom of a political unit formed by the union of formerly distinct tribes or peoples with customs of their own. An example is to be seen in the laws of Alfred. He tells us that he had to pick and choose and even amend, but adds "I durst not set down much of my own." From this it is an easy stage, but one taken only gradually and occasionally, to pass to conscious constructive law-making. The first step in this direction comes when men perceive that by changing the written record of the law they can change the law which theretofore had been held eternal and immutable. Even when this discovery is made, however, after a brief law-making ferment, the law settles back to a process of growth through development of tradition, and it is not until the maturity of legal systems that we enter upon a real stage of legislation.

A similar development may be seen in Masonic lawmaking, and it will conduce to sounder appreciation of our written law to look at its history in this way. It is true a wholly different view of the subject became classical in Masonic literature. Thus Mackey, after considering the landmarks, says:

"Next to the unwritten laws, or Landmarks of Masonry, come its written or statutory laws. These are the 'regulations' as they are usually called, which have been enacted from time to time by General Assemblies, Grand Lodges, or other supreme authorities of the Order. They are in their character either general or local."
(*Jurisprudence*, chapter 2.)

We are then told that the "General Regulations are those that have been enacted by such bodies as had at the time universal jurisdiction over the craft," and the year 1721 being fixed as the decisive point beyond which such general regulations were no longer possible because there were no longer general assemblies with general powers, ten authentic and authoritative acts of general Masonic legislation down to 1721 are set forth as follows: (1) The "Old York Constitutions of 926" (for which he gives Oliver's abridged version of the articles and points from the Halliwell MS.); (2) the "Constitutions of Edward III" (taken from Anderson's *Constitutions*, 2d edition); (3) the "Regulations of 1663"; (4) the "Ancient Installation Charges" (taken from Preston's *Illustrations*); (5) the "Ancient Charges at Makings" (also from Preston); (6) the "Regulation of 1703" (given on the authority of Preston); (7) the "Regulations of 1717" (given on the same authority); (8) the "Regulations of 1720" (an authentic regulation, adopted at a quarterly communication of the Grand Lodge of England, June 24, 1720); (9) the "Charges Approved in 1722" (presented to the Grand Lodge of England in 1721 by Anderson and Desaguliers, adopted March 25, 1722, and published in the first edition of Anderson's *Constitutions*, 1723); and (10) the "General Regulations of 1721" compiled by George Payne, Grand Master in 1720, approved by the Grand Lodge of England in 1721, printed in the first edition of Anderson's *Constitutions*. Thus, it will be noted, we are asked to believe in a series of acts of Masonic legislation, wholly analogous to a codification of the law or the enactment of a new paragraph of the written law by a modern American Grand Lodge, extending from the tenth century to the eighteenth. It is the first step in a proper understanding of Masonic Jurisprudence to discard this idea completely. There were no such assemblies as this conception of the MS. constitutions postulates down to 1717, and it was not till the eighteenth century that men began to think of the wholesale making of laws out of whole cloth as a normal, much less a legitimate process.

Thanks to the studies of Hughan and Gould and Begemann, we know much more about the MS. constitutions than was known in 1859, when Mackey's *Jurisprudence* was written. Today no serious Masonic scholar believes that constitutions "were framed at the City of York in the year 926" or that the constitutions so framed

"were seen approved and confirmed in the reign of Henry VI." The unconfirmed authority of Anderson and Preston, moreover, will not suffice to establish legislation of the first quarter of the eighteenth century. What we find is not a uniform tract of law-making, analogous to that set forth in the statutes of the realm, but rather a written tradition from the end of the fourteenth century, obviously based on an older oral tradition, changing and developing slowly in the course of successive transcripts, and laid hold of on the rise of the Grand Lodge system in the eighteenth century as the basis of Masonic law. In other words, we may see an unconscious development in the (Masonically) pre-historic period of oral tradition, declaratory law-making when in the middle ages the traditional regulations were reduced to writing, selection and amendment from time to time as the MSS. were recopied and re-edited, conscious constructive law-making as an occasional expedient in the fore part of the eighteenth century in the Mother Grand Lodge, and finally an era of habitual legislative law-making in the nineteenth century which has reached its highest development in America. Gould's conclusion that the earliest of our authentic MSS. shows us "a gild or fraternity which commemorated the science without practising the art of masonry" seems well founded. It was as far back as the fourteenth century a "fraternity from whom all but the memory or tradition of its ancient trade had departed." Hence, as Gould puts it, "many of the old laws or disciplinary regulations of the earlier Masons became fossilized or petrified." "They passed out of use, though retaining their hold on the written and unwritten traditions of the society" (*Concise History*, Am. ed. 308). When, in the eighteenth century, organized Grand Lodge Masonry became a world-wide institution, these traditions had to be put to a new use. Instead of being read to or shown to the initiate, they had to be transformed into a body of law for a society with new values to conserve and new interests to secure. In this respect Mackey's instinct was sound when he fixed upon Payne's General Regulations of 1721 as the turning point.

Why should the Masons of the last half of the eighteenth century and of the first three quarters of the nineteenth century have deceived themselves so completely upon a matter of such consequence? One reason, and perhaps the chief reason, is to be found in eighteenth-century ideas of codes and of law-making. For one thing, the eighteenth century was an age of absolute governments. The local, feudal, decentralized governments of medieval Europe had definitely broken down. In England the Wars of the Roses had demonstrated that the general security called for something stronger and the Tudors and Stuarts had furnished it, howbeit the struggles against the Stuarts had preserved for the modern world the sound kernel of the medieval polity. In France, which in the days of Louis XIV had furnished the model for eighteenth-century politics, centralized royal government had triumphed. The Roman *Corpus Iuris*, compiled in sixth-century Constantinople, gave us Byzantine ideas of law as the product of the sovereign will, and the Byzantine theory of law, expounded by

French publicists in the seventeenth and eighteenth centuries, accorded so exactly with what men saw before their eyes that it scarcely needed the aid of an idea that Roman law was embodied reason to give it currency. The time was one of codes and legislative programs. Men spoke of the "codes" of the Anglo-Saxon kings and thought of the traditional law of English-speaking peoples as a body of statutes worn down by time. It was the fashion among historians to attribute all legal and political institutions to the deliberate invention of this or that ruler. A sounder view came in with Hegel's philosophy and the rise of the historical school in the nineteenth century. But that view did not reach Anglo-American scholarship at once and did not become significant in American thought till some time after the Civil War.

Again we must remember that the eighteenth century thought of itself as the age of reason. Men had absolute faith in reason. They believed that they could work out everything by their own unaided reason without troubling to do the futile work of investigating details. Moreover they believed firmly in what they called "natural law." They conceived that what ought to be and what was were to be made synonymous; that whenever one could show a moral principle that ought to govern conduct he had thereby shown a legal principle that did govern it. This attitude led naturally to confusion of what ought to be and what was, and it was an easy transition from what one would like to think to what ought to be. Thus much of eighteenth-century historical writing was ultra-subjective. It is

a record of what the writer thought *a priori* must have been the course of history, assuming that to show what ought to have been sufficiently demonstrated what was. When, therefore, Gould says of Preston that he was "a Masonic visionary who — untrammelled by any laws of evidence wrote a large amount of enthusiastic rubbish, wherein are displayed a capacity of belief and capability of assertion which are hardly paralleled at the present day by the utterances of the company promoter, or even of the mining engineer," he is but saying that Preston was a child of his time. The need of fortifying the Grand Lodge system by an appeal to antiquity was strong. Men were not trained in historical method. Rather they relied on their individual reasons for all things, and what they took to be reason was often no more than enthusiasm and desire.

Thus the first five of Mackey's ten forms of the old written law of Masonry take on a wholly different aspect. The sixth and seventh are Preston's generalizations from the result of the establishment of the Grand Lodge system. The principles which he formulates in these so-called regulations were thoroughly established in his day. Characteristically he assumed that they must have resulted from deliberate law-making and, fixing the terms as accurately as he could, he reported them circumstantially as to the time and place of their adoption, exactly as the eighteenth-century historian could report the precise words spoken in a council of war centuries before and report out of his own reason the details of intrigues and conspiracies, of debates of secret councils, and even of the communings of a king or commander with himself. Indeed the apocryphal character of the so-called regulation of 1703, which contradicts all that we know of Masonry from the fourteenth to the eighteenth centuries, suggested itself to Mackey, who sought to avoid the difficulty by interpretation in a footnote. The remaining four are genuine examples of legislative declaration of existing law, with minor emendations, or of legislative innovations to secure new interests and conserve new values.

Today the written law of the craft in any particular Jurisdiction, which Mackey would call its local regulations, is made up commonly of four elements: (1) constitutions of the Grand Lodge, which are usually compiled and edited from time to time and thus kept in organized, systematic form exactly as a state of the Union compiles its legislation, or else after a definite compilation are held in that form by a practice of introducing new legislation in the form of amendments of or additions to this or that paragraph; (2) decisions of the Grand Lodge on appeal from the Masters of subordinate (or constituent) lodges or from the lodges themselves; (3) edicts of the Grand Master; and (4) answers of the Grand Master to inquiries as to the law submitted to him, or decisions of the Grand Master upon questions asked by Masters of lodges with reference to matters pending before them or their lodges. To understand these we must turn to the Roman law where these forms of law developed and got the names which still attach to them not only in the law of the state but in Masonic law.

A Roman emperor made or declared the law by constitution, by decision (decree), by edict, and by rescript or letter. He had this power, in legal theory, because at his accession the Roman people had specially conferred it upon him for his life by a special act of legislation. Down to the reign of Diocletian, at least, in political theory, the Roman state was a republic. Sovereignty was in the Roman people. The emperor was only "princeps," first citizen, a citizen upon whom the Roman people had devolved their sovereignty for the time being by an act of legislative authority upon an extraordinary occasion. Later, in Byzantine times, the emperor came to be thought of as the repository of sovereignty and the source of law. But in classical times he simply wielded the powers of the sovereign Roman people which had been devolved upon him. Accordingly as the Roman people in their legislative assembly could enact a statute (*lex*) the emperor, wielding the legislative power of the people, could enact a law. What he thus established (*constituit*) by virtue of the legislative authority devolved upon him, was called a constitution (*constitutio*). Thus in Roman law a constitution is a rule established by legislative act. And such precisely is a constitution in Masonry. Only with us the legislative power of the fraternity in each jurisdiction has devolved upon the Grand Lodge. Hence what the Grand Lodge establishes and promulgates as a rule of law, by virtue of its legislative authority, is a constitution. At the end of the eighteenth century, when sovereign peoples began to adopt for themselves a fundamental law, fixing the framework of government and imposing limitations upon the several

organs of government so set up, the term constitution came to be applied to such enactments of the sovereign people. Thus it has come into use in America, and to a less extent elsewhere, in the sense of a superior fundamental law, to which ordinary acts of the several departments of government or of the agencies of a society must yield, a conception growing out of the circumstances of colonial government in America prior to the Revolution, where executive and legislative acts were subject to the measure of the colonial charter. In Masonic law we preserve the older use of the term, speaking from the fore part of the eighteenth century, when the modern political written constitution was quite unknown.

Another way in which the Roman emperor made or declared law was by his decisions in causes taken to him on appeal or determined by him directly. These were called decrees. For the Roman magistrate had no power to render a judgment of the strict law. This could be done only by judices or arbitrators, chosen for the case in hand, somewhat as the common law demands the verdict of a jury as the foundation of a judgment. But the magistrate could decide certain things extra ordinem and render a decree, and this power, along with the other powers of the Roman magistrates, was specially devolved upon the emperor at his accession. In Masonry, the power of determining appeals, as an attribute of sovereignty — for so it was regarded when men forgot how the Roman emperors came by it — devolved upon the Grand Lodge, to which in the eighteenth century sovereignty definitely passed.

Still another way in which the Roman emperor made or declared the law was by his edict. The power of issuing an edict belonged originally to the superior magistrates of the Republic and was exercised chiefly by the praetors or judicial magistrates. Strictly the edict was a pronouncement by the magistrate of the course which he proposed to take in the administration of his office. It was a sort of post-election platform from which the citizen might know what to expect from the officer in question. But this easily became a law governing the administration of his office, and when the magisterial power was devolved upon the emperor the power of issuing an edict came to be in substance a power of issuing general orders governing matters of administration. The term was so used in French public law in the seventeenth and eighteenth centuries and was generally used in this sense at the time when Masonic law was formative. In this same sense we use it in Masonry. An edict is a general administrative, as distinguished from a judicial order, prescribing the conduct of some matter of administration, on prescribing the conduct of Masons in some matter of administrative cognizance. A good example may be seen in the edicts of Grand Masters in different jurisdictions against the use of cipher rituals.

Finally a Roman emperor made or declared the law by means of rescripts. The rescript or letter was an answer which the emperor returned to a question put to him by a judge or magistrate who had a cause pending before him. In the classical Roman polity the judices who had a cause before them were advised as to the law by the expert opinion of a jurisconsult. In the imperial polity the emperor was taken to be the most authoritative jurisconsult and the practice of submitting questions for his authoritative opinion as to the law was a natural result. This practice passed to the canon law, where the Papal rescripts had similar authority, and was well known to the law of continental Europe in the eighteenth century. Naturally it came into Masonic practice along with other institutions of the time when, in the formative period of Grand Lodge Masonry, a universal polity had to be set up rapidly. The decisions of the Grand Master in answer to questions might very well be called rescripts, exactly as his administrative general orders are called edicts. They are not decisions in a judicial sense, they are authoritative opinions of the most authoritative jurisconsult of the craft for the time being. Being mere opinions there is no impropriety in the practice of many Grand Lodges to which the Grand Master regularly reports his opinions for review. His decision is not reviewed. Indeed Mackey seems justified in his position that the decisions of a Grand Master as such are not or at least ought not to be reviewable. In legal theory what happens might be explained thus: The opinion of the Grand Master upon the point of law involved in his answer is considered and the doctrine which it announced is given the force of a constitution by the approval of the Grand Lodge or else the doctrine is rejected as a rule for the future and some other rule given legislative authority.

It will be noted that of the four forms of making or declaring the law which were in use by the Roman emperor, two are appropriate to the Grand Lodge and two to the Grand Master. In the later Roman imperial polity all the powers of sovereignty were in the emperor. As the Institutes put it, his will had the force of law. But along with the imperial Roman conceptions, familiar to the time through the writings of publicists based on Justinian's law books, another set of conceptions were familiar to Englishmen at the time when Masonic legal institutions were formative. The memory of the contests with the Stuart kings was still fresh and in the course of that contest English lawyers had resurrected and furbished up many ideas that belonged to the polity of the Plantagenets. Thus the British constitution in the eighteenth century was a superposition, as it were, of what were then modern ideas and institutions upon the older and radically different ideas and institutions of medieval England. As a result the balance was maintained chiefly by custom and precedent and respect for traditional lines between authorities and magistracies with large potentialities of theoretical jurisdiction. Experience gradually settled the lines and respect for precedent established them. The same phenomenon is to be seen in the development of Anglo-American Masonic polity. Legislation by general regulations or constitutions and the power of judicial decision on appeal, with the incidental power of so declaring the law, became functions of the Grand Lodge. The more nearly administrative functions of issuing edicts and rendering what may fairly be called rescripts became functions of the Grand Master. They can hardly be said to be common-law powers in the same sense as those universally customary prerogatives which Mackey sought to establish as Landmarks. No doubt Grand Lodge legislation may interfere, as it sometimes has done, to abridge or modify them. But it is significant that with the example of the separation of powers in American public law constantly before them, American Masonic lawyers have acquiesced in and developed a system of law-making proceeding on radically different lines and originating in the law books of Rome.

Direct, deliberate law-making by constitutions is the type of Masonic law-making that calls chiefly for our attention. Maine tells us that "the capital fact in the mechanism of modern states is the energy of legislatures." True, the lawyer is somewhat skeptical. He doubts with good reason the possibility of achieving by law more than a small fraction of what the promoters of new laws confidently expect. But the layman's faith in the efficacy of legislative law-making is unbounded and there is no evidence of abatement of the huge annual output of our political law-making machinery. There are many causes behind this phenomenon. But one is of special significance for Masonry and is behind a similar excess of zeal for legislative law-making in too many of our jurisdictions. The theory that law is the will of the sovereign, that a sovereign democracy, or its representatives or delegates in its name, can make law by the simple process of translating its will for the time being into chapters and sections, the magic words "be it enacted" justifying all that follow, arose by applying to sovereign peoples the ideas which had been worked out with reference to absolute personal sovereigns. The will of the emperor had the force of law; hence the will of the people is to have the force of law. But a confusion was involved here. The emperor owed it to his subjects to use his will rationally when willing law. The power to give his declarations of will the force of law did not absolve him from obligation to measure the content of those declarations by reason. Our fathers were conscious of this with good reason and so sought to limit law-making and give security against arbitrary and capricious action by bills of rights. But these securities are available only within comparatively narrow limits. So long as the theory of law as will prevails, the flood of law-making will continue.

In American Masonry we have very generally a similar situation, as has been said, for a like reason. For one thing, we have all been trained in the theory that what we will collectively or in sufficient mass to make a majority is law in substance and only needs a mechanical process of receiving the legislative guinea stamp to be law in form. It is very easy to transport this conception to every other connection in which the word law appears. Is there Masonic law? Then it is to be made by the will of the Masonic sovereign. Have we a sovereign Masonic body? Go to, let it justify its existence by making laws. Such ideas confuse exercise of the will as a means and exercise of the will as an end. The means of making law is the declared will of the sovereign. But the end of making law is not to enable the sovereign to declare his will. The end is to conserve values and to secure interests. Delicate processes of weighing

values and cataloguing, appraising, and balancing interests must be gone through with before the matter is ripe for the declaring will.

Having no bills of rights in Masonry and hence nothing beyond a handful of vaguely defined Landmarks to restrain him, what then are our barriers against the ravages of the zealous, energetic, ambitious Masonic law-maker? Legal barriers there are none. But some of the most sacred interests of life have only moral security and on the whole do not lose thereby. For example, the claims of husband and wife respectively to each other's society and affection are left as between the two with no other security than the moral sense of the community. It is important to ask, therefore, how far there are agencies for focusing the moral sentiment of the craft upon the Masonic legislator and making it an effective moral check.

One such agency, which has been of no little service, is the report of the Committee on Correspondence, whereby in so many jurisdictions the law-making of the Masonic world is reviewed, criticized, and adjusted, if possible, to general theories of Masonic law. These reports vary greatly in value. But by and large they are inestimable repositories of Masonic law. Moreover it must needs give the Masonic innovator pause when he reflects that what he does must run the gauntlet of critical scrutiny by veteran reviewers upon the Committees on Correspondence of a majority of our jurisdictions. Another restraining influence is coming forward with the development of Masonic study. Nothing is so dogmatic as ignorance. A better and more general acquaintance with the history, philosophy, and legal traditions of the craft is certain to make our law-makers more cautious, more intelligent, and more effective. Such comparative studies in Masonic legislation as those already begun in *The Builder* [1] are likely to do much for intelligent law-making where library facilities are small and law-makers are zealous. But above all things we must rely upon the principles of Masonry. Let us remember Krause's formula: "Law is the sum of the external conditions of life measured by reason." Our measure is to be reason, not will, and all the lessons and symbols of the craft are eloquent of measurement and restraint.

In conclusion, let me repeat the disclaimer with which I began. I have not sought to expound the law of the craft at large or of any jurisdiction in particular. I have sought rather to consider how far there may be said to be such a thing as Masonic jurisprudence, what materials are at hand for an organized body of knowledge that may be called appropriately a science of Masonic law, what general principles may be found for such a science, and in particular how far the problems of legal science generally may be found in and their solutions may be applied to the law of our craft. So studied, the subject of Masonic jurisprudence has great possibilities which are as yet scarcely opened. The ambitious Masonic student who essays any of its problems as he would a problem of the everyday law, going through our Grand Lodge proceedings as he would the legal sources, using our texts as he would a legal text book, reasoning from our traditions as he would from the body of written tradition we call the common law, will not only be abundantly repaid but will do a service in helping to make Masonic jurisprudence a reality.

1. Advancement vol. III, p. 60.

Affiliation, vol. III, p. 9.

Ballot for the Degrees, vol. III, p. 70.

Dimits, vol. III, p. 134.

Physical Qualifications for Initiation, vol. III, p. 2~. [↩](#)

***The Builder*, November 1918 Vol. 4 No. 11**

THE PHILOSOPHY OF MASONRY

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FIVE LECTURES DELIVERED UNDER THE AUSPICES OF THE GRAND MASTER OF MASSACHUSETTS, MASONIC TEMPLE, BOSTON

3. GEORGE OLIVER

KRAUSE'S philosophy is concerned chiefly with the relation of Masonry to the philosophy of law and government. Oliver's philosophy of Masonry deals rather with Masonry in its relation to the philosophy of religion. In order to understand this we need only note that Krause was by profession a philosopher and that the main work of his life was done in the philosophy of law and of government while, on the other hand, Oliver was a clergyman. As in Preston's case, Oliver's general philosophical ideas came to him ready-made. He flowed with the philosophical current of his time. He did not turn it into new channels or affect its course as did Krause. Hence here, as with Preston, we may conveniently consider Oliver's philosophy of Masonry under three heads: 1. The man; 2. The time; 3. His Masonic philosophy as a product of the two.

1. The man. George Oliver was born at Pepplewick in the county of Nottingham, November 5, 1782. His father was a clergyman of the established church and his mother was the daughter of a country gentleman. Hence he had the advantage of a bringing up under conditions of culture and refinement. He was educated at Nottingham and made such progress that at twenty-one he was made second master of the grammar school at Caistor in Lincolnshire. Six years later he was made head master of King Edward's grammar school at Great Grimsby. In 1813 he took orders but continued to teach. In 1815 he was given a living by his bishop as the result of an examination and at the same time, as the phrase was, was put on the boards of Trinity College, Cambridge, as a so-called ten-year man. That is he was given ten years in which to earn his degree. Thus in 1836 he was able to take his degree of doctor of divinity. In the meantime he was successively promoted to parishes of more and more importance till he became rector of Wolverhampton and prebendary of the collegiate church. In 1846 the lord chancellor gave him an easier and more lucrative living. He died in 1866 at the age of eighty four.

Beginning in 1811 Oliver was a diligent student of and a prolific writer upon antiquities, particularly ecclesiastical antiquities and his writings soon brought him a high reputation as an antiquary. It is worth while to give a list of the more important of these books since taken in connection with the long list of his Masonic writings it will afford some idea of his diligence and activity. I give only those which have been considered the more important.

1. *History and Antiquities of the Collegiate Church of Beverley*
2. *History and Antiquities of the Collegiate Church of Wolverhampton*
3. *History of the Conventual Church of Grimsby*
4. *Monumental Antiquities of Grimsby*
5. *History of the Guild of the Holy Trinity, Sleaford*
6. *Druidical Remains near Lincoln*
7. *Guide to the Druidical Temple at Nottingham*
8. *Remains of the Ancient Britons between Lincoln and Sleaford*

To these must be added a great mass of papers and notes on antiquarian matters published between 1811 and 1866. And be it remembered the author was, while most of these were writing, a teacher studying during his leisure hours in preparation for orders and later for his degree and when the remainder were written was rector of an important parish, a magistrate, a surrogate for the bishopric of Lincoln and a steward of the clerical fund for his diocese. This sounds like one man's work and a good measure at that. To it, however, we have to add a Masonic literary career even more fruitful and more enduring in its results.

Oliver was made a Mason at the age of nineteen. This statement, startling to the modern Masonic ear, requires explanation. As Masonic usage then stood a "lewis," that is the son of a Mason, might be initiated by dispensation before he came of age. The privileges of a lewis have never been defined clearly. He was supposed to have a right of initiation in precedence over all other candidates. Also in England and France he was supposed to have the right to be initiated at an earlier age, namely eighteen. The constitutions are silent on this point but the traditional custom was to grant a dispensation in the case of a lewis after that age. It is hard to say how far this usage has ever obtained in America. At present it is not recognized. But there is evidence that it obtained in the eighteenth century as, for example, in the case of George Washington who was initiated at the age of twenty. At any

rate Oliver became a Mason in this way at the age of nineteen being initiated by his father in St. Peters Lodge at Peterborough in 1801.

Oliver's father was a zealous and well-informed Mason and a ritualist of the literal school, that is of the type who regard literal expertness in ritual as the *unum necessarium* in Masonry. Accordingly Oliver was thoroughly trained on this side — which indeed is indispensable not only to Masonic advancement but, I suspect, to Masonic scholarship — and as a result of his thorough knowledge of the work and his tireless activity his rise in the Craft was rapid.

In 1809 Oliver established a lodge at Grimsby where he was the master of the grammar school and chiefly by his exertions the lodge became strong and prosperous. He was master of that lodge fourteen years. Thence successively he became Provincial Grand Steward (1813); Grand Chaplain (1816); and Deputy Grand Master of Lincolnshire (1832). The latter office he held for eight years. It should be remembered that the post of Provincial Grand Master was reserved in England for the nobility. It is interesting to know in passing that the Grand Lodge of Massachusetts gave him the honorary title of Past Deputy Grand Master.

The list of Oliver's Masonic writings is very long. He is the most prolific of Masonic authors and on the whole has had the widest influence. He began by publishing a number of Masonic sermons but presently as one may suspect by way of revolt from the mechanical ritualistic Masonry to which, as it were, he had been bred he turned his attention to the history and subsequently to the philosophy of the Craft.

His first historical work is the well-known "Antiquities of Free Masonry: comprising illustrations of the five grand periods of Masonry from the creation of the world to the dedication of King Solomon's temple." This was published in 1823.

Then followed in order:

2. *The Star in the East*, his first philosophical work, designed to show the relation of Masonry to religion.
3. *Signs and Symbols*, an exposition of the history and significance of all the Masonic symbols then recognized.
4. *History of Initiation*, twelve lectures on the ancient mysteries in which Oliver sought to trace Masonic initiation and ancient systems of initiation to a common origin; a matter with respect to which recent anthropological and sociological studies of primitive secret societies indicate that he may have hit the truth much more nearly than we had been supposing of late.
5. *The Theocratic Philosophy of Masonry*, a further development of his ideas as to the relation of Masonry to religion.
6. *A History of Free Masonry from 1829 to 1840*, intended as an appendix to Preston's *Illustrations of Masonry* which he had edited in 1829.
7. *Historical Landmarks and Other Evidences of Masonry Explained*, by far his greatest work, a monument of wide reading and laborous research.
8. *Revelations of a Square*, a bit of Masonic fiction.
9. *The Golden Remains of the Early Masonic Writers*, an elaborate compilation in five volumes.
10. *The Symbol of Glory*, his best discussion of the object and purpose of Masonry.
11. *A Mirror for the Johannite Masons*, in which he discusses the dedication of lodges and the two Sts. John.
12. *The Origin and Insignia of the Royal Arch Degree*.
13. *A Dictionary of Symbolic Masonry*, the first of a long line of such dictionaries.
14. *Institutes of Masonic Jurisprudence*.

He also published a "Book of the Lodge," a sort of ritualistic manual similar to the monitors or manuals so well known today. Likewise he was a constant contributor to English and even to American Masonic periodicals.

Probably no one not by profession a writer can show such a list, bearing in mind how many of the foregoing are books of the first order in their class.

Unhappily Oliver's views of Masonic law were not in accord with those which prevailed in England in 1840. In consequence when in that year Dr. Crucefix, one of the most distinguished of nineteenth-century English Masons, was suspended by the Grand Lodge and retired from Masonic activity Oliver also incurred the displeasure of the authorities by claiming the right, though a Provincial Deputy Grand Master, to take part in a public demonstration in honor of Crucefix in which a large number of prominent Masons joined. This led to his losing his office by the action of the Provincial Grand Master and to his withdrawing from active connection with the Craft. But English Masons soon came to see the soundness of Oliver's views as to the independence which Masonry must allow to the individual in his belief and opinion as to what is Masonic law. Accordingly four years later nearly all the Masons in the kingdom joined in subscribing for a presentation of plate to Oliver in recognition of his great services to the Craft. But justice was not done to Oliver as it was to Preston possibly because Oliver was not the type of man to urge it for himself as Preston would have done. In consequence Oliver was out of touch with active Masonic work for the last twenty two years of his life. That this was in no way due to improper obstinacy on his part is, I think, manifest from merely looking at his portrait — which radiates benevolence and amiability. Moreover all accounts of his personality agree with the impression one gets from the portrait. All accounts bear witness to his loveliness, his geniality, his charitableness and his readiness to oblige. All who have written of him testify that he was in the highest degree unassuming, unaffected and easy of approach. That such men as Krause and Oliver should suffer from the jealousies which greater knowledge seems to engender in those who regard ability to recite the ritual with microscopic fidelity as the sum of Masonry is not wholly to be wondered at. The breadth which such knowledge inevitably brings about threatens the very foundations of the literalism which the strongest men in our lodges have been taught or have taught themselves is the essence of the institution. But it is strange and is an unhappy commentary upon human nature that the arrogant, ambitious Preston could at length obtain justice which was denied to Krause and to Oliver.

Summing up Oliver's personality, everything confirms the impression which one derives from the portrait. He was a warm-hearted man, of zealous antiquarian enthusiasm, of deep faith and of thoroughgoing religious convictions. We must remember each of these traits when we come to consider his philosophy of Masonry. So much for the man.

Now for the time.

The dominant philosophy everywhere when Oliver wrote was what is known as romanticism. In England, which at this period was still primarily taken up with religious rather than with philosophical or scientific questions, romanticism was especially strong. Thinkers of the generation after Kant objected to his critical philosophy on the ground that it lacked vitality. They asserted that the living unity of the spirit was violated by his analyzing and distinguishings. They pointed to religious faith on the one hand and to artistic conception and creation on the other hand as methods which unlike the critical philosophy did full justice to life. In other words the age of reason in which Preston wrought and wrote was over and for a season at least men ceased to expect all things of reason, intellect and knowledge and began to expect all things of what they called spirit. The younger thinkers especially were filled with enthusiasm at this idea of deducing all things from spirit and did not see that they were simply seeking for a new philosopher's stone. They expected through the idea of the spirit to establish a complete unity of all things, to break down the existing separation between science, religion and art and to reconcile all discords. Such an idea of knowledge rightly may be called romantic. It stands before us sublime and distant. It rouses our enthusiasm or our zeal to achieve it, and influences us by its exaltation rather than by any prospect which it affords us of clear and sober realization. That a whole generation should have been content to put its ideal of knowledge in this form seems difficult to explain even by reaction from the over-rationalism of the preceding century. Probably the general upheaval brought about by the French Revolution must be taken into account and the golden age of poetry which accompanied this philosophical movement must not be overlooked. Indeed the connection between the romantic philosophers, the romantic poets and the romantic musicians is very close. It is not an accident that

what I may fairly call romantic Masonry appears at the same time. This will be manifest especially when I come to speak of Oliver's views as to the relation of Masonry to religion.

One of the most representative of the German romantic philosophers argued that all separation between poetry, philosophy and religion was superficial and arbitrary. He argued that while the poet regards philosophy as an expounding of the poetry of life which is to be found in all things, the philosopher regards poetry as a pictorial form, perceived intuitively, of the thought which moves in all things. But, he said, religion is a phase of the same quest for unity. Let me quote his words since they bear strongly upon Oliver's views: "If it is allowed that the task of thought is to show us the unity of all things, can philosophical endeavor differ in its essence from the religious yearning which likewise seeks to transcend the oppositions and unrest of life?"

This romantic philosophy came into England chiefly through the poet Samuel Taylor Coleridge (1772-1834) who wrote while Oliver's chief literary activities were in progress and died about six years before the most important and significant of Oliver's writings. The relation of the one to the other is so clear that a moment's digression as to Coleridge is necessary.

In his youth Coleridge tells us he had been a disciple of the eighteenth-century rationalists. But he was repelled by the attempt, so characteristic of the eighteenth century, to reduce mental phenomena to elementary functions by means of analysis and to discover mechanical laws for all consciousness. If this could be done, he said, it would destroy the unity and activity of the mind. At this time he came in contact with the German romantic philosophy and turned in the new direction. Indeed he was a romanticist by nature. He revelled, it has been said, in ideas of the absolute in which the differences and oppositions of the finite world blended and disappeared. He was a poet and a preacher rather than a thinker and rarely got beyond intuition and prophecy. Hence there is more than a little truth in the saying of one of his critics that he led his generation through moonshine to orthodoxy and to a more pronounced orthodoxy than had formerly obtained. It is said that the Anglo-Catholic or Puseyite movement of the nineteenth century, which carried Newman and so many other English scholars into the church of Rome, was a result of Coleridge's ideas.

What, then, were the characteristics of the philosophy of the time and place in which Oliver wrote?

1. Speculation and imagination were the chief organs of thought. The poetic passed for the only real. Enthusiasm passed for scholarship.
2. Reason abdicated for a season. Conviction, intuition and faith were regarded as justifying themselves.
3. In the same way tradition became something which justified itself. This is seen particularly in the so-called Oxford movement and the Catholic reaction in England. It is seen also in the position of the time as to the English constitution which Dickens has satirized in the person of Mr. Podsnap.
4. Reconciliation of Christianity with philosophy became a recognized problem. For example, Coleridge took this for his chief work.

All of these features may be seen in Oliver's Masonic writings. The defects of his historical writing, for example, which have utterly debased popular Masonic history are the defects of a romanticist. A warm imagination and speculative enthusiasm carried him away. In common with his philosophical teachers he had thrown off the critical method and had lost the faculty of discriminating accurately between what had been and what he would like to believe had been. On the other hand, in Masonic philosophy, where pure speculation was allowable, these qualities had a certain value. Mill says of Coleridge that his was one of the great seminal minds of his time. In the same way Oliver more than anyone else set men to thinking upon the problems of Masonic philosophy. His style is agreeable. He is always easy to read and often entertaining. A multitude of readers, who would be repelled by Krause's learned but difficult pages, have rejoiced in Oliver. Hence he has given a form and direction to Masonic speculation which still persist.

Turning to Oliver's philosophy of Masonry three important points may be noted: 1. His theory of the relation of Masonry to religion; 2. His theory of Masonry as a tradition coming down to us from a pure state prior to the flood; 3. His theory of the essentially Christian nature of our institution.

Let me take these up in order.

1. It has been said that reconciliation of knowledge with religion and unifying of religion with all other human activities was a favorite undertaking of the romantic philosophy. It was natural, therefore that a clergyman should be attracted to this type of thought and that a zealous churchman and enthusiastic Mason who had learned from Preston, whose book he edited, that Masonry was knowledge, should convert the problem into one of relating Masonry to religion and of reconciling them. Oliver's mode of doing this was highly ingenious. Religion and Masonry, he would say, are identical in their end and they are identical in their end with knowledge. Each is a manifestation of the spirit, the absolute, that is of God. God, he would say, is manifest to us, first, by revelation and thus manifest we know Him and know ourselves and know the universe through religion. Second, He is manifest to us by tradition, and in this way we know Him and know ourselves and know the universe through Masonry. Third, He is manifest to us through reason, and in this way we know Him and know ourselves and know the universe through knowledge or, as we have come to call it, science. In common with the romanticists he sought to throw the entire content of life into one interconnected whole; and this he found in God or in the absolute. Accordingly to him Masonry was one mode of approach to God, the other two being religion and science. If Krause's triad was law, religion, morals, given effect by state, church, Masonry, Oliver's is revelation, tradition, reason, expounded, handed down, developed and interpreted by religion, Masonry and science.

2. Oliver's theory of Masonry as a system of tradition seems to have been derived from Hutchinson. The latter deserves a moment's digression.

William Hutchinson (1732-1814), an English lawyer, is perhaps the earliest Masonic philosopher. In 1774 by permission of the Grand Lodge, which then insisted upon a right to censor all Masonic writing, Hutchinson published his chief Masonic work entitled "The Spirit of Masonry." Oliver himself has said that this book was "the first efficient attempt to explain in a rational and scientific manner the true philosophy of the order." Hutchinson's doctrine was that the lost word was symbolical of lost religious purity due to corruptions of the Jewish faith. He held that the master's degree symbolized the new law of Christ taking the place of the old law of Judaism which had become dead and corrupt. By a bit of fanciful etymology he derived Hiram (Hiram) from the Greek heuramen (we have found it) and Acacia from the Greek alpha privative and Kakia (evil) — Akakia, freedom from evil, or freedom from sin. Thus, he says, the Master Mason "represents a man under the Christian doctrine saved from the grave of iniquity and raised to the faith of salvation."

Hutchinson influenced Hemming, who wrote the lectures of the Ancients and a trace of this influence may be seen in America in the interpretation of the blazing star in our lectures.

Clearly enough Oliver got his cue from Hutchinson. But Hutchinson had identified religion and Masonry. This Oliver, as a clergyman of the established church, could not allow. Instead Oliver sought to unify them, that is while keeping them distinct to make them phases of a higher unity, to make them expressions of what is ultimately, though not immediately, one. This he did as has been seen by regarding each as a mode of approach to God. That conception led to his theory of Masonry as a body of tradition.

Briefly stated Oliver's theory is this. He held that Masonry was to be found as a body of tradition in the earliest periods of history as recorded in Scripture. This tradition according to his enthusiastic speculations was taught by Seth to his descendants and was practiced by them as a pure or primitive Masonry before the flood. Thus it passed over to Noah and his descendants and at the dispersion of mankind was divided into pure Masonry and spurious Masonry. The pure Masonry passed through the patriarchs to Solomon and thence to the present institution. On the other hand, the pure tradition was corrupted among the pagans and took the form of the

mysteries and initiatory rites of antiquity. Accordingly, he held, we have in Masonry a traditional science of morality veiled in allegory and illustrated by symbols.

3. Again taking his cue from Hutchinson, though the old charges to be true to holy church gave him some warrant — Oliver insisted that Masonry was strictly a Christian institution. He believed of course that Christianity was foretold and in a way revealed in the Old Testament and that the doctrine of the Trinity, for example, was clearly expounded therein. In the same way he held that the earliest of Masonic symbols also taught the doctrine of the Trinity and that the Masonic references to the Grand Architect of the Universe were references to Christ. Indeed in his system this was necessary. For if religion, which to him could mean only the Christian religion, and Masonry were to be unified it must be as setting before us different manifestations of the same God. There could be but one God and that triune God, the God of his religion, he held was made known to us by revelation, by tradition and by reason. Thus Oliver's interpretation of revelation determined his interpretation of the other two. If we bear this in mind we may accept his general philosophy without accepting this particular doctrine. For it needs only to postulate a more universal and more general religion than he professed, a religion above sects, creeds and dogmas to hold that such a religion along with Masonry and along with reason leads to God. Moreover Hindu and Mahommedan may each put his own interpretation on revelation and join in believing in these three modes of knowing the absolute. Mackey reproaches Oliver for narrowness and sectarianism. But the possibilities of his Masonic philosophy are as broad as could be desired. It was too soon in 1840 to ask a clergyman to go further in its application than he went.

What then are Oliver's answers to the three fundamental questions of Masonic philosophy?

1. What is the end of Masonry, for what does the institution exist? Oliver would answer, it is one in its end with religion and with science. Each of these are means through which we are brought into relation with the absolute. They are the means through which we know God and his works.
2. How does Masonry seek to achieve its end? Oliver would answer by preserving, handing down and interpreting a tradition of immemorial antiquity, a pure tradition from the childhood of the race.
3. What are the fundamental principles by which Masonry is governed in achieving its task? Oliver would say, the fundamental principles of Masonry are essentially the principles of religion as the basic principles of the moral world. But in Masonry they appear in a traditional form. Thus, for example, toleration in Masonry is a form of what in religion we call charity; universality in Masonry is a traditional form of what in religion we call love of one's neighbor.

As has been said, Krause's was a philosophy of Masonry in its relation to law and government. Preston's was a philosophy of Masonry in its relation to knowledge. Oliver's is a philosophy of Masonry in its relation to religion. Neither of the others has had a tithe of the influence which Oliver's philosophy has exerted upon Masonic thought. And on the whole his influence has been valuable and stimulating. A critic has said that "all he had to give was transcendental moonshine which shed a new light on old things for many a young doubter and seeker, but which contained no new life." In a sense this is so. Oliver's Masonic philosophy is an obvious product of a clergyman in the age of the romantic philosophy who had read and reflected upon Hutchinson. And yet it is not true that there is no new life in Oliver. Except for Krause nothing so well worth while has been pointed out for Masonry as the end which Oliver found for us. I cannot but feel that it is a great misfortune that his philosophy is being peddled out to a new generation in grandiloquent fragments through Grand Lodge orations and articles in the Masonic press instead of being apprehended as a whole.

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Josiah Hayden Drummond

American Masons whose labors for the fraternity have had large and important effects in this country may number one or more hundreds, the number depending upon opinion as to what is “large and important.” American Masons whose life and labors have influenced Freemasonry ’round the globe must form a much more restricted list in any commentator’s mind.

Few will quarrel with the statement that the two *most* influential brethren this country ever produced — using the word “influential” to mean vital contributions to the Craft — are Albert Pike and Albert Gallatin Mackey. Pike “found Scottish Rite Freemasonry in a hovel and left it in a palace”; no one can say what Scottish Masonry might have been without Pike, but the Masonic world knows what it is as a result of Pike’s labors.

Mackey’s contributions in many Masonic fields have been extremely productive; his greatest gift to the Fraternity was in the sanity, common sense and (according to the knowledge of his day) accuracy of his *Encyclopedia*. His contribution to the study of the Ancient Landmarks was explosive in power; its echoes have not died away, even though the debris caused by it has been largely swept aside to make room for new knowledge.

Any attempt to list a third “most influential” American Mason may cause controversy in Masonic circles, but few will be able to present arguments for and records of any brother to show a larger contribution than those given by Josiah Hayden Drummond, of Maine, a brother who brought indefatigable energy, wide legal knowledge, a balanced critical faculty, a complete sanity of Masonic viewpoint and an utter devotion to the Craft, the effects of whose labors have classified many underlying laws and principles of Masonry in English-speaking grand lodges

Drummond’s great services to Masonry went far beyond his leadership as grand master, Grand Commander of Knights Templar, Grand High Priest, and Grand Commander of the A.A.S.R., Northern Masonic Jurisdiction, although in all these positions of high responsibility he served with distinction.

His greatest contributions were made as chairman of the committee of jurisprudence and as foreign correspondent, in which reports he clarified Masonic law as had no previous law interpreter.

Drummond was a prodigious worker; his multiplied thousands of pages of reports on grand lodges and other grand bodies are filled with the authoritative, sound, clear thinking that has so greatly affected Masonic law. Obviously nothing short of a library could attempt to show the extent both of his knowledge and his comments on what he learned. All that may here be done is to give a few pertinent quotations from pronouncements from what might, without exaggeration, be termed this “one man supreme court” of Masonic jurisprudence.

Masonic law needs clarifying just as civil law requires interpretation by courts of appeal and finally by Supreme Courts. Here is Drummond on Drummond’s clarification; he wrote:

If we should say that for many years it has been the law that if a man borrows money he is legally bound to pay it, and were challenged to refer to the volume and the page where it could be found, we could not do so. Still the proposition is law all the same. So in Masonry, there is a *lex non Scripta*, as well as a *lex Scripta*; law growing out of usage, as well as enacted law; law to be ascertained by examining history, decisions and precedents, as well as law to be found in written codes.

Of the then, at times, vexed question of territorial jurisdiction, he said:

There are certain principles of right and justice which are held to be binding on all nations, and a nation that does not recognize them is held to be without the pale of nations. These principles are held to grow out of the very existence of a plurality of nations, and are not matters of treaty. So we maintain that there is equally a natural Masonic law growing out of the existence of a plurality of grand lodges, binding, not on account of agreement, but on account of natural obligation.

International law has two sources; one, the express consensus of nations; the other, the necessities of all nations. The latter is termed by writers “natural law”; it is not enacted but grows out of the very existence of a plurality of nations; the exclusive sovereignty of a nation in its own territory is declared and held to be a natural law, and is asserted as such; the Massachusetts grand lodge did not undertake to *enact* that it had exclusive jurisdiction in that state, but it declared that doctrine as a natural law of Freemasonry.

By the usage of grand lodges, their territorial jurisdiction is coterminous with the boundaries of the state, province, or country in which one is established, although it occupies but a fraction of such territory. When the civil government divides the state into two, and creates two independent states, where one existed, by the operation of the Masonic law above cited, the lodges in each acquire the right to have a Grand Lodge of their own. This result comes not from the civil law above, but from the joint operation of the civil and Masonic Law.

He cited a particular instance and set a precedent to which all Masonry has since bowed:

In June 1863, the state of West Virginia was recognized by the Government of the United States; and ever since has been a state *de facto*. As the tide of war flowed away from them, the Masons desired to resume work. The grand lodge was organized in May 1865. But it is said (by a correspondent) "the Grand Lodge of West Virginia cannot be recognized until it is recognized by the Grand Lodge of Virginia." If the lodges in West Virginia had a right to form a grand lodge, no consent of Virginia was necessary. Whatever I have a right to do, I may do without the consent of anybody. If they had *not* the right to form a grand lodge, then, inasmuch as Virginia has never given her consent, the new grand lodge is illegal, its subordinates are irregular lodges, and their members all *clandestine* Masons! There is no escaping the dilemma. The Mother Grand Lodge is interested, and is, therefore, *not* the proper arbiter to decide the questions of right between her and her daughter. In fact, in the absence of a supreme authority, the other grand lodges are the only tribunal which can decide the questions at issue.

When Dakota Territory became the states of North and South Dakota, no grand lodge raised a question about the formation of the old grand lodge into two, the Grand Lodge of South Dakota being a continuation of the Grand Lodge of Dakota Territory, North Dakota becoming a new grand lodge. The confusing Masonry of Indian Territory and Oklahoma was happily resolved without Masonic conflict, largely because United States grand lodges accepted the principles Drummond had clarified, that an existing *right* needed no permission from *anyone* to exercise.

How far does the "dispensing power" of a grand master go? It is a question not unanimously settled among all grand lodges. But Drummond was unequivocal in his interpretation of the question. On grand masters' prerogatives he wrote:

Our own views are that a Grand Master should never attempt to set aside the positive law of his Grand Lodge; but we are forced to admit that in the olden time the Grand Master did possess that power. Of course this power was not given to him by any regulation, as if it was, it could be taken away by another. The prerogative must antedate the regulations; and not depend upon them, or it cannot exist or have existed. Let it be remembered that during the seventeenth century it was law in England that the Sovereign had the power to dispense with any law in particular cases; it was held that this was a prerogative inherent in the crown, which could not be taken away. To be sure, James II lost his crown in 1689, in consequence of pushing this prerogative beyond bounds. Still the existence of the prerogative was fully admitted. The popular idea invested Sovereigns with this prerogative. Naturally, the same idea would prevail as to the grand master of Masons, an office that existed before the grand lodge system was adopted.

In Masonry the landmarks are superior to the 'Constitution,' and the 'Constitution' must be read in their light, and has no other effect than it may have without infringing on the landmarks. It is, then, a question of history whether, by the landmarks, or original system of Masonic government, the Grand Master has the power to dispense with the written law in special cases. We have only to say that we cannot see how an unprejudiced man can read Masonic history, without coming to the conclusion that this prerogative was a part of the original plan of Masonry.

The "Doctrine of the Perfect Youth" was not settled in Drummond's time — is not settled at this time — may never be settled. But the tendency is obviously towards a relaxing of the old idea, a coming to realize that there are two sides to the question. Drummond foresaw this. He is forthright in his analysis, which has never had a satisfactory reply to the contrary:

The number of persons of absolute perfect body is so small, that the question, where did our ancient brethren draw the line, is one upon which we would like to hear from some of the perfectionists. We submit a question; after quoting from the Ancient Charges: No Master should take an Apprentice . . . unless he be a perfect youth, having no maim or defect in his body, that may render him incapable of learning the art of serving his Master's Lord, and of being made a brother and then a Fellowcraft in due time." Do the words following "perfect youth," modify the term "perfect"? Do they not mean that he must have no such defect as will render him incapable, etc., and do they not imply that though he may have *some* defect, yet it does not render him *incapable*, etc., he *is* eligible? We have often suggested this to the "perfectionists," and though we have called, yet "they answered not again."

Ancient Landmarks were as much a matter of controversy in Drummond's time as now; it was to be expected that this man of the super-clear mind would think far ahead of his time on the subject. He wrote of a critic (Parvin):

He says there are no landmarks; and why? Because no two men agree as to what they are, and no enumeration of them has been made. Is there no sand on the seashore because no one can tell us how many grains there are? Are there no principles of common law, because those principles cannot be enumerated, and because no two men will agree as to what those principles are? Did it ever occur to Bro. Parvin that much of our common law originated in the long continued customs of the people?

Again he clarified thinking as to "fundamental principles" and landmarks, which was but a different nomenclature for our "ancient usages and customs" and landmarks. Of this he stated:

When "landmarks" are held to be synonymous with "fundamental principles," we think it about time to call a halt and consider the meaning of words. A "landmark" is something set, and an "ancient landmark" is one that has remained a long time. On the other hand "fundamental principles" are, like truth, from everlasting to everlasting. Landmarks are of *human* origin, and "fundamental principles" are God's law. Belief in God is not a landmark of Freemasonry; it is a *divine* law; but the law, that only those who believe in God can be made Masons, *is* a Masonic landmark. The founders of the Institution "set" that landmark, and it has never been removed.

If "landmarks" are anything else than laws of the Craft, either originally expressly adopted or growing out of immemorial usage, the term is a misnomer, and its use ought to cease.

The stone did not become a landmark till it was set up as such. The fundamental principle did not become a Masonic landmark till it was "set up"; there are many stones that are not landmarks; and there are many fundamental principles' that are not Masonic landmarks; only those that are 'set up' actually, or by adoption, are landmarks in either case. Belief in God is an abstract principle; but the necessity for belief in God in order to become or remain a Mason is a law of the Craft of so ancient an origin that it has become a landmark.

It is now generally believed that the Volume of the Sacred Law is not necessarily the Bible; that initiates of other faiths than the Christian can take a binding obligation on the Koran, the Vedas, or other Holy Book. Drummond early saw this and said so forthrightly:

The Masonic law has always been, that belief in God carries with it belief in a Book of the Law, without the presence of which no lodge can be held. Theoretically it may be true that a Muslim lodge could use only the Koran; but that is of no consequence; the necessity is that there shall be a Book of the law — the *divine* law. The religion, therefore, in which the Old Charge holds that all men agree, is the belief in God, the Father and Ruler, and in a book of His law, as such Ruler, although it does not theoretically require belief in the same book. . . .

The law-giver in Ecclesiastes said "of the making of many books there is no end," and Masonic lawyers think often that he might have said the same of Masonic laws. Drummond points a finger at those who confuse jurisprudence with regulations, as follows:

Masonic Jurisprudence is *not* the invention of new laws, or the procuring of their enactment, but a knowledge of the ancient usages of the Craft, and of the landmarks and laws of the Institution. Our laws are in many

cases the usages of the Craft for many years, and it is only by a careful study of our history, policy and customs that knowledge of these laws is obtained. And we undertake to say, that the more thoroughly versed a Mason is in “Masonic Jurisprudence ” the more firmly he is wedded to the old ways and the more sternly opposed to these modern innovations, which have been adopted in spite of Masonic students (who are apt to be styled old fogies) and not by their procurement.

Grand lodges have no power over, and make no claims to have power over, the grand bodies of other rites or Masonic organizations, or associations of Masons.

What is now universally agreed upon, both by grand lodges and the other grand bodies of other rites, is that grand lodges have complete power over *Masons* in *Masonic* matters, and therefore have the power to forbid them to indulge in membership in and the practicing of any rites that are injurious to Masonry.

This is “old hat” now, but it was “new hat” in Drummond’s time. That he saw so clearly is but another instance of his far-reaching mind. He wrote:

We hold that the Grand Lodge has the full power to determine what the members of its obedience may practice as Masonry; to forbid their practicing, as Masonry, any rites that it deems injurious to the harmony and welfare of the Craft; and to “interfere” whenever it finds it necessary to protect the Institution.

The Masonic world owes a debt to Drummond of incalculable size. It is idle to speculate as to whether he or Pike or Mackey made the greatest contribution, and no such speculation will be indulged in here.

But the opinion may be expressed, that could Pike and Mackey speak, it would be in words of admiration of Josiah Hayden Drummond and his uncannily far-seeing mind.

Question Box

The column will attempt to answer questions about Freemasonry.

Are the V.S.L. (Volume of Sacred Law) and the Book of Law the same as the Bible?

In Christian lands the holy book of the prevailing faith is the Great Light. In American and English lodges that book is the Holy Bible. A Masonic lodge cannot exist without the V.S.L, the Book of the Law. But in lands where there are other religions, the sacred book of those religions becomes their Great Light. What is important is that some volume containing divine revelation be a part of the furniture of the Lodge. Inasmuch as Freemasonry is not concerned with doctrine or dogma or sect or denomination, but only with “that natural religion in which all men agree” (Old Charges), it is only necessary that the V.S.L. be sacred to the members of the lodge. The Bible on American altars is not to be considered only as a Christian or a Jewish sacred book; it is a *symbol* of the revealed will and teachings of the Great Architect of the Universe — a name under which any Freemason can worship that Deity in Whom he puts his faith and trust.

Why are Masonic rituals not the same in all States?

Freemasonry came to the United States from several different sources (England, Ireland, Scotland) and its spread westward formed grand lodges from lodges which sprang from the thirteen original colonies. These admixtures of rituals produced variations which were occasionally increased by actions of grand lodges acting on recommendations of grand lecturers and ritual committees. In the early days of Freemasonry in the United States many “travelling lecturers” brought their own conventions of “the true Masonic work” to far areas and taught these.

All rituals are “correct.” What a grand lodge approves as its ritual is “correct” for its lodges. No rituals in the United States contradict each other; they vary in words and details, not in essentials.

[The Masonic Service Association of North America](#)

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The Summons

Every Master Mason understands that a summons is a command to attend the Communication of the lodge for which the summons is issued, or the occasion — funeral, trial, cornerstone laying; or other function — to which he is bidden. Every Master Mason knows why he must "due answer make," either by attendance, or submitting an acceptable excuse, such as illness, absence beyond the length of his cable tow, or other inability to be present.

The summons appears to be very old; older perhaps in civil law than in Masonry, and it has there no considerable antiquity. Indeed, while the word does not appear in the Old Testament, both Numbers and Deuteronomy set forth instructions as to testimony of witnesses at trials, and by implication, if not by detailed statement, indicate that the presence of such witnesses was compulsory. Funk and Wagnall's *Standard Bible Dictionary* states that the Israelites "summoned" witnesses.

Civil summons was known in Rome, first by word of mouth, later by written citation to appear. In Chaucer's "Canterbury Tales" (written about 1386) is a "sompour" or summoner to the ecclesiastical court. The use of summons in English procedure goes back into the dim distance where fact and mysticism meet. It was a part of the feudal system of England and the clan organization of Scotland. When the Baron in England or the Laird in Scotland summoned his fiefs and retainers, they answered in person. Failure to do so meant death. The safety of the Baron depended upon absolute fealty; the safety of the realm depended upon prompt obedience of the Laird to the call of the King. But importance of obedience to summons goes further back than that.

When King Arthur founded his mystic, if not mythical, Knights of the Round Table, one of the inflexible rules was that every knight must appear on a fixed day in every year to report to the table his acts and adventures of the past year. Only one excuse, other than death, was acceptable; that the Knight was on a quest that so required his attention as to render it impossible for him to appear. He was then expected to send an excuse for his disobedience of the requirement.

In the Anderson *Charges* of 1772, we read: "In Ancient times no Master could be absent from the lodge, especially when warned to appear at it, without incurring a severe censure."

In the Constitutions of the *Cooke MS.*, about 1490, we are told that the Masters and Fellows were to be forewarned to come to the congregations. All the old records, and the testimony of writers since the revival, show that it was always the usage to summon the members to attend the meetings of the General Assembly or the particular lodges.

In the United States the use of the summons grows rarer with every passing year, as applied to a whole membership. In certain Jurisdictions the Master summons his lodge once a year, as much, perhaps, to keep the idea of the summons alive, as to assemble the whole lodge for any purpose. Occasionally lodges are summonsed regularly twice a year, a custom which doubtless grew out of the original once-a-year summons to come and pay dues, when such particular lodges decided to receive dues every six months. In some Jurisdictions the summons is used for the whole membership only upon extraordinary occasions, as when its proposed to finance a temple, or consider some extremely important question of policy such as giving up the Charter. In many Jurisdictions a lodge can not legally give, or surrender its Charter without the action being considered by the whole membership at a summonsed meeting.

Most jurisdictions would commonly use the summons to command witnesses at a Masonic trial. In some the Master uses the summons to get a sufficient number of brethren present for Masonic Funerals. Unhappily, the press of modern life, the casual manner in which too many regard their Masonry, the laxness of some Masters and the "laissez faire" policy of some Grand Lodge leaders, has allowed the sanctity of the summons to be somewhat tarnished.

A Mason is Masonically bound to "due answer make" to a summons. Failure to answer a summons, then, is a Masonic offense, for which the offender may be tried.

But few who are interested in their lodges desire to see Masonic trials held, if they can by any possibility be avoided. Lodge trials often produce lack of harmony and disunion among the membership. To prefer charges and

stage a trial for the apparent trivial offense of failure to answer a summons is sometimes held to be unwise. Yet, not always so. From a hundred instances one is chosen at random; the Grand Master of Louisiana wrote a letter to the Master and Wardens of a certain lodge, which read in part as follows: "Brother R, Norman Bauer, D.D.G.M., has reported to me that the proceedings of your lodge in the matter of the trial of Brother _____. My attention is especially called to the fact that out of a membership of more than 200, only 75 brothers answered the summons to be present at the trial. You are hereby directed to require of the brethren who were absent, to give a proper explanation of their failure to be present, and in the event satisfactory explanation is not given, you are directed to have charges filed against each of them who fails to provide you with a satisfactory explanation. The charges are to be, "Un-Masonic Conduct in failing to obey the summons of the lodge, in accordance with their obligation and in accordance with the requirements of Masonic Law."

Into the question as to when it is wise and right to prefer charges for failure to answer a summons, and when the best interests of all are served by a mere reprimand to the guilty absentees, this paper cannot attempt to go. But it may be said that while failure to answer a summons may be deemed trivial, violation of an obligation cannot be so considered. Those who look at the matter from this standpoint say that some disciplinary action is the only wise course to pursue.

It is not possible to blame modern conditions with all of our troubles! It is only fair to say that sometimes disrespect for law is caused either by the law or the lawgiver. Grand Lodges themselves have not always looked very far ahead in legislating upon the summons.

The *General Regulations of the Craft* (1721) specifically state: "The Master of a particular Lodge has the right and authority of congregating the members of his lodge in a Chapter at pleasure, upon any emergency or occurrence, as well as to appoint the time and place of their usual forming."

The *Regulations* also specifically say : "Every annual Grand Lodge has the inherent power and authority to make new Regulations or to alter these, for the real benefit of this ancient Fraternity, provided always that the old landmarks be carefully preserved."

It is, then, perfectly within the power of a Grand Lodge to set up a new regulation regarding summons, or "right to congregate the lodge." In some Jurisdictions this has been done, and the right of summons shared between the Master and the lodge; that is, the Master may summons when he thinks it wise; and the lodge can issue summons when it thinks wise.

But as has been proved often in the past and probably will again in the future, the power to set up a regulation is one thing; to make it right — or even legal — is another!

It is practically universal that a Master has complete charge of the work of his lodge; he is responsible for what it does; he opens and closes it at his pleasure; he says when degrees are to be conferred; he controls absolutely the debate on any question and can close it, curtail it, initiate it as he thinks wise, and can put, "or refuse to put" any motion which in his judgment is subversive of the peace and harmony of the Craft.

A lodge can only act, as a lodge, as a result of a Master's order, or of its own order — that is, its vote. If a lodge would spend money, a motion must be put and voted upon. If it would receive a petition, the motion to receive must be put and balloted upon. If it would call off during a summer month, a motion to call off stated communications is put and balloted upon. (This, of course, if the Grand Lodge permits calling off.)

Hence, in a Jurisdiction in which the Grand Lodge has vested power to issue summons in the lodge, as well in the Master, the lodge must vote upon the question, which must be put. If a Master refused to put up the question "Shall the lodge issue a summons?" the lodge could not vote upon it. If then, some brother feeling aggrieved, should appeal from this failure to put the question, to the Grand Master or the Grand Lodge, that higher authority would have to rule upon the right of a Master to control his work, if such an authority desired to discipline the Master for failure to permit the Grand Lodge's other behest — the power of a lodge to summons — to be exercised!

Let nothing in these words be construed as a criticism of the Grand Lodges which in their wisdom have altered the original *General Regulations* and given to lodges as well as to their Masters the right to summons. A Grand Lodge is supreme within its Jurisdiction. No matter how inconsistent with laws, usages, customs, landmarks, constitutions or immemorial practices of the Fraternity its enactments may be, within its Jurisdiction what a Grand Lodge says is law, and therefore right — or right, and therefore law!

In Jurisdictions where the Grand Lodge has ruled upon any matter, that matter has been rightly decided for that Jurisdiction — aye, even if the Grand Lodge has ruled that black is white!

In this connection it is interesting to read that actions of a Grand Lodge which has decided this matter one way, and then the other! In 1834 the Grand Lodge of the District of Columbia decided that the Master had not the exclusive right to summons the members.

In 1909 a proposed by-law of a constituent lodge was referred to the Grand Lodge committee on By-Laws. The proposed by-law read: "Whenever the lodge is called upon to attend the funeral of a deceased brother, the Worshipful Master shall summons a sufficient number of the resident members of the lodge, naming them in regular alphabetical order, and a brother so summoned shall be present or furnish an acceptable substitute. No brother attending a funeral in obedience to a summons shall again be called upon until his name is reached in regular order."

The Committee on By-Laws reported that the lodge had no right to pass this by-law, in spite of the ancient decision of 1834, on the ground that while lodges have the right, subject to Grand Lodge approval, to fix the time and place of their stated communications, they have neither right nor power to legislate as to the time or place of special meetings, which are wholly under the control of the Master.

In concluding its report, which was unanimously adopted by the Grand Lodge and thus became the law in the District of Columbia, superseding the decision of 1834, the committee said: "The Master has the sole authority to convene his lodge in special communications; he may compel the attendance of the members by summons; he alone can exercise this power and in its exercise he is not subject to the will of the lodge because he is the judge of the exigency or emergency that may require a special meeting. These powers are inherent in the office of Master, and no by-law is needed to validate their exercise and none is legal which attempts to curtail, control or direct them. That their exercise has been entrusted to the Master alone is doubtless due to the fact that the Grand Lodge looks to him, and not to the lodge, to see that the business of the lodge is properly conducted."

There is good Masonic authority for this decision, which, of course, is law only in Jurisdictions which have so ruled. Mackey's "Masonic Jurisprudence" states: No motion to adjourn, or to close, or to call from labor to refreshment can ever be admitted in a Masonic Lodge. Such a motion would be an interference with the prerogative of the Master and could not, therefore, be entertained. The Master has the right to convene the lodge at any time and is the judge of any emergency that may require a special meeting. Without his consent, except on the night of the Stated or regular communications, the lodge cannot be congregated and, therefore, any business transacted at a called or special communication without his sanction or consent would be illegal and void."

Simons (*Principals of Masonic Jurisprudence*) says: "It is an immemorial usage — and therefore a landmark — that none but the Master (when he is present) can congregate the brethren. Under this prerogative the Master may call or summon a meeting of his lodge at any time he thinks proper. The summon can be issued by authority of the Master only, while he remains in discharge of his functions, and is a preemptory order which must be obeyed, under penalty, unless the excuse of the defaulter be of the most undeniable validity."

In one Jurisdiction where it is held that the lodge as well as the Master may issue a summons, failure to answer a summons is treated with first, a merciful, then an iron hand. The brother who is summoned but does not answer is re-summoned to the next communication of the lodge. If he does not then answer with a valid excuse he shall be put to trial and if found guilty, may be reprimanded, suspended, or expelled, in the judgment of the lodge.

Any intelligent student of Freemasonry must have noted that its Jurisprudence is largely concerned with what may be done, rather than what may not; with duties and responsibilities, rather than prohibitions and penalties. The gentle way of Masonry is to set up the right, and believe that every brother will adhere to it, rather than the wrong, forbidden under penalty of some punishment. The best way to recreate the old respect which Masons had for a summons is not by trial and punishment, but by education and persuasion.

The vast majority of men are honest. Most brethren want to do what is right. Most Masons want to live up to their obligations, perform their duties, give as much as they get. The exceptions stand out more because they are exceptions than because of their number.

In a certain Jurisdiction in which it is customary to summons the membership once a year, Masters have long been distressed because so many members ignored the summons. One Master believed that members ignored the summons from the lack of understanding of its importance, and their own obligation to answer it. His lodge has 191 members. He wrote 191 letters to go with the yearly summons. The letters were short, but they were cordial, personal, brotherly. They explained what the summons was, why it was issued, the duty of the brother to "due answer make" and closed with the assurance of the Master's certainty that there was no question of its being answered, once it was understood.

One hundred and sixty-five members answered in person; twenty-one replied by letter giving good reasons why they could not come! In large lodges a summons may be all but an impossibility. A lodge with a thousand members could not crowd them into the usual lodge room if all responded to a summons. Summons by such lodges presupposes a special and sufficiently large place in which to meet. Lodges with widely scattered members — as in small towns in large and sparsely populated states — may make the summons a real hardship on members who may have to travel long distances to answer. It is for such reasons as these that the summons is used less and less merely because it is not possible to use, and more and more, when it is used, for only vital and essential matters.

Whether used once a year or oftener by Grand Lodge rule; or seldom, and only by the discretion of the Worshipful Master, respect for the summons may be inculcated by education, by talks in lodge, by letters accompanying the summons, and by word of mouth communication from member to member.

Enforcement, by Masonic trial and punishment, is essential when Grand Lodge so orders; unless it is mandatory, the gentler way will usually be found the wiser — and the more effective because it is more Masonic!

[The Masonic Service Association of North America](#)

[THE BUILDER MAGAZINE](#)

A Journal for the Masonic Student

Published Monthly by the National Masonic Research Society



Vol. 3 No. 4 – April 1917



OPINION ON MASONIC SUBJECTS — A FRATERNAL FORUM

(Announcing a Monthly Department of Personal Opinion on Present-day Masonic subjects)

Edited by Bro. Geo. E. Frazier

President, The Board of Stewards

RESULTS speak louder than words. In reviewing the first two years of the Society, the Board of Stewards have been especially impressed with its loyalty to its original ideal, the character of its membership, and the increasing use now being made of its resources. Mere numbers give no adequate idea of its real strength, but it is

surely significant that the Society has enlisted the interest of fourteen thousand Masons in two years. Its members include not only the rank and file of the Craft, but a large percentage of the leaders and students of Masonry in America, and not a few representative scholars from abroad. Indeed a list of the present members of the Society in any state shows a striking combination of the veteran Masonic leaders and the progressive young men of the jurisdiction.

Naturally the high character of the membership is making itself felt month by month in the contents of *The Builder*, whose leading articles provoke a wide response both in the Society as well as in the Masonic press of the country. This response finds expression in the correspondence column of *The Builder*, which increases in interest and value with each issue, and also in answer and comment direct from individual members. Because of the directness, vitality and farreaching interest of this response, the editor has taxed the limits of space devoted to it, often withholding new articles to make room for letters of reply or elaboration not infrequently as instructive as the original article. Fortunately this demand has been met in part by the Correspondence Circle Bulletin, edited by Brother Clegg, which is now an added and invaluable monthly feature. The Board of Stewards is in entire sympathy with the Study-Club movement, and wishes to make all possible provision to facilitate its growth and advancement.

All of which shows a very real and vital interest in the study of Masonry, and the development of our work so far reveals the wide range of Masonic activities — as a glance at the Index of the first two volumes of *The Builder* will make plain. We have, then, a trinity of working tools. First, we have fourteen thousand leading Masons who are reading *The Builder*, and the number is rapidly growing. Second, we have a hearty response from our members not only in appreciation, but in comment, criticism, and practical suggestion looking to the application of Masonic study to everyday life. Third, we have a list of contributors of serious articles which embraces the names of many of the finest Masonic students at home and abroad. Surely all this is as much an evidence of the strength and virility of Masonry as beautiful temples, the perfect exemplification of the ritual, or large numbers of candidates, excellent as all these are.

Your Board of Stewards has, therefore, felt the need of adding a department to *The Builder* that will bring the experience and special information of its past and present contributors to bear on present-day Masonic problems. We have accordingly established a department of personal opinion, which will appear monthly commencing with an early issue. This department will be edited by the President of the Board of Stewards, and he will invite contributions to the department each month from each writer who has contributed one or more articles to the magazine. At least four and not more than six such expressions of personal opinion will make up the department for each month. In order that opinions may be compared and opposite viewpoints fully considered the President will announce a subject for each month in the form of a query. Some possible subjects are:

1. Shall Masonic lodges encourage the formation of local Masonic clubs for social purposes?
2. Shall American Grand Lodges unite in a National Grand Lodge?
3. Shall lodge dues be increased to cover the financial support of Masonic charitable institutions?
4. Shall Masters and Grand Masters be elected from the floor without regard to service in subordinate offices?
5. Shall present Masonic orders favor the promotion of new systems of Masonic or quasi-Masonic degrees?
6. Shall Lodge officers be financially interested in the sale of Masonic supplies?
7. Shall Masonic lodges appoint committees to investigate the non-sectarian administration of the public schools?

You are asked to read over again the typical subjects just given. Please note that they are subjects actively discussed in the official correspondence of practically all grand lodges. They are live topics on which Masons have opinion, and on which Masonic judgment must be passed. The subjects do not involve the discussion of politics, religious creeds or personal prejudices.

The subjects given are intended merely to sketch out the possibilities of this department. Each member is earnestly invited to suggest other and better topics. Please remember that the department is not open to discussion

on international policies or on religious organizations or on sects, cults and theories of personal application. The department is for the expression of personal opinion by our own former contributors on subjects that are alive in the administration of the Masonry of today.

The contributing editors of this department of personal opinion assume responsibility only for what each writes over his own signature. Each opinion must be expressed in one paragraph of not more than six hundred words. All those who have contributed articles to *The Builder* are invited to become contributing editors. The list will grow as all new contributors to *The Builder* will also become contributing editors to this department of personal opinion. Please note carefully that this department offers the only vehicle in Masonry for comparing the personal opinions of leading Masonic students as to present-day Masonic problems. With this in mind one can readily appreciate the possibilities before us for constructive thinking of a high order.

The Correspondence department of *The Builder* will be continued and will afford each member of the Society an opportunity to reply to any expression of opinion that he finds of especial interest. It is the hope of the Board of Stewards that this new department may stimulate many Masons to Masonic inquiry that will in turn lead them to contribute articles to *The Builder*, and to join our list of Contributing Editors

GEO. E. FRAZER, President of the Board of Stewards.

FOR TO-DAY

Above all, that I may not be a coward! That I may have courage to be unmoved by the uncertainties of life, and without dread of loss, whether of friends, of health or of fortune: That I may come with a firm and tranquil mind to the work of this day, fearing nothing — ready to meet bravely failure or deprivation.

That I may bring to the day's efforts, good humor and a cheerful regard for all with whom I may come into contact: That I may not judge others hastily or with bitterness.

That I may not be grasping, but content with a fair share of this world's goods, willing to let others have theirs: That I may be diligent in the performance of duties and cheerful in manner: That I may be earnest in pursuit of the right.

That I may stand with open mind ready to receive the Truth in small affairs and in large — whether in learning new and better methods or in receiving that philosophy necessary to a brave, tranquil, well-poised, well-harmonized life. John Brisben Walker (Journal of the American Pharmaceutical Association)

* * *

WORDS OF STRENGTH

By Friedrich Schiller, Born Nov. 10, 1759.

There are three lessons I would write,

Three words as with a burning pen,

In tracings of eternal light,

Upon the hearts of men:

Have hope. Though clouds environ now,

And gladness hides her face in scorn,

Put thou the shadow from thy brow,

No night but hath its morn.

Have faith. Where'er thy bark is driven —

The calm's disport, the tempest's mirth —

Know this — God rules the hosts of heaven,

The inhabitants of earth.

Have love. Not love alone for one,

But, man as man thy brother call,

And scatter, like the circling sun,

Thy charities on all.
Thus grave these lessons on thy soul —
Hope, Faith and Love and thou shalt find
Strength when life's surges rudest roll,
Light when thou else wert blind.

* * *

MASONRY AND KING SOLOMON'S TEMPLE

The Late Bro. Wm. A. Paine, Jamaica

Paine, William A., of English parentage, date of birth unknown; a man of business and a gentleman of the old school; Master of King Solomon's Lodge, Kingston, Jamaica, also a Royal Arch Mason; lost his life in the earthquake disaster at Kingston, Jan. 14th, 1907. He was a man of noble character, of winning personality, learned in the lore of Freemasonry, devoted to its service, and a pioneer in his jurisdiction in the cause of Masonic study. The essay here published is of unusual value for its wide research and its clear reasoning; and while all of its readers may not agree with the position taken, they must reckon with its argument opposing the Jewish claims of Masonic origin.

ACKNOWLEDGMENT (For the above information and photograph, and for Brother Paine's thoughtful paper herewith begun, we are indebted to our Brother Member, E. T. Skinkle, 33°, of Chicago.)

PART I

IT is necessary that we look at this important and instructive factor in the system of Speculative Freemasonry from two separate and distinct points — the positive and the negative.

The positive asserts itself from the fact that Solomon's Temple, the traditions connected therewith, and prominent Jewish Scriptural characters, are very extensively introduced; and, in fine, that the Jewish Ceremonials and Types are considerably availed of as the foundations on which the three Craft Degrees have been erected. With a limited knowledge of the origin and history of the Ritual, and of the Symbolism in Freemasonry, it is not to be wondered at that a very large proportion of Masons consider they are orthodox in holding the opinion that Solomon, King of Israel, and the two Hiram, were Freemasons, and that Speculative Freemasonry originated at the building of the First Temple. I need hardly say that it is only natural every Jewish Mason should hold firmly to such a view.

The negative side of the question is this: "That Hiram Abiff was not slain. Solomon and the two Hiram were not Masons, and that Freemasonry did not originate at the Temple." And as I shall be able to show that we have Masonic history to support this negative, and that we have only to deal with a series of interesting and instructive legends, the sooner we recognize and admit the same, by placing the Temple and the Jewish characters connected therewith under the legitimate and intelligent classification, — allegory. The sooner we seek for the origin of the Legend of the Temple, and the period in the history of Freemasonry, when it was introduced, the earlier and the better shall we be able to understand really what Speculative Freemasonry is; or, as in the words of one of our important charges, "Be the better able to distinguish and appreciate the connection of our whole system, and the relative dependency of its several parts."

If so great a Masonic student as Dr. Oliver, in his early career, believed literally all that had been told him in the Lodge Room, is it to be wondered at that the like erroneous view still exists? The Doctor's experience can be best given in his own words: "The Legend of the 3°, when given as a naked and unexplained fact, and recited with all the solemnity of truth, 99 out of every 100 candidates believe it implicitly, and would esteem it a *casus belli* if any one were to express a doubt respecting the most improbable particulars which it professes to record; and when I was first initiated at an early age, I confess that such were my own impressions."

Ragon, who died in 1866, and was considered one of the ablest of French Masonic writers, thus refers to the 3°: "All the fables which are introduced to excite the wonder and astonishment of the Neophyte, and repeated as

undoubted facts as preserved by an ancient and accredited tradition, may be termed fanciful monstrosities, because the Holy Scriptures tacitly disprove them, for they contain no reference to the circumstances which constitute the Legend."

Grand Master Dalcho, in one of his orations, says: "I candidly confess that I feel a great degree of embarrassment, while I am relating to Ministers of God's Holy Word, or to any other gentlemen, a story founded on the grossest errors of accumulated ages; errors which they can prove to me to be such, from the sacred pages of Holy Writ, and from profane history; and, that too, in a minute after I have solemnly pronounced them to be undeniable truths, even by the Holy Bible on which I have received their obligation."

Oliver says also, on the same subject: "It is indeed indefensible as a sober matter of History, and the most rational application of it, which the W. M. could make at the conclusion of the ceremony, would be — to explain to the Candidate, that the drama in which he has sustained so conspicuous a part, is merely symbolical; and, then subjoin the reference. This course would be plausible, and prevent the Candidate leaving the Lodge, either with a fallacy on his mind, if he believes it to be true, or with a conviction that a clumsy and unworthy imposition has been practiced on him; which, from a better knowledge of the facts, he at once repudiates with a combined feeling of pity and disgust."

* * *

Such being the opinions of eminent Masonic writers, printed and published for the instruction even of entered apprentices, let us then ascertain the true definition as given by Oliver and others. "Freemasonry is confessedly an allegory, and as an allegory only must it be supported, for its traditional history admits of no palliation. Whoever would remove Freemasonry out of the category, as an allegorical institution, might as well destroy its existence; for in no other character would it be able to hold its own. It is one consistent and intelligible assemblage of symbols, and any attempt to explain it, by reference to facts, is sure to fail: instead of a clear, beautiful, and harmonious system connected in all its parts, a distorted caricature will be produced without a single redeeming trait of character."

Dalcho, holding similar views, says in addition: "Neither Moses, nor Solomon, nor Joshua, nor the two Hiram, nor the two Saints John belonged to the Masonic Order. It is unwise to assert more than we can prove, and to argue against probabilities. There is no record, sacred or profane, to induce us to believe that these holy and distinguished men were Freemasons. To assert which may make the ignorant stare, but will rather create the contempt than the admiration of the wise — let Freemasons give up their vain boastings, which ignorance has foisted into the Order, and relinquish a fabulous antiquity, rather than sacrifice common sense."

I invite your attention to the consideration of this fabulous antiquity as applicable to Solomon's Temple. Locke, the philosopher of the 17th century, and whom we know was a Freemason, says: "Religion is the only tie which will bind men, and where there is no religion, there can be no Masonry." Max Muller asks us to bear in mind — "That without a belief in a personal immortality, religion surely, is like an arch resting on one pillar, or like a bridge ending in an abyss;" and Bulwer Lytton truly adds: "Though all the world were carved over, and inscribed with the letters of divine knowledge, the characters would be valueless to him who does not pause to inquire the language, and meditate the truth." These three quotations supply religion, immortality, symbolism, a most appropriate triad, pointing to the pillars of wisdom, strength, and beauty: for wisdom abides in the man, who, with revealed religion as his guide, is strengthened in his belief in immortality, by recognizing the beautiful symbolism of Freemasonry, by which it inculcates so important a dogma.

Dr. Oliver considers that wherever and whenever the true God was worshiped, in the midst of idolatry, as in the time of Israel's apostacy under Ahab and Jezbel, that such worshipers of Jehovah were the representatives of ancient speculative Freemasons, and therefore he adds, at the erection of the First Temple, the Jews represented the pure speculative element which, joined to the Tyrian pure operative Masonry, was the first combination of speculative with operative. This can only be viewed at the most as merely sentimental — nothing historical as

bearing on the point that either the Jews were architects, or that Solomon and the two Hiram were Freemasons. Nor can any such sentimental amalgamation of the Jew and Tyrian, at the first temple, be urged as analogous to the combination of Pagan and Christian architects in the time of Constantine the First at Byzantium, or of Romanist and Protestant architects in the 17th century under Wren at the erection of St. Paul's Cathedral.

Findel, that great German Masonic writer, entirely ignores Jewish origin and Temple traditions, and although admitting much that is historical, is only willing to trace Freemasonry from the German Gilds of the middle ages. Fort, a renowned American writer, admits Jewish influence not Jewish origin, but that influence as of a period long subsequent to the Second Temple, for he commences his line of argument at the early Byzantium period of architecture.

Woodford, Past Grand Chaplain of Grand Lodge of England, and equally a writer of note, considers "our present speculative system, in its modern development, as undoubtedly lineally and archaeologically the successor of the Gild Fraternities of the operative Masons, but he asks 'whence did the Gilds obtain the Masonic legends?' and he adds, I am not inclined to give up the legend of the temple, or even a connection with the ancient mysteries altogether."

Mackey, the American Masonic writer, referring to the 3rd degree, says, "When I speak of the antiquity of Freemasonry, I must say, if I must respect the axioms of historical science, that its body came out of the middle ages, but that its spirit is to be traced to far remoter periods, for Freemasonry is the successor of the Building Corporations of the middle ages — and through them with less certainty, but with great probability of the Roman Colleges of Artificers — its connection with Solomon's Temple as its birthplace may have been accidental or a mere arbitrary selection of its inventors, and bears therefore only an allegorical meaning. The Temple of Solomon has played an important part in Freemasonry. Time was, when every Masonic writer subscribed to the theory that Masonry was there first organized, that there Solomon and the two Hiram presided as Grand Masters, initiated the symbolic degrees and invented the system of initiation, and that — from that period in unbroken succession and unaltered — form has it passed to us, down the stream of time." But Mackey goes on to say, "The modern method of reading Masonic history has swept away this edifice of imagination as efficiently as the Babylonish King demolished the structure itself, upon which it is founded. No writer who values his reputation as a critical historian would now attempt to defend the theory that Masonry originated at the building of the First Temple."

Findel, Fort, Mackey — three of as great celebrities in Masonic literature as are to be found entirely ignore the Jewish origin; and if we bear this in view, together with the other important fact, that Freemasonry is only a beautiful system of symbolism and allegory, we cannot but admit that the Rabbi Mamonides' Commentary on the Legends of the Talmudists is very appropriate, and a fitting Commentary on the Symbolism of Freemasonry. His words are: "Beware that ye take not the words of the wise men in their literal signification, for this would be to degrade and sometimes to contradict the Sacred Doctrines. Search further for the hidden sense, and if you cannot find the kernel, let the shell alone, and confess you cannot — understand it."

([To be continued](#))

* * *

THE PERFECT ASHLAR

Bro. H. A. Kingsbury, Massachusetts

Kingsbury, Harold A.; born, Westfield, Mass., August 27, 1882; graduate in Chemical Engineering, Massachusetts Institute of Technology, Boston, Mass., 1907; graduate in Law, National University, Washington, D. C., 1910; graduate in Patent Law, George Washington University, Washington, D. C., 1911; Member of Bar of District of Columbia; Member of Bar of Supreme Court of United States; Assistant Examiner U.S. Patent Office, 1908-1912; at present, Assistant Patent Counsel, The New Departure Mfg. Co., Bristol, Connecticut; Washington Centennial Lodge No. 14, Washington, D. C.; Mount Vernon Chapter No. 3, Washington, D. C.; Scottish Rite Bodies, 4° to 18°, Springfield, Mass.; 19° to 32°, Massachusetts Consistory, Boston, Mass.

IN the case of many of the symbols used in Masonry it almost seems as though the ritual writers must have followed the rule, "The importance to be given a symbol in the ritual should be inversely proportional to the real importance of that symbol." Particularly does this rule seem to have been applied to the case of one of the Jewels of the Lodge — the Perfect Ashlar or Perfect stone Cube. For this symbol, though casually dismissed with but two or three brief sentences in the monitorial instructions, is, in reality, of very considerable importance and interest and deserving of the careful attention of the Mason.

The Perfect Ashlar is one of a group of three Jewels. Thus the symbol calls the Mason's attention to one more of the many (not less than twenty) references, in Craft Masonry, to the number Three — the most significant of all the numbers (unless it be Seven) held in veneration in nearly every ancient system of religious philosophy, and even having, in some of those systems, notably that of Plato, the importance of a symbol of Deity.

Stone, the material of the Perfect Ashlar, was considered of great importance in many of the ancient religions and, indeed, in some was worshiped. Stone worship existed among the early American races. There is good reason for believing that the Peruvians worshiped stones, as the protectors of their crops. The Greeks originally used unhewn stones to represent their deities. The Thebans represented the god Bacchus by a stone. In the Kaaba at Mecca is a stone, Hajar al Aswad, which was worshiped by the ancient Arabians and which present-day Mohammedans regard with veneration. The Druids represented their gods by stones.

Stone is so evidently the symbol of Permanency, Faith and Trust that it seems almost unnecessary to cite examples here. But any one familiar with his New Testament will recall the incident of the giving of the name Cephas, or Peter, meaning a stone, to Simon, who stood for the permanency, faith and truth of the Early Christian Church, and will recall that Christ said, "Thou art Peter and on this rock I will build my Church."

The cubical form of the Perfect Ashlar serves to further identify it as the symbol of Permanency, Faith and Truth as the Cube, from the time of the Ancients has had this significance. We have an example of it in Revelations (XXI, 16) where the New Jerusalem is described as having its length, breadth and thickness equal, each to the other, giving, of course, a cubical form to the city.

The fact that Masonry uses a hewn, rather than an unhewn stone, for symbolizing Truth, furnishes an interesting example of the ways in which the introduction of (comparatively) self-evident conceptions derived from Operative Masonry has worked, in some instances, curious changes in the more abstruse symbolistic systems which Masonry has, apparently, inherited from the Hebrews and the Egyptians. That is, in the Masonic system, following at this point suggestions from Operative Masonry, the hewn and perfect condition of the Perfect Ashlar is understood to emphasize and make yet stronger the symbol's reference to Truth, whereas in the symbolistic systems of the Hebrews and the Egyptians a rough, unhewn cubical stone was considered to symbolize Truth and a perfect, hewn stone was understood to symbolize Falsehood.

However interesting and important the various other symbolic significances of the Cube may be, the symbolic suggestion that perhaps most concerns the Mason of today, and particularly the American Mason of today, is this: The Cube is the symbol of the state and it is placed in the Masonic Lodge to constantly remind the Mason, of the State, or political structure, of which he forms a part, and to recall him to those duties which he, a citizen, owes to that State.

If one views a cube with his eyes slightly above the top of it, and opposite one of its vertical edges, he will find that, as indicated in the figure, there are three faces visible, and three invisible, to him. The three visible faces symbolize the three departments of the State, the Legislative, which makes the laws, the Judicial which interprets them, and the Executive which executes them. The three invisible faces symbolize the invisible soul of the State, Liberty, Equality and Fraternity. As these three invisible faces are necessary to complete and make stable the Cube so are Liberty, Equality and Fraternity necessary to complete and make stable the State.

The Perfect Ashlar, in its character of a symbol of the State, represents an ideal to be striven for — the perfect State has not yet been finally developed. But, upon his first entrance into Masonry, the Mason is presented

with Working Tools with which to shape and to gauge his work — the Gavel, symbolizing Force, and the Gauge, symbolizing Rule or Law. And the Perfect Ashlar reminds the Mason that his entered apprentice's Working Tools are given him to use and that it is for him, a citizen, to apply them, using Force, properly held in restraint by Rule or Law, to, so far as in him lies, make his ashlar a Perfect Ashlar and his state a perfect State.

* * *

CONSTRUCTION

Destruction has its millions within its awful thralls;
To do its bidding night and day, and mandate all its calls.
Another host in other parts Construction does employ;
To build our homes and cities fair, and all that we enjoy.

Construction and destruction have been fighting hand to hand
Since this old world began to turn, and neither rules the land.
But what construction does today to build in modern ways
Destruction lays in desolate waste in future struggling days.

One hand can swing the mighty sword, and in its awful swath
The lives of millions fall like grain — why reckon up the loss?
But two hands do the building as we raise the wall again;
Two hands bind up the wounded, and two hands construct again.

One hand can raise the fire-brand from the smoldering coals of hate;
Two hands must stop the raging flames before it is too late.
One hand can give the signal for the largest guns to boom
Two hands must raise above the dead the flowers into bloom.

Two hands can build with stone on stone the highest wall that's laid;
One hand can burst the fatal shells, and debts alone are made.
One hand may wield destruction as it goes along life's path;
Two hands must do the healing, as we reap the aftermath.

Why not use the brick and mortar, not the rifle and the sword?
Why not use the trowel and level, at Construction's signal word?
Why not use the square and plumb-line as we raise our friendships kind?
For destruction's not external until cherished in man's mind.

What's within brings forth the harvest; thoughts rethought make up the seeds;
That same harvest may be useful, or a useless growth of weeds.
Why delay internal plantings when destruction's passions yield?
Go into internal pastures; there prepare the fertile field.

There prepare it for the planting, like a garden fair to see;
Sow it, watch it, tend and weed it, 'til from weeds the ground is free.
By and by the crop grows stronger, and no weeds can therein grow;
For the harvest forth is coming — a repayment for the sow.

By destruction things are severed from their proper place in life.
By construction brought together; fitted 'gainst a social strife.
By destruction strong connections are at once asunder torn;
By construction once well welded — and redone by son unborn.

When our lives are in their fittings and each unit has its place
The design has form and beauty which the artist's brush would trace;

With the back ground and perspective, and our hopes the foreground fill -
There's construction in the picture; beauty through the artist's will.

Faith it takes for all construction; faith it takes to plan to do;
Faith it takes at the foundation, and to see the matter through.
Faith it takes when all's destruction to rise up and build some more;
Faith it takes when broken idols lie upon the tiled floor.

Hope in all constructive action is the active force to move.
Faith is passive in the planning, and the two, resultants prove.
Hope moves faith into an action which before was in the breast,
And the two are both constructive counting for the very best.

The resultant is construction, in both matter and in mind;
Putting useful things together which apart, serve not mankind.
Two hands, with a mind and feeling make for charity and love
They produce the world's resultant guided by a Force above.

— Geo. N. Foster, Lincoln, Nebr.

* * *

Justice is as strictly due between neighbor nations, as between neighbor citizens. A highwayman is as much a robber when he plunders in a gang, as when single; and a nation that makes an unjust war is only a great gang of robbers.

— Franklin.

* * *

MASONIC JURISPRUDENCE

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I. THE DATA OF MASONIC JURISPRUDENCE

At the outset we may well ask ourselves why do we say Masonic Jurisprudence? Why not simply Masonic Law? Is there a science of Masonic law as distinct from Masonic law itself? For in its original and etymological meaning and in the best usage, jurisprudence means the science of law. It is true there are two other uses of the term. The French use it to mean the course of decision in the courts as contrasted on the one hand with legislation and on the other hand with doctrine or the consensus of opinion of learned writers and commentators. To some extent this French usage has been received with us, particularly in the phrase "equity jurisprudence," signifying the course of decision in Anglo-American courts of equity, which has gained currency through the classical work of Judge Story. But it must be obvious that Masons do not employ the word in this sense. Although the course of decision in Masonic tribunals in the form of rulings of the Grand Masters and action of Grand Lodges thereon and of review of trials in or by Grand Lodges, is an important form of Masonic law; it furnishes but a part, and relatively a modern part, of the materials of what we are wont to style Masonic jurisprudence.

By a not unnatural transition from the French use of the term it has come to be used also chiefly in this country, simply as a polysyllabic synonym for law. Medical jurisprudence, for the forensic applications of medicine, has much vogue. Dental jurisprudence for the law of interest to dentists, engineering jurisprudence for the law of interest to engineers, architectural jurisprudence for the law of interest to architects, are heard occasionally. These seem quite indefensible. But even if they were not to be critized, they would not warrant Masonic jurisprudence, for the latter term calls to mind not that part of the general law of the land which has special interest for the Mason, but the internal law of the fraternity itself. We come back, therefore, to our question whether Masonic jurisprudence is simply a grandiose name for Masonic law or whether, on the other hand, there is a science of Masonic law distinct from the law of each Masonic jurisdiction? Is there, in other words, an organized body of

knowledge above and behind each particular local Masonic law upon which the latter rests as fully and truly as the particular legal rules of one of our commonwealths rest upon the principles of general legal science and the principles of Anglo-American legal tradition? For the moment I shall assume that there is, and my purpose in this course will be, not to expound dogmatically the rules of Masonic law which obtain here or elsewhere, but to show, if I may, that there is a science of Masonic law, to examine its material and its methods, and to set forth its principles.

In studying the law of politically organized society we say that it may be expounded dogmatically, that is, the content and application of its several rules and principles may be investigated and set forth, or it may be studied by one of the methods of jurisprudence — analytical, historical, or philosophical. In truth dogmatic study is of little value except as it makes use of and rests upon these methods of legal science. They justify themselves in the end by making for effective understanding and criticism and improvement of the law of each state. But they are methods of legal science generally, while the dogmatic method is applicable not to jurisprudence but to a particular body of law. We may study a particular body of law analytically, that is, we may investigate the structure, subject matter and rules of a legal system in order to reach by analysis the principles and theories which it logically presupposes. As a method of jurisprudence, however, the analytical method is comparative. It involves a comparative study of the purposes, methods and ideas common to developed systems of law by analysis of such systems and of their doctrines and institutions in their matured forms. Again, a particular body of law may be studied historically. That is, investigation may be made of the historical origin and development of the legal system and of its institutions and doctrines, looking to the past of the law to disclose the principles of the law of today. But here also, as a method of jurisprudence the historical method must be comparative. It involves a comparative study of the origin and development of law, of legal systems, and of particular doctrines and institutions in order to draw therefrom universal principles of legal science. Finally, a particular body of law may be studied philosophically. That is, investigation may be made of the philosophical bases of the institutions and doctrines of a legal system in order to reach its fundamental principles through philosophical speculation. When this method is pursued comparatively and the philosophical basis of law generally and of general legal institutions and universal legal doctrines is sought, in order to reach universal principles, the philosophical method becomes a method of jurisprudence. Formerly these three methods, the analytical, the historical and the philosophical, contended for the mastery. Today we recognize that no one of them is self-sufficient and that jurisprudence must employ each of them in order to achieve a well-rounded science.

If we apply these ideas to Masonic law, we may say that a dogmatic exposition of the law of any jurisdiction would, indeed, very likely be profitable. But it would be relatively of little value, certainly of little permanent value, unless it made use of and rested upon the analytical, the historical and the philosophical methods. Moreover these methods should be developed comparatively, as methods of a Masonic legal science, if they are to give their best results. On the other hand these methods are not pursued for their own sake. In the end they must justify themselves by making the law of each Masonic jurisdiction more scientific, better organized, more easy of comprehension and of application and more effective for the purposes for which it exists. Unless he can give us principles of systematization, of criticism and of improvement in those parts of our law which are subject to change, the jurist has no claim upon the attention of a craft of workmen.

Another preliminary question confronts us. How far are we justified in speaking of Masonic law? Is the body of rules to which we give that name law in any proper sense of the term? Are we warranted in applying to it the methods and in attaching to it the ideas which are appropriate when treating of the law of politically organized society?

There are three common uses of the term "law": (1) Law as used in the natural and physical sciences; (2) natural law or law of nature as the term has been used by writers on ethics, politics and the philosophy of law; (3) law in the juridical sense. In the sciences, law is used to mean deductions from human experience of the course of

events. Thus the law of gravitation is a record of human observation and experience of the manner in which bodies which are free to move do in fact move toward one another. Similarly Grimm's law in philology is a record of the observations of philologists as to the manner in which consonantal changes have taken place in the several Aryan languages. By natural law ethical, philosophical and political writers mean the principles which philosophy and ethics discover as those which should govern human action and the adjustment of human relations, and hence as those with respect to which obligatory rules of human conduct ought to be framed. Law in the juridical sense is said to be the body of rules, principles and standards recognized or enforced by public or regular tribunals in the administration of justice. Obviously there is an idea in common here, namely, the idea of a rule or principle, underlying a sequence of events, whether natural or moral, or judicial. In this wide sense, therefore, we may speak of the rules or principles which underly a sequence of events in a fraternal organization as law, just as we should so style the rules or principles underlying a sequence of events in a political society. But this wide use of the term law has been the subject of much objection and much dispute and we may put ourselves on firmer ground by looking at certain analogies between the rules which govern the decision of controversies and the adjustment of relations in a politically organized society and those which govern disputes and adjust relations in religious organizations and in fraternal organizations.

At bottom we must rest the whole structure of state and law upon the hard fundamental fact that in a finite world, human demands are infinite. If there were enough material goods to go around and enough room so that each of us might move in the widest orbit his fancy could picture or his desires could dictate without coming into collision with his fellow men, we should not need any elaborate system of balancing conflicting interests nor any elaborate machinery for putting into effect the standards for delimiting and enforcing interests which result from such balancing. Unhappily the material goods of existence do not suffice to give to each everything which he may claim or which he does claim. Hence to conserve the values of life and to eliminate waste men organize themselves and organize or invent rules and standards and principles by which to eliminate waste and make the available stock of values go as far as possible. In the beginning these organizations are simply groups of kindred. Presently religious and maternal organizations develop. Subsequently political organizations arise. In time trade and professional associations are added. All these seek in one way or another to secure to men values which might otherwise be dissipated. They have their justification in the necessity of conserving what would otherwise be lost in the struggle of individuals to satisfy infinite claims upon a limited store. Accordingly, if we look for a moment at the state, we see that it eliminates waste by means of the law in several ways. For one thing it furnishes a rule of decision in case of dispute and thus obviates resort to private war when controversies arise. One has only to consider what happens today in case of an industrial dispute in order to see what this means.

In an ordinary dispute between man and man today we have a measure of conduct which is ascertainable within reasonable limits in advance. If the dispute becomes acute, one party or the other may summon his adversary before a public tribunal and may have the dispute adjudicated upon the basis of settled rules, according to a settled procedure, and with reference to settled modes of redress. When the judgment is pronounced, it is not optional with the defeated party to adhere to it or not. The whole power of the state is behind it and the force of organized society may be invoked to carry it out. In an industrial dispute on the other hand, we have no clear measure of conduct. Each party is referred to his individual sense of fairness and to the general sense of fairness of the public at large. But in a highly diversified community in which groups and classes with apparently divergent interests understand each other none too well and have conflicting ideas of justice, general public opinion is seldom sufficiently definite and consistent to serve as a restraint upon the partisan notions of justice entertained by the contending parties and hence is left to be the judge of its own case. With no clear predetermined measure of adjustment of such controversies, with no settled mode of procedure, with no settled mode of redress and no strong, permanent tribunal, backed by the moral sense of the community, long tradition, and the force of the state, to pronounce and give effect to a judgment, there is no way to satisfy or to coerce the disputants and in practice, as

like as not, the interests of each and the interests of society suffer equally. Society struggles to maintain its interest in the general security and to prevent waste under such circumstances by seeking peace at whatever sacrifice. It is not a question of equal and exact justice. The paramount demands of peace and good order are to be met first. The policy is not "let justice be done though the heavens fall," but "peace at any price." Hence society endeavors to put pressure upon the disputants, directly, indirectly, openly or covertly, to submit to arbitration and to abide the award. A public service company may be threatened with forfeiture of franchise. A private owner may be threatened with extra-legal sequestration of his property. Both parties may be threatened with a report as to the causes of the dispute and the issues involved to be made public after an official inquiry. Press, pulpit and platform may exhort and rebuke. Thus in one way or another a compromise or an arbitration may be brought about. But when such a result has been achieved, no guide has been provided for the next dispute. No precedent has resulted. Nothing has been accomplished beyond averting or terminating a condition of private war in that one case. The whole process is crude and wasteful. Every time that this happens we act over again the inception of law. The Roman magistrate who stepped between the contending litigants and called out, "Let go, both of you," the praetor who pronounced the interdict, "I forbid that violence take place," and the indirect devices whereby a case for arbitration was formulated, not upon direct statement of their claims by the parties but through indirectly inducing or coercing a reference or an arbitration, testify to a general condition of which the special condition that obtains in a modern industrial dispute is perhaps the last remnant. By furnishing a rule for decision and by furnishing a guide to conduct the law enables society to reconcile conflicting interests, to conserve values and to eliminate waste.

This same problem of reconciling conflicting interests, of conserving values and of eliminating waste arises in every group — in religious and fraternal organizations no less than in political organizations. And it is met in the same way. By slow and painful development of customs through experience, followed by deliberate formulation of rules invented for the purpose, men select out of the great mass of possible claims those which seem to call most urgently for security, define them, weigh them against other recognized interests and devise means for giving them effect. This process of recognizing, delimiting and securing interests when carried on by a political society is called lawmaking and the rules and standards of conduct and rules and principles of decision thereby set up are called law. In like manner the rules and standards of conduct and the rules and principles of decision developed or devised to secure interests and conserve values in the universal medieval church are called the canon law. No less justly may we apply to the rules and standards of conduct and the rules and principles of decision evolved or devised to secure interests and conserve values in our universal fraternal organization the name of Masonic law. For if it is said that we cannot enforce our law as the state enforces its law — that the sheriff and his posse looms in the background of the latter while the former is but hortatory — the answer must be that our law has behind it the same sanction that was behind the law of the medieval church, namely, excommunication and that this is essentially nothing else than the sanction of the earlier stages of the law of politically organized society — namely, outlawry. The group in each case casts out the individual who, through defiance of its law threatens a waste of the values which it seeks to secure.

Assuming, then, that we are justified in speaking of Masonic law, what are the component parts of our Masonic legal system; what are the jural materials with which the Masonic lawyer must work? I venture to distinguish three types of rules: (1) The landmarks; (2) the Masonic common law; (3) Masonic legislation. I cannot deny that in so classifying the jural materials of Masonry I am influenced by our Anglo-American distinction of constitutional rules, common law and legislation. And one should not turn to such an analogy hastily or unadvisedly. For I shall endeavor to show in another connection that Masonic jurisprudence has suffered in this country from overzealous attempts to mould our law by the analogies of the political law of the time and place and from the hasty assumption that our American legal and political institutions might be relied upon to furnish principles of law for a universal fraternity. Nevertheless the craft has engaged the hearty service of great lawyers for at least two

centuries and the revival from which we date the Masonry of today took place in a time and in a country in which certain legal and politic ideas were universally entertained and were almost taken to inhere in nature.

Hence we have more than analogy — we have, if not a causal relation, at least a relation of great influence.

Presupposing this three-fold division, we have first, the landmarks, a small not clearly defined body of fundamentals which are beyond reach of change. They are the prescriptive or unwritten constitution (using constitution in the purely American sense) by which every thing must be judged ultimately and to which we must all conform. Second, we have Masonic common law — the body of tradition and doctrine, which falling short of the sanctity and authority of the landmarks, nevertheless is of such long standing, and so universal, and so well attested, that we should hesitate to depart from it and are perforce wont to rely upon it whether to apply our own law or to appreciate the law of our neighbors.

These first two elements of Masonic law rest in tradition and in doctrinal writing. They take the form of: (a) Tradition — the mode of conducting Masonic affairs which has been handed down from master to master, from lodge to lodge for centuries and embodies the experience of countless sincere, zealous, well-informed brothers; (b) treatises, of which Oliver's *Institutes of Masonic Jurisprudence* and Mackey's *Masonic Jurisprudence* are the best types; (c) decisions of Grand Masters and review thereof by Grand Lodges, recorded in the published proceedings of Grand Lodges, chiefly in America; and (d) reports of the committees on correspondence of our American Grand Lodges, in which the decisions in other jurisdictions are reviewed and criticized and a comparative and universal element is introduced which is of the highest value to the Masonic jurist. These committees on correspondence have been much kicked at and it cannot be denied that the work of some of them at times has been crude. Yet for the present purpose their work has been invaluable. No one who has studied Masonic jurisprudence attentively can fail to testify to the unifying force exerted by these committees. The stimulus of their criticism, even when ill directed has made our local Masonic jurists pause to think of the rest of the Masonic world; it has exerted the scientific influence which is always involved in comparison; it has worked everywhere for universality in our welter of independent local jurisdictions, each ambitious to make its own law.

The two main elements just enumerated make up the unwritten law of Masonry. A third element, namely, Grand Lodge legislation, of which our American Grand Lodges have been exceedingly prolific, constitutes the written law of Masonry.

A moment's digression is required to explain these terms. As soon as legal systems attain any degree of maturity, they are made up of two elements: A traditional element and an imperative element. Following the Roman jurists, the traditional element is generally known in jurisprudence by the name of the unwritten law — *jus non scriptum* — and the imperative element by the name of the written law — *jus scriptum*; not that we do not find the principles and rules of each today only in writings, but because the latter was deliberately and authoritatively reduced to writing at its inception.

Our main interest is in the unwritten law — the traditional element — which, except as local decisions interpret or apply local legislation, proceeds or purports to proceed on universal lines and is or seeks to be in principle permanent and general, even as legislation is ephemeral and local.

Let me develop this point a bit. As has been said, a developed legal system is made up of two elements, a traditional element and an enacted or imperative element. Although at present the balance in our law is shifting gradually to the side of the enacted element, the traditional element is still by far the more important. In the first instance, we must rely upon it to meet all new problems, for the legislator acts only after they attract attention. But even after the legislator has acted, it is seldom if ever that his foresight extends to all the details of his problem or that he is able to do more than provide a broad, if not a crude outline. Hence even in the field of the enacted law, the traditional element of the legal system plays a chief part. We must rely upon it to fill the gaps in legislation, to develop the principles introduced by legislation and to interpret them. Let us not forget that so-called interpretation is not merely ascertainment of the legislative intent. If it were, it would be the easiest instead of the most difficult of

judicial tasks. Where the legislator has had an intent and has sought to express it, there is seldom a question of interpretation. The difficulties arise in the myriad cases with respect to which the law maker had no intention because he had never thought of them — indeed perhaps he could never have thought of them. Here under the guise of interpretation the court, willing or unwilling, must to some extent make the law, and our security that it will be made as law and not as arbitrary rule lies in the judicial and juristic tradition from which the materials of judicial law-making are derived. Accordingly the traditional element of the legal system is and must be used even in an age of copious legislation, to supplement, round out and develop the enacted element, and in the end it usually swallows up the latter and incorporates its results in the body of tradition. Moreover a large field is always unappropriated by enactment, and here the traditional element is supreme. In this part of the law fundamental ideas change slowly. The alterations wrought here and there by legislation, not always consistent with one another, do not produce a general advance. Indeed they may be held back at times in the interests, real or supposed, of uniformity and consistency, through the influence of the traditional element. It is obvious, therefore, that above all else the condition of the law depends upon the condition of this element of the legal system.

Another feature of the twofold composition of developed legal systems is of no less importance. The traditional element rests at first upon the traditional mode of advising litigants on the part of those upon whom tribunals rely for guidance or upon the usage and practice of tribunals. Later it rests upon juristic science and the habitual modes of thought of a learned profession. Thus the ultimate basis of its authority is reason and conformity to ideals of right. On the other hand the imperative element rests upon enactment. It rests upon the expressed will of the sovereign. The basis of its authority is the power of the state.

The parallel with Masonic law is exact. With us, the most important of our jural materials are in the traditional element.

First, we must rely upon the traditional element to meet all new problems, and the normal course of growth in Masonic law is: (1) A new application of a traditional principle by the decision of a Grand Master; (2) review thereof in a Grand Lodge; (3) comment thereon by the various committees on correspondence; (4) the growth of a consensus of opinion on the subject among Masonic jurists; and (5) incorporation in some text book of Masonic law or in declaratory legislation. Secondly, we must rely on the traditional element to fill all gaps in Masonic legislation. Thirdly, we must rely on it to interpret legislation and to develop legislation. Fourthly, above all, as we are a universal institution and ought to legislate cautiously, we must rely on the traditional element to furnish the principles of legislation and a critique of legislation. We are not like a political organization — mere will has no place in any theory of Masonic law-making.

Accordingly it is of the first importance to have a theory of the unwritten law of Masonry and an organized, systematic science of this traditional element of our law — in other words, to have a science of Masonic jurisprudence.

What are the data of this science? What are the materials which we may use in constructing it?

I take it they are five: (1) History; (2) general Masonic tradition; (3) philosophy; (4) logical (or systematic) construction on the basis of history, philosophy and tradition; and (5) authentic modern materials of Masonic common law.

Let me take these up in order. First as to history. Here there are two questions: (a) What materials does Masonic history furnish which are important for Masonic jurisprudence; (b) what is the function of history in Masonic jurisprudence — how and for what purpose should we use history in this connection? On such an occasion one can only speak summarily. In a few words, the historical materials which are important for the Masonic jurist seem to be five:

1. The manuscript constitutions of British Freemasons — a series of manuscripts the oldest of which go back to the fourteenth century, which are the foundation of authentic Masonic history. These are of especial importance on the subject of the landmarks. Thus, when we trace in the manuscripts the old charge to be

true to God and holy church and the new charge of 1738 that if the Mason understands his art aright he will never be a stupid atheist, history reinforces the tradition contained in the master's obligation.

2. Seventeenth and eighteenth-century notices of English Masonry prior to 1717. From these materials we are able to see how Masons met and what they meant by a lodge prior to the rise of Grand-Lodge Masonry and are enabled to distinguish between the landmarks and the common law as to Masonic organization.
3. Old lodge records in England and Scotland. These also throw great light upon the organization of the Craft prior to 1717. When we find presidents and wardens and deacons as the highest officers of lodges, we see again what was from the beginning and what is simply common law.
4. Eighteenth-century writers who had or purported to have access to traditions current among Masons at and prior to the organization of the Grand Lodge of England in 1717 and to old manuscripts not now extant. Even if some or much of the information which they purport to give on the basis of such traditions and such manuscripts is apocryphal, it has entered into the stream of subsequent Masonic tradition and may not be overlooked.
5. Grand Lodge records, beginning in England in 1723, which show the settled practice of the formative period of Masonry as we know it today.

Of these five classes of historical materials, the fourth calls for some special notice. It is made up of three well-known books which have exerted an almost controlling influence upon our ideas of Masonic history and have largely determined Masonic tradition. These books are: Anderson's *Constitution* (1723, second edition 1738), Preston's *Illustrations* (1772) and Dermott's *Ahiman Rezon* (1756, second edition 1764). It would be out of place to attempt an appraisal of their historical value here. Moreover the thorough-going critique of Gould, which has definitely overthrown much which had long been accepted on the authority of these books has not wholly destroyed their importance for Masonic jurisprudence. As Hobbes puts it, "authority not truth makes the law." It may well happen that historical mistakes may become fixed in the legal fabric. For example, Lord Coke very likely erred in much that he laid down in his Second Institute as to the history of our Anglo-American constitutional doctrine of the supremacy of law. Yet his writing is the foundation of our public law and his results have amply justified themselves. It is no fatal objection in practical affairs that the conclusions must sustain the premises. Hence if Anderson and Preston and Dermott cannot be vouched for landmarks, they must be read diligently in order to reach the sources of much of our Masonic common law.

Let us turn now to the other question, what are the uses of Masonic history? One use is to correct tradition, as for example, in the case of the apocryphal long list of royal and noble Grand Masters. Another is to hold philosophy in bounds, as for example, in the case of the controversy which raged once in one of our American Grand Lodges as to the wearing of white gloves, on the theory that gloves were unknown at the time of the building of the temple, or, again, in the rejection of the letter G on philosophical grounds by another of our Grand Lodges. Another use is to test doctrinal (systematic, logical) exposition, as in the case of Mackey's twenty-five landmarks. But this correction by history should not be pressed too far. It should not be used as the basis of rejecting settled Masonic common law, shown by universal practice since the end of the eighteenth century. For example, nothing is better settled than the doctrines of territorial jurisdiction in Craft Masonry and the impropriety of invasion of jurisdiction. If there are no landmarks here, there are settled principles of Masonic conflict of laws which are a part of the universal law of the Craft.

Our second main source of law is tradition. Today this is set forth in the form of doctrinal exposition and Grand-Lodge decision. Much of it is declared by Grand-Lodge legislation. It is of the highest value in fixing the principles of Masonic common law. But elsewhere it is dangerous. It must always be corrected by careful historical consideration of whether the tradition in question is authentic, immemorial and pure.

Our third main source of law is philosophy, that is, deduction from principles found by philosophical study of the ends and purpose of Masonry — for example, deduction from the principle of universality, from the principle of

organization of moral sentiments of mankind, from the principle of furthering human civilization. It may be compared with the metaphysical method in jurisprudence which seeks to deduce all legal rules from or correct them by a fundamental principle of human freedom. Philosophy is chiefly useful as a check on Masonic history. For example, if one were to look only to history, he might make a strong argument that the dinner or banquet following the work on important occasions was a landmark. Certainly as far back as we have accounts of Masonic work we find the brethren sitting about the board in this way. But consideration of the purposes and ends of the order shows us at once that we have here but an incident of ordinary human social intercourse. So in the case of the objection to white gloves above referred to. The Masonic philosopher perceives at once that we have here a traditional symbol and that purely historical considerations cannot be suffered to prevail.

Our fourth main source of law is logical construction. It has the same place with us as juristic science has in the law of the state. It is of the first importance if the data are sound and are well used. Mackey's famous text book of Masonic jurisprudence (1859) is still the best example of the use of logical construction.

The fifth main source of Masonic law is to be found in authentic modern materials of Masonic customary law and in settled Masonic usage since the last half of the eighteenth century. Indeed the general principles of this settled usage have all but the force of landmarks. Thus Mackey recognizes: (1) Landmarks; (2) general laws or regulations; (3) local laws or regulations. Here the second is substantially what I call Masonic common law and the third what I call Masonic legislation. Mackey says of the second: "These are all those regulations that have been enacted by such bodies as had at the time universal jurisdiction. They operate, therefore, over the Craft wheresoever dispersed; and as the paramount bodies which enacted them have long ceased to exist, it would seem that they are unrepealable. It is generally agreed that these general or universal laws are to be found in the old constitutions or charges, so far as they were recognized and accepted by the Grand Lodge of England at the revival in 1717 and adopted previous to the year 1726." This would receive Anderson's first edition without question as a conclusive exposition of the principles of the traditional element. Today it is clear that we cannot accept it. But the idea at the bottom of Mackey's system is sound.

I take it we must distinguish two things. (a) We may perceive certain settled principles adhered to by all regular and well-governed lodges since the last quarter of the eighteenth century. For example, with one exception it has always been recognized that at least three lodges are required to set up a Grand Lodge. But we must be cautious here. It will be noticed that Mackey assumes that fluidity is at an end by 1721. We cannot accept this proposition. We must recognize a great deal of fluidity till much later. But Masonry is not bound to retain forever the fluidity of the first half of the eighteenth century. (b) Next we must differentiate from the principles themselves the development of these principles (i) by logical deduction and juristic speculation, and (ii) by judicial empiricism in the decisions of Grand Masters and the review thereof by Grand Lodges.

The latter is almost wholly American and much of it is worthy to rank with the best achievements of legal development in any political organization. If the law of the medieval church became for a time the law of the world and gave ideas and doctrines to the law of the state which are valuable for all time, it is not at all impossible that our universal organization, coming much later to the work of law-making, may in its turn develop legal ideas of universal value and thus contribute indirectly to the furtherance of civilization while contributing directly thereto in its ordinary work.

* * *

AT REFRESHMENT

Bro. Geo. W. Warvelle, Illinois

I CONTINUE to hear complaints from certain quarters concerning the wasteful extravagance in the matter of refreshments, together with suggestions as to the good that might be accomplished if the money so expended were applied to works of charity and pure beneficence. But, notwithstanding these oft repeated admonitions from those who stand on the watch towers of zion, the Craft jogs along in the same old way and the banquet is still a potent

factor in Masonic life. And yet, this is strictly in keeping with the old precedents; a faithful adherence to the old land. marks.

Freemasonry, in its inception, was strictly a convivial institution, all reports to the contrary notwithstanding. In later years it took on liturgic features, but the old customs, in large measure, were continued and in modified forms are still practiced. The custom of "refreshment" may be traced back to the mediaeval Gilds, while the oldest records of the Masonic Fraternity, as a speculative society, contain references to the feasting (including drinking) at the craft meetings.

The seventeenth century has left many authentic references to the conviviality which characterized the meetings in those days. Thus, Plot in his history, when alluding to the Masons, says: "When any are admitted, they call a meeting (or Lodge as they term it in some places) and entertain with a collation according to the custom of the place; This ended, they proceed to the admission of them." Plot was not a Mason. Ashmole, in his diary, notes a meeting he attended at London in 1682. Of this he says: "We all dined at the Half-moon Tavern in Cheapside, at a noble Dinner prepared at the Charge of the new accepted Masons." And so, it will be seen that from very early times a feast was an important part of a Masonic meeting.

It has been suggested, by some of the English scholars, that this custom of a feast originated in the actual necessities of the occasion; that many of the members of the early lodges came long distances to attend the meetings and frequently on foot. Hence, it was necessary that they should be provided with refreshment of some kind either on their arrival or before setting out on their return journey. You will see, therefore, that the J. W.'s call to refreshment was not an empty formality in those days.

It would seem that in the old days the feast always preceded the work, a custom that has not yet died out in England. And as in nature the tendency is to constantly revert to earlier types, so in human institutions we may observe the same phenomena. In many localities the six o'clock dinner has taken the place of the eleven o'clock banquet, while the old-time flow of post prandial oratory has been eliminated. This was the custom of the Grand Lodge of England far into the historic period, as witness the minutes of the "assembly and feast" at Stationers Hall on June 22, 1721, when "after Grace said, they sat down in the antient manner of Masons to a very elegant Feast, and dined with Joy and Gladness." After this followed the regular business, and then the Grand Master ordered the Warden "to close the Lodge in good Time." * * *

But the banquet is too firmly entrenched to be obliterated by any shell fire the disciples of the new thought may pour upon it. The Freemasons are still, even as in the old days, a social brotherhood and the customs of the fathers will long continue, notwithstanding the edict "The Banquet must go." From the dawn of history we may find the custom in connection with fraternal societies. It is not peculiar to Freemasonry. In fact, our Masonic ancestors simply borrowed the custom from those who preceded them. Long years ago, in ancient Greece, the banquet followed the initiations into the mysteries, as witness the following, which I quote from the "Golden Ass" of Apuleius:

"All the uninitiated having been sent away, the priest clothed me in a new linen garment, and, taking my hand, let me into the penetralia of the sanctuary. You will perhaps, ask, studious reader, and be anxious to know, what was then done. What was done, ask you? I would tell, if it were lawful to tell; thou shouldst know, if it were lawful for thee to hear. But I will not detain in long suspense you, who are, perchance, in a state of suspense with religious anxiety. Hear, therefore, and believe, for the things I narrate are true. I approached the confines of death, and, having trod the threshold of Proserpine, I was earried back through all the elements. At midnight, I beheld the sun glittering with clear light; I approached the gods of Hades and of Heaven, and adored them face to face. Thus have I related to you things, which, although heard by thee, thou canst not know. . . After this, I celebrated a most cheerful banquet in honor of my birth day into these rites; pleasant was the banquet and lively the entertainment."

I direct your special attention to the closing lines of the above paragraph. They simply show that mankind and human nature are much the same in all ages and all lands. * * *

A few years ago Admiral Dewey is reported to have said, that he attributed his robust health and length of days to these facts: that he had entered the navy and kept away from public banquets. Perhaps all of us cannot take the first part of his prescription, and perhaps also, the real worth lies in the latter part of it. Certain it is, that while the 12-inch gun may have slain its thousands the deviled crab and the overripe lobster have laid low their tens of thousands. It is not given to all of us to die in behalf of a great cause. In fact, few of us care to die. But everyone is privileged to incur indigestion and other gastronomic ills, and this privilege the most of us insist in availing ourselves of with remarkable persistence.

It is said, however, that the fatalities which mark the history of public feeding do not constitute its worst reproach; that the gleater harm consists in the undigested ideas which every well regulated banquet is bound to liberate. Bad food and poor talk make a combination that is fatal to the soundest human system. Thus is it written:

Avoid the groaning board, my son, The devilled crab, the Melbaed peach, But, deadliest of all, avoid The after-dinner speech.

* * *

MASONIC JEWELS

Does the square that you wear mean the test by your God
Of the work that you do, and the word that you speak,
Of the will of your mind, the thought of your heart,
Of the Past that is gone, of the Future you seek?

The Compass you wear, does it mean that you move
Within the true bound appointed and sure,
Restricted desire, pleasure defined,
A yielding of self to the bonds that endure?

The Triangle too — great emblem of Him
Who is Maker, and Master, Beginning and End, —
Do you wear it to show that He is to you
The Source and the Aim that all others transcend?

What means the gold trowel that hangs at your chain?
Does it tell of the mortar of Love that you spread?
Of the joint well cement with fine brotherly love?
Of the stones that now lie in the well-mortared bed?

If 'tis not so, then take the poor jewels away;
The meaningless bauble will only deceive
Yourself and the others you meet on your way
As meaningless lies which none ever believe.

— John George Gibson.

* * *

NOTES ON THE ORIGIN OF CO-MASONRY

Bro. Arthur Edward Waite, England

IT is said that in or about 1879, several Chapters under the obedience of the Supreme Council of France, Ancient and Accepted Scottish Rite, revolted from that authority and re-incorporated themselves as La Grande Loge Symbolique de France. The rebellion, as usual, was fomented by the Grand Orient.

It is impossible from the confused evidence to decide what Degrees were conferred by the new body, but they were probably the Craft Grades only and not the High Grades of the Scottish Rite. The central body appears to have governed Lodges and not Chapters.

One of the separated Lodges, the nature of whose dissatisfaction is shown by its title of Les Libres Penseurs, held its meetings at Pecq, a village in the department of Seine et Oise.

This Lodge on November 25, 1881, proposed that Mlle Maria Desraimes, a writer on humanitarian subjects and the rights of women, should be admitted to Freemasonry.

The proposers were the W.M. Hubron and six other Master Masons. The initiation took place on January 14, 1882, in the presence of Brethren drawn from all parts. From her subsequent history, the candidate must have been also passed and raised, but there are no particulars in the sources to which I have had access.

The Lodge was suspended, but whether by the authority which it had helped to create, by the Supreme Council, or by the Grand Orient, does not appear.

On March 14, April 1 and April 4, 1893, Mlle Desraimes, acting under the influence of a certain Docteur Georges Martin, was concerned in the initiation, passing and raising of 17 candidates. The information does not say whether they were women only or members of both sexes, but the former probably.

Some kind of Temple was founded about the same period, place not indicated; a Constitution was framed; and an androgynous Masonic body thus came into existence, under the title of Grande Loge Symbolique Ecossaise, being identical with that of the Schismatic body already mentioned.

Its one Lodge at the moment was called Le Droit Humain and that which it communicated was termed Universal Joint Freemasonry.

In 1900 the Lodge in question adopted the 30 Degrees superposed on the Craft Grades by the Ancient and Accepted Scottish Rite.

This was brought about by the intervention of French Masons said to be in possession of the 33rd Degree.

In 1903 there were centres at Benares, Paris and London.

At the same period Joint Freemasonry in the British dominion is stated to have used a Craft Ritual appertaining to the Grand Lodge of Scotland.

The movement seems to have spread from France to India and thence to England.

The title in the British dominions was altered from Joint Freemasonry to Co-Masonry about 1905.

The first English Lodge was called Human Duty and is, I infer, number 6 on the Roll.

In 1908 there was a feud in London, which has resulted in the foundation of an independent branch, the reason being that the original body, under Annie Besant and her vice-regents, constituted an automatic and irresponsible headship, in opposition to Masonic principles.

The English Ritual used by Universal Co-Masonry has been printed and had reached a second edition in 1908. It is called The Dharma Working of Craft Masonry, Dharma being the title of the Lodge at Benares.

The Ceremony of the Installation of the Worshipful Master and the Investiture of Officers has also been printed.

In the Ritual of the Three Degrees the variations from our own form are at once numerous and slight, but there are also certain new things introduced.

Some of them may be tabulated as follows:

1. The W. M. is called throughout the Right Worshipful Master, following the Scottish fashion.
2. The rubrics are much fuller.
3. The Entered Apprentice is taken three times round the Lodge and is brought back on each occasion to the centre.
4. (d) The second circumambulation is opposite to the first, or against the sun; the third is the same as the first, or with the sun.
5. In the Second Degree, after the usual circumambulations, the Candidate is placed in the centre and passes through five stages or experiences, corresponding (1) to work on the rough stone; (2) the arts; (3) Sciences; (4) the Humanities, and (5) apparently rest after work, with the idea of work to follow.

6. In the Third Degree the Obligation is shortened and certain significant covenants are not found, presumably because women take it. The wording also differs.
7. The wording differs throughout in many places and some of the prayers are changed.

THINGS NOT MADE

Thou art what we are; Thou art what we do; Thou art what we say. Thou art all things, and there is nothing which Thou art not. Thou art that which is made and all that is not made.

— Egyptian Scriptures.

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CORRESPONDENCE CIRCLE BULLETIN — No. 7

Edited by Bro. Robert I. Clegg, Caxton Building, Cleveland Ohio

THE OFFICERS OF A LODGE AND THEIR DUTIES

Bro. Robert I. Clegg

If we may properly assume that the officers of the Lodge form the machinery of Masonry, the means to make its labor most useful and efficient, the power plant of the institution; then the Master is the governor or regulator, the very spark-plug of the motor. Upon him rests responsibility for the rate of progress, the dignity of the work, the spirit of the labor. With him much may be done, without him all is undone.

Of necessity, therefore, he must be obeyed and he ought to be worthy of such obedience. So it was of old. Let us turn to that ancient account of bygone laws and read from the White Book of the City of London of what in those days of the past they esteemed due and right from the members to the officers of the "mysteries," the gilds of the Masons and the other operative and speculative crafts seven centuries ago.

OF THE PENALTY FOR REBELLING AGAINST THE MASTERS OF THE MYSTERIES

"Item, it is ordained that all the mysteries of the City of London shall be lawfully regulated and governed, each according to its nature in due manner, that is no knavery, false workmanship, or deceit, shall be found in said mysteries, for the honor of the good folk of the said mysteries, and for the common profit of the people. And in each mystery there shall be chosen and sworn four or six, or more or less, according as the mystery shall need; which person, so chosen and sworn, shall have full power from the Mayor well and lawfully to do and perform the same. And if any person of the said mysteries shall be rebellious, contradictory, or fractious, that so such persons may not duly perform their duties, and shall thereof be attainted (convicted), he shall remain in prison, the first time, ten days, and shall pay ten shillings for such contempt."

It was further provided that on a second offense he should go to prison for twenty days and pay a fine of twenty shillings, and on a third offense he paid thirty shillings and was imprisoned thirty days, and so on for every further case of the like wrong doing.

Why were the authorities so very clear and helpful in stating what the City officials held proper to be done in supporting the hands of the respective Masters? It is not necessary to guess at the motives behind their action. We can find them on record in the very same code of laws. In the introduction to an ordinance relating to the admission of members to these gild bodies, we note: "Because as well as in times past, out of memory, as also in modern times, the City aforesaid is wont to be defended and governed by the aid and counsels as well of the reputable men of the trades merchant as of the other trades handicraft; and from of old it hath been the usage, that no strange person, native or alien, as to whose conversation and condition there is no certain knowledge, shall be admitted to the freedom of the City, unless first, the merchants or traders of the City following the trade which the person so to be admitted intends to adopt, shall be lawfully convoked; that so, by such his fellow citizens, so convoked, the Mayor and Aldermen aforesaid, being certified as to the condition and trustworthiness of the persons so to be admitted, may know whether such persons ought to be admitted or rejected; — the whole community demands, that the form aforesaid, so far as concerns the more important trades and handicrafts, shall in future be

inviolably observed, that so no person in future may against the provision aforesaid be admitted to the freedom of the City."

There indeed are the reasons why any city or community might well have a lively interest and a friendly confidence in the long-established practices of such an institution as ours, and to rely upon the aid and the counsels of good men and true assembled lawfully and governed wisely by competent officers.

From the same source as the foregoing quotations we take the approved obligation prescribed for the officers of the old guilds.

OATH OF THE MASTERS AND WARDENS OF THE MYSTERIES

"You shall swear, that well and lawfully you shall overlook the art or mystery of Masonry, of which you are Master, or Wardens, for the year elected. And the good rules and ordinances of the same mystery, approved here by the Court, you shall keep and cause to be kept. And all the defaults that you shall find therein, done contrary thereto, you shall present unto the Chamberlain of the City, from time to time, sparing no one for favor, and aggrieving no one for hate. Extortion or wrong unto no one, by colour of your office, you shall do; nor unto anything that shall be against the estate and peace of the King, or the City, you shall consent. But for the time that you shall be in office, in all things pertaining unto the said mystery, according to the good laws and franchises of the said City, well and lawfully you shall behave yourself. So help you God and the Saints."

Today the Master of a Lodge also promises faithfully and impartially, to the best of his ability, to perform all the duties belonging to the office to which he has been elected; that he will conform to the "constitution, laws, rules, and regulations" of the Grand Lodge and will enforce a strict obedience to them. He is likewise at installation required to give his assent to the old charges pertaining to the position of Master. These are in general the following:

"You agree and promise to be a good man and true, and strictly to obey the moral law; a peaceable citizen, and to cheerfully conform to the laws of the country in which you reside; not to be concerned in plots and conspiracies against the government, but patiently to submit to the decisions of the supreme legislature; pay a proper respect to the civil magistrates, to work diligently, live creditably, and act honorably by all men; hold in veneration the original rulers and patrons of the institution of Masonry, and their regular successors, supreme and subordinate, according to their stations, and to submit to the awards and resolutions of your brethren, when convened, in every case consistent with the constitutions of the order; to avoid private piques and quarrels, and guard against intemperance and excess; cautious in carriage and behavior, courteous to your brethren, and faithful to your Lodge; to respect genuine brethren, and to discountenance imposters, and all dissenters from the original plan of Masonry; to promote the general good of society, to cultivate the social virtues, and propagate the knowledge of the art; to pay homage to the Grand Master for the time being, and to his officers when duly installed, and strictly to conform to every edict of the Grand Lodge, or general assembly of Masons, that is not subversive of the principles and ground-work of Masonry; that it is not in the power of any man, or body of men, to make innovations in the body of Masonry; to make a regular attendance upon the committees and communications of the Grand Lodge, on receiving proper notice, and to pay attention to all the duties of Masonry, on convenient occasions; that no new Lodge shall be formed without permission of the Grand Lodge; and that no countenance be given to an irregular Lodge, or to any person clandestinely initiated therein, being contrary to the Ancient Charges of the Order; that no person can be regularly made a Mason in, or admitted a member of, any regular Lodge, without previous notice, and due inquiry into his character; that no visitors shall be admitted into your Lodge, without due examination, and producing proper vouchers of their having been initiated into a regular lodge."

Various implements of Masonry are at the same time called to the Master's attention. Among them are the Holy Writings, the Book of Constitutions (Masonic Code), and the By-laws of his Lodge. Of these he is thus admonished:

"The Holy Writings, that great light in Masonry, will guide you in all truth; it will direct your path to the temple of happiness, and point out to you the whole duty of man.

"The Book of Constitutions you are to search at all times. Cause it to be read in your Lodge, that none may pretend ignorance of the excellent precepts it enjoins.

"You will also receive in charge the By-laws of your Lodge, which you are to see carefully and punctually executed."

Several symbols, as the Square, the Compasses, the Rule, and the Line, are at the same time used to impress upon the Master's mind with renewed force on this solemn occasion the principles of morality, the just limit of desires, the eminence obtained by merit, the upright walk in the path of virtue, and the standards of rectitude. Upon the Master is especially placed the duty of diffusing light and instruction to the brethren of his Lodge.

Having selected and installed the Master, a brother "of good morals, of great skill, true and trusty, and a lover of the whole fraternity, wheresoever dispersed over the face of the earth," we may indeed further fairly assume that he will "discharge the duties of the office with fidelity."

THE WORSHIPFUL MASTER

The prerogatives and duties of the Worshipful Master are many and various. His very title, quaint and old, throws a flood of light upon his place and power. Master he is truly, but much more than a mere ruler. "Worshipful" means one worthy of honor deserving of respect and deference. For many hundreds of years it has been employed toward those attaining high position in English civil life. Magistrates are still so addressed in that country; their "Your Worship" being equivalent to our "Your Honor," and meaning no more or less. To many of our brethren it may strike upon the ear at first as savoring of irreverence the misuse of a word commonly employed for religious purposes only. But to us it has no such significance. We so designate the officer so addressed because it is he who holds greatest preferment in the Lodge and thereupon we continue in speaking to or of him to use that subtle word of distinction implying the very aristocracy of pure personal worth and mental merit among his skilled fellows.

From the decision of the Master there can be no appeal save only to the higher body; he can invite any member to preside over his Lodge; he can issue a proxy to any member to represent him at the Grand Lodge Communication; at the Communication of the Grand Lodge he is independent in action — voting as he pleases irrespective of any action taken by his Lodge; he alone is the judge as to convening and opening Lodge and of the conduct of its business; he determines when special communications of his Lodge shall be held and what shall be done therein; he may cut short discussion on other business at any time and close the Lodge; he controls the admission of visitors; his permission is essential, whenever he is present, to the admission of members and candidates; he has charge of the charter or warrant; he appoints whatever officers are appointed and he may install all the officers whether elected or appointed if so he chooses; in the absence of an officer he appoints the substitute; he announces the result of balloting and elections; he appoints all committees; and while this is seldom insisted upon he has from of old the privilege of being present at the meetings of all committees and of presiding over them at his pleasure — following the ancient practice recorded by Anderson nearly two centuries ago that wherever Masons congregate together the Master is entitled to govern and direct their labors on all Masonic matters; he may vote and also cast another vote in the event of a tie but this is not universal though of ancient usage; he is immune from trial by his Lodge; he decides points of order without appeal permitted to Lodge, and he presides at trials and determines questions of law.

Before the installation of the Master-elect it is no means uniform in the several jurisdictions. usually required that he shall have received the Past Master's degree.

THE SENIOR WARDEN

In the absence of the Master the Senior Warden governs the Lodge; in the presence of the Master the Senior Warden assists him in the Lodge government. At the Communication of the Grand Lodge the Senior Warden

is one of the three officers, Master, Senior and Junior Wardens or their proxies, charged with the duty of representing the Lodge.

In 1721 we find that the regulations specified that "In case of death or sickness, or necessary absence of the Master, the Senior Warden shall act as Master pro tempore, if no brother is present who has been Master of that Lodge before. For the absent Master's authority reverts to the last Master present, though he cannot act till the Senior Warden has congregated the Lodge."

Under some foreign Constitutions it is the case that among the sitting officers of the Lodge is the Immediate Past Master and upon him devolves the duty of taking up the work in the absence of the installed Master of the Lodge, the Senior Warden assembling the Lodge but the I.P.M. assuming the East for all ritualistic and monitorial purposes while the Senior Warden is in charge of other matters. With us there is not that established method. The Master being absent the Senior Warden takes his place and calls to his assistance whatever help he may find is requisite in conducting the affairs of the Lodge, opening and closing and performing all other functions as if he be indeed the Master of the Lodge.

THE JUNIOR WARDEN

The Junior Warden is presumed to have especial control of the brethren at refreshment, as the Senior Warden is assumed to be in charge of the Craft when at labor. These changes of control within the Lodge are signified by the position of the columns placed at the respective stations of the Senior and Junior Wardens. When the Master and the Senior Warden are absent or incapacitated in any way, the Junior Warden succeeds to the position in direction of the Lodge.

Let it here be stated that the several officers of a Masonic Lodge do not in the event of any vacancy each move up one station or position. The various officers remain as they were, as far as this is practicable, and the vacancies are filled for the time by appointment.

One of the prerogatives of the Wardens that they share with the Master and Past Masters is that of being eligible to election to the East.

In the absence of the Master and the two Wardens a Lodge can only be opened and transact business by special dispensation.

Mention has been made of the Master making appointments. It was one time the custom, (which yet prevails in some jurisdictions) that the Senior Warden appoints the Junior Deacon, and the Junior Warden in turn appoints the two Stewards. Custom as to the election and appointment of the respective officers is by no means uniform in the several jurisdictions.

THE TREASURER

The Treasurer is the banker of the Lodge and has nothing to do with the collections which are made by the Secretary and duly turned over to him. Of the receipt of these monies he must make due entries and pay them out only on the order of the Master and with the consent of the Lodge. Worth while is it to note here that the old custom of the Grand Lodge of England provides for the election only of the Master and the Treasurer, all other officers being appointed by the former. Evidently the idea behind this practice was to avoid any appearance of collusion between the two officers and to make each of them all the more directly responsible to the electing body, the Lodge. Bonds are commonly and should always be exacted of the Treasurer for the faithful performance of his duties. An honest man as Treasurer will not object to every safeguard being thrown about and around his financial relations to his Lodge.

THE SECRETARY

The Secretary receives all money due to the Lodge and pays them over to the Treasurer, taking his receipt therefor. He also observes the proceedings of the Lodge and makes a suitable record of all things proper to be written. Both the Secretary and the Treasurer make an annual report to the Lodge and the former is as a rule also required to transmit this and a copy of the membership roster with all other desirable particulars of the work done

to the Grand Secretary at such dates or times as the laws of the Grand Lodge require. The Secretary is indeed the recording, the corresponding and collecting agent for the Lodge. From him proceed all the summonses for meetings, regular or special. All dimits, diplomas, and communications are issued by him. He is in charge of the seal and the archives. In common with the Treasurer he submits his books and Lodge property to the examination of a committee at such stated intervals as the by-laws or the pleasure of the Master may dictate.

THE CHAPLAIN

Among the appointive officers is the Chaplain. Upon him rests the duty of performing such parts in our public and private ceremonies as are required. Manifestly Freemasonry pretends not to be a religion but does act as an auxiliary to whatever is great and good, "a pillar of cloud by day and of fire by night pointing the way, teaching a gospel of love, leading men to light and life everlasting." To further this practice and profession is primarily the place and function of the Chaplain.

THE DEACONS

The Deacons have especial duties. The Senior Deacon is the first lieutenant of the Worshipful Master, carrying out his orders in the management of the affairs of the Lodge. The Junior Deacon acts in the same capacity to the Senior Warden. The Senior Deacon is the immediate connecting link between the Master and all candidates, and similarly with all the members and visitors. The Junior Deacon assists the Senior Warden upon the inside of the inner door in guarding the proceedings against the intrusion of all those not qualified to enter. The two Deacons jointly carry out the respective orders of the presiding officer in the proper preparation of the Lodge and its adaptation to the several ceremonies.

The handling of the ballot box, the reception of visitors and their introduction and accommodation, the care of the altar and lights, all belong peculiarly to the duties of the Senior Deacon. None enter or leave, no one opens the Lodge door, no one instructs the Tyler, but with the co-operation of the Junior Deacon.

THE STEWARDS

The Stewards assist the Secretary in the collection of dues and subscriptions, keep track of the Lodge table expenses, see that the tables are properly furnished at refreshment, that every brother is suitably provided for at the banquets, and generally assist the Deacons and other officers in performing their duties. So substantially has been the labor set for the performance of the Stewards from the days certainly of Preston and of Webb who so record their functions. Yes, it is even older for ten centuries ago in the old Constitutions we note that then "The Steward shall provide good cheer against the hour of refreshment, and each Fellow shall punctually defray his share of the reckoning, the Steward rendering a true and correct account."

THE TYLER

The Tyler permits none to pass or repass unless they are fully qualified and possess permission. Upon his early and punctual attendance will depend very much of the success of the Lodge labors. He serves the summonses of the Lodge, prepares the room for the Lodge meetings, lays out the jewels and other requisite items (as gavels and so forth) for the use of the Lodge, and in the anteroom and the preparation room he provides a supply of aprons or whatever else may be required. He is never to open the door from without, nor permit it to be opened from within, without the exchange of the preliminary alarms between himself and the Junior Deacon.

REFERENCES —

Mackey's Encyclopedia: Seal. Appeal, Right of. Secretary. Oath, Tiler's. Tiler. Obedience. Treasurer. Officers. Wardens. Past Master. Worshipful.

The Worshipful Master's Assistant, by Robert Macoy. "Worshipful" as title, *The Builder*, Vol. I, p. 96. The Worshipful Master's Assistant, by Delmar D. Darrah.

AN APPEAL TO OUR MEMBERS

Up to the time this issue of the Correspondence Circle Bulletin goes to press more than 1,000 Lodges and Study Clubs throughout the United States and Canada were considering, or had already gone to work on, our plan for the systematic study of Masonry.

We know there are thousands of other Lodges that would welcome the opportunity to take up this plan if it were presented to them.

But how are we to reach the remaining 13,000 Lodges?

We should like to be able to do so at an early date as possible in order that they may take up the work before the course is much further advanced.

We have printed in circular form under the heading "1,000 Wide-Awake Lodges" a complete list of suggestions for organizing Study Clubs or introducing the study feature into the Lodges at regular or special meetings once each month.

Will you help us to place this circular in the hands of the officers of your Lodge? Many of them are not members of the Society and we can not reach them except with your co-operation.

Read on page 8 of this Bulletin what a New Mexico Brother has to say anent this movement. Note especially what he says in the fifth paragraph about a brother taking his degrees. Does not this parallel your own experience? You will also agree with what he says a little further on, that there is something in Masonry that most of us failed to get. There is yet time for us to get this "something," and the way to get it is through our Study plan. We shall also be helping each newly-raised Brother in the future in a way that we ourselves were not helped.

A number of interested members have heeded our call to send in complete lists of the officers of their Lodges. This has enabled us to get in touch with these Brethren who might otherwise never have heard of the Society or its work, and as a consequence committees have in a majority of these instances been appointed to put the Study plan into effect.

The fact remains that, numerically speaking, we have as yet only scratched the surface. If our members who are interested in the progress of the Society and its activities in promoting the study of Masonry will lend their assistance very much can be accomplished.

Brethren, the ultimate success of this movement depends as much, if not more, upon YOUR INDIVIDUAL HELP, than the work of Brother Clegg and those of us in the Secretary's office.

Therefore we ask you to lend your aid to this movement by sending in a full list of the officers of your own Lodge, from the Worshipful Master down to the Tiler. Do not depend upon some other member of the Society in your community, but send in the list YOURSELF. We would much rather have the lists duplicated than not to receive them at all.

* * *

WHAT AN ENTERED APPRENTICE OUGHT TO KNOW

Bro. Hal Riviere, Georgia

(The following article, prepared as an address to a newly-made Entered Apprentice, appeals to the Editor of this Department as peculiarly in harmony with the purposes for which the Department itself is designed. It would seem to be a worthwhile presentation of fundamental facts not now provided for in any Jurisdiction with which we are familiar. That it answers many of the questions asked by Initiates, and at the same time gives the candidate a glimpse of the high idealism of the Fraternity at a time when his mind is most receptive, commends the lecture to us as of great value. We believe that a Worshipful Master who desires to give his candidates the best possible conception of Masonry, could do no better, on the First Degree, than to present this lecture.)

Once upon a time a certain man named Philip, while traveling from Jerusalem to Gaza, came upon a man of Ethiopia, a Eunuch who was an officer in the court of an Eastern queen. This Ethiopian was reading the Holy Scriptures but being of a foreign tongue and unfamiliar with the history of the Scriptures and the idioms and symbols with which they were illustrated, he was not able to interpret what he read to his satisfaction. Philip drew

near to him and seeing his perplexity asked, "Understandest thou what thou readest?" The man replied, "How can I understand unless some man shall guide me?" So, my Entered Apprentice Brother, if I should ask you tonight if you understand what you have passed through, you would doubtless reply in the words of the Ethiopian, "How can I understand unless some one shall guide me?" Will you permit me to perform that service for you?

Masonry, has been defined as a beautiful system of Morality, veiled in Allegory and illustrated by symbols. Now an allegory is a story told to illustrate or convey some truth. Some of the most important truths have been handed down to us through allegories, that being one of the favorite methods the Master used to convey his teachings. It is one of the peculiarities of an allegory that its message may not be understood by all men. One must be prepared within his own mind and heart to receive the truth or else he sees it not. It is only a few of all those who hear who perceive the lesson designed to be taught by the allegory. The great majority, having ears to hear, hear not; having eyes to see, see not the beautiful lesson but hear only a pretty story that interests for a short while and then is lost. But the earnest seeker for truth, he who is duly and truly prepared for its reception, sees beyond the veil of the allegory and perceives the beautiful simple truth which it conceals from the multitude but reveals to the chosen few.

A symbol is a visible sign for an idea. From the earliest dawn of creation, man has realized that there is a Supreme Being, a Creator who is all powerful. Many were the ancient names he bore. As the sun was the most powerful, most wonderful object visible to the primitive peoples, they used it as a symbol of the Supreme Being. The majority, seeing no further than the symbol, worshiped the sun itself; but the learned, the wise, the thoughtful ever regarded the sun as only a symbol of God's power and saw beyond it to the Great Father over all.

So, my Brother, Masonry teaches by allegories and symbols, and it is your part to extract from them the truths that will be of service to you in the building of an upright Masonic character. If you perceive only the stories that Masonry presents to you and do not see deeper into what they are designed to teach, you will miss the best part of Masonry, yet you may comfort yourself with the thought that by far the great majority of Masons are no wiser than yourself. But if by pondering over the allegories and symbols of these degrees you find the hidden truth, a new world of wisdom, strength and beauty will be revealed to you.

In order to understand the symbols of the three degrees it is necessary for you to know that, broadly speaking, Masonry has come from two general sources. One of these was the societies of stone masons who flourished in medieval times, and who were the builders of those great cathedrals that are being so ruthlessly destroyed in France and Belgium today. These societies gradually ceased to be bands of operative workers and admitted men not really connected with the actual work of building. By the year 1717 Masonic lodges had become purely speculative. But the working tools of the operative Masons, the square, level, plumb, rule, gavel, etc., were still retained as symbols to teach important truths in character building. We, as Masons, no longer build temples and cathedrals of stone but we build spiritual temples, temples of character, temples of upright manhood and integrity.

The second great source from which Masonry derived its symbolism was the ancient Mysteries. The relation they bear to our order will be unfolded to you as you advance in the degrees. It is only necessary to tell you here that in every ancient nation that attained any degree of civilization, were secret organizations known as the Mysteries, having initiation ceremonies. These organizations were composed of the wisest men of those nations, and all the higher knowledge of religion, art, and science was taught in them alone. Men waited and labored for years to become prepared or worthy to be initiated into the Mysteries. It is said that the great philosopher, Pythagoras waited for twenty years to be initiated into the mysteries of Egypt. Moses seems also to have been an Egyptian initiate, while St. John the Baptist came from the Jewish sect called Essenes, which practiced the mystical rites. It has been claimed that Jesus of Nazareth was an Essene, his teachings conforming somewhat closely to their practices.

In the ancient Mysteries of India, the candidate might receive the first degree as early as eight years of age. Then began a severe system of mental and moral training to fit him for advancement, for with every degree it was intended that he should attain more of perfection. He was invested with a three-ply cord called the zennar, emblematic of their tri-une God. From that cord we get our cable tow. The candidate was kept a long time in darkness before taking a degree, to reflect upon the seriousness of the step he was about to take. Truly wanting light, he was taught to worship God as the Source of Light. He was conducted regularly around the room — usually a cave or grotto hewn out of solid rock — passing from East to West by way of the South, his right side being next the altar; the priests chanted, "I copy the example of the Sun and follow his benevolent course." He next made a declaration that he would keep himself pure, that he would be obedient and would maintain secrecy. After that, he was divested of his shoes and clothed in a white linen robe. We read in the Book of Ruth that it was a custom in Israel that, to confirm a contract or agreement, a man took off his shoe and gave it to his neighbor. You see in all these ceremonies, the beginnings of some of our Masonic customs; and with these general principles in mind you are ready to hear an explanation of some of the teachings of the E. A. Degree.

Before initiation, Masonry demands that a candidate be duly and truly prepared. This preparation should be mental and moral as well as physical. Our Order subscribes to no system of religious doctrine, but it requires that every man who presents himself as a candidate for initiation shall declare a belief in one God, all-wise, all-powerful, all-good, who reveals himself to mankind; also teaches that there is life beyond the grave.

The candidate must come of his own free will; must be a man, free born, twenty-one years of age, able to read and write, and his moral qualities must be such as will bear a rigid investigation by a committee of Master Masons appointed for that purpose. Masonry tries to exclude those who come through mere curiosity or through a desire for business or social gain. To be a member of the investigating committee is one of the most serious duties a Mason is called upon to perform, and every candidate deserves careful consideration; even then, many duly and truly unprepared make their way into our lodges.

Masonry invites no man. He knocks at the door of the lodge of his own free will, bearing nothing that will indicate poverty or wealth, rank or station. At the inner door of the preparation room all are equal, and entrance through this door into the lodge room is only granted after the candidate has satisfied all present that he is worthy and well qualified to gain admission, and comes as an earnest seeker for Light and Truth. Gold cannot buy, rank cannot demand; neither can learning guarantee admission unless a reputation for generosity, truthfulness and rectitude of conduct be coupled with it.

Secrecy is the first great lesson of the E. A. degree. This great virtue is necessary in our order so that Masons will appreciate the lessons taught. As a secret shared between two people binds them together, so the secrets of our fraternity bind the Brethren together. If our teachings of beautiful truths were scattered broadcast through the world, they would become commonplace; so they are taught under secrecy, only to those deemed worthy to receive and practice them. Taken with the salt of curiosity and expectation, they are the more readily perceived.

Nothing can more torture a man than the pangs of remorse which a guilty conscience can force upon him. Sharp instruments may torture the flesh, but unless the torture be unto death a few short days suffice to heal the wounds and only the scars remain to remind of the agony endured. But the torture of a guilty conscience is not so. Memory of pledges violated, evil deeds done, kind actions left undone comes to us after years have passed; comes as we lie upon our beds and chases "Sleep, tired Nature's sweet restorer" from our eyes, and makes our bed a hell; comes amid our innocent social pleasures and turns our joy to pain; a face, a word or an odor may bring back the hateful incidents of a scene that no subsequent life of purity and holiness and rectitude of conduct can banish from the memory. Brother, guard well your actions, that henceforth no memory of evil deeds disturb your peace or rack your mind and conscience.

We are taught that a Mason should never enter upon any great or laudable undertaking without invoking the aid of Almighty God. In the light of that lesson, prayer becomes a duty as well as the privilege of every Mason.

How few understand the nature and effects of prayer. Prayer that has become merely a bed-time custom is not a prayer; it is an incantation to soothe the conscience or satisfy the demands of a habit formed in more innocent and unsophisticated days. The object and effect of prayer are to bring the soul into conscious harmony with the all wise Father, whose laws are true and just and righteous altogether.

"Prayer is the soul's sincere desire," so says the old song. If that be true, (and who says not?) how earnestly should the compasses be used to circumscribe our desires and keep our passions within due bounds, so that no unrighteous, no unworthy, no covetous, no licentious prayer insult the Father whose all-seeing eye looks into the innermost recesses of our being. Prayer reveals a man to himself. For what do you pray; on what do you meditate; what thought do you ponder over and keep within your heart? Be sure that it will find expression in your outer life, for "the within is ceaselessly becoming the without." Guard well your thoughts, the source of all your deeds and actions.

The trust of a Mason is in God. But before a man can trust in God whom he cannot see, he must learn to trust in his fellow man who is made in God's image. As you placed yourself in the hands of this lodge and followed your conductors through the ceremonies of initiation, you exemplified your trust in your fellow man. So ever place your trust in God and walk uprightly through life, fearing no danger; know that a man's worst enemy is himself, and that one with God is a majority.

Masonic Light is the object of every Mason's search. That is truly a laudable object. Light, ever and ever more light; from the first faint perception of those Three Great Lights, the Holy Bible, Square and Compasses, until he shuffle off this mortal coil, the earnest Mason seeks for Light; seeks in the Holy Bible, that inestimable gift from God to man which is given us as a rule and guide for our faith and practice; seeks in the symbolism of the Square and Compasses; seeks in the great book of Nature; seeks in the hearts and lives of men. If he realize that Masonic Light is a symbol for Truth; if he see beyond the symbol to the Truth itself, comprehending it by the light of knowledge and wisdom, then the full glory of Masonic Light will shine in his heart, and he will go forth to bear the light aloft and let it shine among men.

As the lodge is a symbol of the world, in the circumambulation of the lodge room the candidate symbolizes the progress of a man from ignorance to knowledge, and also the progress of the human race from savagery to civilization. Cares and temptations of business and pleasure throw obstacles in the way of men and of nations, and challenge their capability and integrity. Both individuals and nations must overcome obstacles and demonstrate their right to advance to broader fields of usefulness.

As seen in the West, the light of the sun is ever a declining glory. The East, as the birth-place of the sun and source of light, has always been venerated by primitive peoples. As devout Moslems pray with their faces toward Mecca, the birth-place of their prophet, and as the ancient sun worshipers bowed to the rising sun, so Masons give the highest place to the East, as the true source of all Masonic Light and it is there the Worshipful Master has his station. Hence a Mason travels from West to East on his search for Masonic Light, and hence also the regular upright manner of approaching the East and rendering it due respect.

While demanding that all Masons yield obedience to the tenets of the order, Masonry requires no act or belief that will conflict with any of the exalted duties that a man owes to God, his country, his neighbor, his family or himself. Reverence for God, patriotism and brotherly love are so frequently inculcated and so forcibly recommended in the lodge, that the Mason who does not practice those virtues is recreant to the trust imposed in him by his Brethren. Truth being the center of all Masonic teaching and the highest principles of reverence, patriotism and charity being founded on Truth, it follows that he who lives up to the highest principles of Masonic duty will naturally practice all moral, social and religious virtues.

He who is in conscience bound to perform an act, to accomplish a purpose or to keep a secret, is bound by ties though invisible, that are stronger than any bonds that could be forged or contrived by man. The release of the candidate from the last ties that bind him to the world he has left outside the lodge room, coupled with the

reception of light is a symbol of a new birth, a birth from the darkness of ignorance and superstition to the light of wisdom, toleration, generosity and all commendable virtues.

Charity should be a distinguishing characteristic of every Mason. It is in the practice of this virtue that man most nearly reveals his kinship to God. Hear Buddha on the charitable man: "The charitable man is loved by all; his friendship is prized highly; in death his heart is at rest and full of joy for he suffers not from repentance; he receives the opening flower of his reward and the fruit that ripens from it. The charitable man has found the path of salvation. He is like the man who plants a sapling, securing thereby the shade, the flowers and the fruit in future years. Even so is the result of charity, even so is the joy of him who helps those who are in need of assistance." If the cardinal virtues of Freemasonry, which are Temperance, Fortitude, Prudence and Justice, were practiced by all mankind, then charity, as an act of almsgiving, would cease. For ignorance and intemperance and injustice would be banished from the world, and the woes of misery and penury that follow them would then give place to joy. But the poor we have with us always; so, as we administer our charity let us remember that it is not only those who are in straightened financial circumstances who need our assistance, but that the poor in spirit, the despondent, the discouraged may be heartened and lifted up by kind and encouraging words. Let us give bountifully of our love and sympathy to every Brother in distress.

* * *

HAVE A QUESTION BOX IN YOUR STUDY CLUB!

Assuming that your Lodge or Study Club has determined to undertake Masonic study on a serious basis, and is working toward our "Bulletin Course," the arrangement of a program, in order to hold its interest, should be given careful attention. We are able to say, from actual experience, that the reading of Brother Clegg's paper, and the supplemental papers which are prepared by the Brethren, should occupy in a formal way, no more than one hour.

Some of the papers will provoke discussion. Others will not, since the material used in their preparation will tell practically the whole story, and the authorities given will only serve to clinch the argument.

In any event, discussion aroused will probably not, on the average, consume more than another half hour. Experience shows that when the Brethren get themselves comfortably seated for Masonic discussion, the formal paper arouses in them an ordinarily latent curiosity. And after the pre-arranged discussion is concluded, more than one of the faces will suddenly light up, and immediately there will come forth some question which has been bothering the Brother. And no sooner will he have propounded his, than someone on the opposite side of the room will remember that he, too, has a question which he has tried to answer, and failing this, to get answered, to no avail.

Here is one of the very best of symptoms. A discussion of these questions should by all means be entered into. Let the presiding officer of the meeting answer them if he can. If none of the committee in charge of the meeting are able to answer them all, have the Secretary take the unanswered questions down. Let the Chairman then parcel out these questions, answers to be brought in at the next meeting. Here are samples of the questions that were carried over in one meeting of the kind:

Why did a Protestant Minister move to take the Bible off the Altar in Lodges working under the jurisdiction of the Grand Orient of France?

What is the symbolic significance of the position of the square and compasses in the Blue Lodge Degrees?

What Grand Lodges does our Grand Lodge recognize?

What does the word "Orientation" mean, as applied to Masonic Temples?

What is the present-day tendency in the administration of Masonic charity?

What is the significance of "The East" in the Masonic sense?

These questions (all of them inspired by Brother Clegg's paper on "Foundations and Fundamentals") were carried over to the next meeting. At least six other questions were asked and answered. There were brethren

present who rather thought that they could answer some of the above questions offhand, but it was thought advisable to work them up more carefully and give all the best authorities on the subjects presented.

At the succeeding meeting all but one of the above questions were answered, most of them fully and all to the satisfaction of the Brethren present.

Can anyone doubt that this particular meeting was a success?

Ninety-six per cent. of the Brethren present at the beginning stayed through until after 11:00 P. M., when the meeting closed! Many Lodges will feel that this hour is too late. That may be true. But the fact remains that young men, finding all at once that the study of Masonry, when directed along definite lines, holds a fascination for them, and offers them a welcome diversion from the routine of business cares, will want to stay by it. And they will go out from these study meetings, not only inspired to further work, but actually elated with the opportunity to discover what other men of the Fraternity are thinking. This is as it should be. It brings back the Masonry of other days, when men glorified in its fellowship, using each meeting of the Lodge to ripen the man-to-man intimacy which results in true Brotherhood.

The plan works. It is working in many, many Lodges. It will work in yours. With three or four Brethren willing to make some search — and if necessary research — the full attendance of a Lodge can find themselves absorbingly interested in the discussions that will be born, almost automatically, from the reading of a formal paper.

TRY IT!

A NEW MEXICO ESTIMATE OF OUR STUDY CLUB MOVEMENT

In my search through the Masonic exchanges which come to this office, there is no item of news more gratifying than that Clubs for the Study of the Science and Philosophy of Masonry are being formed all over the land.

This is truly the supplying of a "long felt want" and is an augury for better things both civically and Masonically.

It is neither my purpose nor province to be a scold, but in common with many of my Brethren the realization has been painful that we as Masons are not getting the good out of Masonry that we should and we are not giving to the young members that to which they are entitled.

The true story of the average Lodge would read about as follows:

A profane petitions for membership, he is elected, he is given the first and second degrees with little more than the necessary quorum of members present. In order to have a respectable number of Craftsmen present at his raising, the Master orders a "feed," and, to make sure that they will not slip away, he puts on the second section before the feast is spread; then, sad to relate, not more than a handful remain to give the "newly Obligated Brother" a prefatory congratulation at the close of the Lodge.

Whether they have made a Mason or just a member is not the concern of the majority; nor are they to be severely criticised, for they received the same kind of a welcome from those who preceded them.

In very truth Brethren it is surprising, with the circumscribed opportunities for learning what Masonry really is, that the Brotherhood entertain so high a regard for the order in the abstract. They must instinctively feel that there is something in Masonry that they have failed to get, and that feeling prompts those who become students to dig out for themselves those beauties, which with a little help from their "better" informed Brethren, could have been acquired in half the time and with more accurate deductions.

The teachings of Masonry are sublime and ennobling, but these teachings must be sought elsewhere and beyond the rituals and monitors of our symbolic Lodges.

The first two degrees are only introductory to the third, and all Masonic students concur that the Master's degree contains the basic principles, and is the "stone of foundation" upon which the entire superstructure of Masonic philosophy has been erected; but how few of us ever realize what that degree really contains.

It does not make the same impression upon any two men, and the exchange of impressions in an hour's fraternal gathering, at the close of the Lodge, or on some other night in each month, would be far more beneficial to Masonry in general and the Lodge in particular than the making of any number of new "members of the order."

It is readily perceived that the organization of these Study Clubs has been undertaken with the determination to stop the trend of making "members" by giving all, present and to come, an opportunity to become Masons in fact as well as in name.

In this work the Fraternity in New Mexico cannot afford to lag behind, for there is as great need of real Masonry here as in any other jurisdiction; and, an appeal is hereby made to our Scottish Rite Brethren to take the initiative in the work of organizing Study Clubs all over the state. You know much better than they know themselves the imperative need for Masonic study by the mass of members with whom you come in contact

These clubs are in no way to conflict with our Scottish Rite Clubs, nor need the Scottish Rite be ever mentioned therein; and yet, your patently superior knowledge of Masonry, acquired in the Scottish Rite, will prove to be a stronger incentive for others to seek what they can there secure than any direct appeal.

— *Scottish Rite Bulletin*, Santa Fe, N.M.

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THE FOUR HIRAMS OF TRYE

Bro. A. S. MacBride, Scotland

II. THE TWO ARTISANS* CALLED HIRAM

* The word "Artisan" is here used in its proper sense as one skilled in Art; a master of Arts.

IN the traditions of Masonry connected with the M. M. degree, the central figure is that of "Hiram Abif." A martyr to fidelity and honour, his memory has been held sacred by the Craft. Yet, historically, there is very little known of him. By many, if not by the most, of those who troubled themselves to think on the subject, the traditions regarding him, until recently, were considered to be mythological legends similar to those on which the ancient mysteries were formed, and altogether devoid of truth. The fact that in the Biblical accounts of the building of King Solomon's Temple there is no mention, nor apparently the smallest hint, of his death, has been accepted as a proof that he did not die, during the building of that structure. Dr. Oliver, the well known Masonic writer, evidently considered the tradition of his death as mythical, for in the "Freemason's Treasury," Lecture XLV, he says: "It is well known that the celebrated artist was living at Tyre many years after the Temple was completed."

But let us examine the Biblical narrative a little more closely than we have hitherto done. Assuming for the time being as correct, the generally accepted belief that only one artisan of the name of Hiram, or Hiram, is mentioned in that historical account of the building of the Temple; we are immediately confronted with three contradictions demanding attention. These are:

1. in the descriptions of his parentage;
2. in the descriptions of his qualifications;
3. in the periods named of his arrival at the Temple.

In the first place then, let us look at

THE DESCRIPTIONS OF HIRAM'S PARENTAGE

In 2 Chron. H. 14, Hiram is said to be: "the son of a woman of the daughters of Dan." In I Kings VII. 14, he is described as: "the Son of a widow woman of the tribe of Naphtali." Now, no man can have two mothers, and no mother can belong to two tribes. On what supposition then, can these two differing descriptions be reconciled? Is it some mistake as to the tribe to which the mother belonged? With writers unacquainted with the tribes of Israel, or of the peculiarities of Hebrew history, that might be. But the writers of the books of Kings and Chronicles had an intimate knowledge of all these things, and we can scarcely suppose for a moment any such mistake.

The tribe of Dan occupied the hilly country in the immediate neighborhood of the Philistines and Samson the celebrated warrior and patriot was of that tribe.

Unable to subdue the Philistines the Danites, after the death of Samson, migrated to the plains of the upper Jordan around the city of Laish, which was then the granary of Sidon. Their proximity to Tyre, no doubt, resulted in intermarriages with the Tyrians; and hence, there would be nothing very remarkable in "the Son of a woman of the daughters of Dan," being a famous artisan of Tyre.

The tribe of Naphtali were located in the mountains on the northern border of Palestine; and from their nearness to Tyre and the necessities of trade from the sea-coast, they had regular intercourse with the Tyrians, and intermarriage would, consequently, more or less result. Thus there seems nothing extraordinary in the recorded fact, that a Tyrian artisan was "the son of a widow woman of the tribe of Naphtali."

There is little likelihood that, in either of these two cases, the writer of the book of Kings, or the writer of the book of Chronicles, would make any mistake in the matter of lineage; for on this point the Hebrew writers seem to have been very particular. The fact that in both instances the father is not mentioned, adds weight to the correctness of the description of the mother; and, if there was only one artisan of the name of Hiram at the building of the Temple, we have before us the insuperable difficulty of believing that he had two mothers.

Let us now pass on to consider, in the second place;

THE DESCRIPTIONS OF HIRAM'S QUALIFICATIONS

In 2nd. Chronicles II. 14, Hiram is described as: "Skillful to work in gold, and in silver, in brass, in iron, in stone, and in timber, in purple, in blue, and in fine linen, and in crimson; and also to grave any manner of graving, and to find out every device." In 1st Kings VII. 14, he is called: "A worker in brass, and he was filled with wisdom and understanding, and cunning to work all works in brass." Now, just think for a little on these two descriptions. The one is skillful to work metals — gold, silver, brass and iron; also stone and timber. In weaving and in dyeing, in engraving and in every device, he is an expert. He is an all around architect — a marvel, a genius, a man of large experience and, no doubt, of ripe years, whose fame would be sure to go down the ages. The other is merely a worker in brass — no doubt a man of good parts, but limited in experience and knowledge — probably young in years, and, according to the description, as yet only a worker in brass. This statement that his craftsmanship is confined to brass is most carefully noted by the historian, for it is reiterated in the description. He says: "A worker in brass filled with wisdom and understanding, and cunning to work all works in brass," He repeats the words "in brass," as if he was afraid that the individual he was describing might be mistaken for some other person of the same name, also celebrated as an artisan and a worker, at the building of the Temple.

Considering these two descriptions, is it reasonable to believe that they refer to the same individual? They are not loose, nor in any way vague. On the contrary, they are very precise and detailed, and no one reading them, without prejudice, would imagine them to refer to the same artisan.

We now come to our third point, viz:

THE PERIODS NAMED OF HIRAM'S ARRIVAL AT THE TEMPLE

In 2nd Chronicles II. 13, before the work of the Temple was begun, Hiram king of Tyre in his letter to Solomon says: "And now I have sent a cunning man endued with understanding," etc. In I Kings VII. 13, after the house of the Lord and the house of Solomon had been built, we are informed: "King Solomon sent and fetched Hiram out of Tyre." In the one statement we are told that before the house was built a skillful man was sent to King Solomon by Hiram King of Tyre; in the other that after the house was built Solomon "sent and fetched" Hiram out of Tyre. These periods were twenty years apart; for the house of the Lord took seven years, and the house of Solomon and the courts of the Temple other thirteen years in building.

To understand the biblical narrative properly one has to keep in view that there are several "finishes" mentioned, and that these refer only to certain parts of the work at the building of the Temple. The first "finish" is mentioned in I. Kings VI. 9: "So he built the house and finished it" — that is the mason-work, or shell of the building. Then comes the second part of the work, consisting of the carpenter-work of the roof, and of the chambers around about, as stated in verses 9 and 10; and in verse 14, the narrative goes on to say: "So Solomon built the

house and finished it." The third part of the work described, consists of the decorations — the gold plating and gilding. Verse 22 says: "And the whole house he overlaid with gold, until he had finished all the house." The fourth part of the work is stated to have been the internal fittings and carvings of the house, and the building of the inner court, and the whole is summed up in verse 38, as follows: "And in the eleventh year, in the month of Bul, which is the eighth month, was the house finished throughout all the parts thereof, and according to all the fashion of it. So was he seven years in building it."

So far as we have followed the narrative, the house itself, in its plan and embellishments, has been finished; but the Temple is still far from being completed. The outer courts and the houses of the king, with all their magnificence and ornamentation; the pillars of the porch, and the altars and utensils of the inner court, have not yet been begun. These were to take other thirteen years to construct and finish. In the meantime, let us go on. The house of the forest of Lebanon, the porch of judgment, Solomon's Palace, the palace for Pharaoh's daughter, and the great court; had all just been built when the sacred narrative is abruptly interrupted by the statement: "And king Solomon sent and fetched Hiram out of Tyre." All the work of building proper had been completed, but many things had yet to be done before the sacrifices and magnificent services of the Hebrew religion could be begun and maintained at the Temple. But, if Hiram was sent by the king of Tyre before the work was begun, why did Solomon, at this particular stage, need to send and "fetch" him out of Tyre? Had he gone back to Tyre after some years of laborious work, and was he again needed to complete the building? There are one or two objections to the idea. If he did return to Tyre, we would naturally expect the historian to give us some indication of his having done so. But, search as we may, there is not the smallest hint, or indication of that. All writers on the subject, differing as they do on many points, agree that Hiram had the superintendence of the work at the building of the Temple. Is it likely then, that he could have gone back, while the work was unfinished? The time necessary for such a journey in those days would have so interfered with the progress of the building operations that we are scarcely entitled to assume such a thing, unless on something approaching substantial grounds. The custom then, and for many centuries afterwards, with artisans such as Hiram, was to make their home for the time being wherever their work was. Building operations in connection with temples were necessarily of long duration. In the present case they had probably already stretched over fifteen years. The building of the holy house had occupied seven years, and the royal houses and the courts were finished, so far as mason and carpenter work were concerned; and, as they occupied thirteen years to complete, we may safely estimate that at least eight of these thirteen years had already passed when "Solomon sent and fetched Hiram out of Tyre." In all probability then, Hiram had already spent thirteen years in Jerusalem and, if alive, was still there. If that was so, why and wherefore did Solomon need to send and fetch him out of Tyre? So far as all the records go, the periods named of Hiram's arrival at the Temple are not consistent with the course of events, and are contradictory to each other; so long as we assume there was only one Hiram engaged at the work of the Temple.

These three contradictions as to the Parentage, Qualifications, and Period of arrival at the Temple, which we have now been considering, must apparently remain inexplicable, unless on the natural and, at present, the only reasonable explanation that there were two artisans of the same name, engaged at the work of that famous structure. This hypothesis reconciles those contradictions, makes clear the biblical narrative, explains certain hitherto unintelligible statements, and lends corroborative testimony to the truth, in its substance, of the Masonic tradition of the death of Hiram Abif. In the light of this hypothesis let us now review the whole circumstances mentioned in the sacred narrative.

The first Hiram is "the son of a woman of the daughters of Dan," and arrives at the beginning of the building of the Temple. He is an all around artisan, skillful to work in stone, timber, gold, iron, etc. He superintends the building operations. It is a task of no common difficulty. A great Temple has to be built on the top of a rugged hill, almost entirely surrounded by sharp precipices. Immense walls, the lowest of which is to be 450 feet high, have to be reared up in the valley out from the precipices, and the intervening space has to be filled up with earth in order

to make room for the Temple with all its courts and palaces on the top. This work has to be done under the peculiar conditions that neither hammer, nor axe, nor any tool of iron is to be heard in the main structure, that is the sanctuary; while it is being built. All this would require great skill, knowledge and experience. Stonework, timber-work, and metal-work of various kinds have to be executed. The Sanctuary has to be covered inside and outside with gold. Great curtains, with cherubims and other devices, have to be manufactured. Carvings on stone, and on timber; engravings on gold and silver; have to be done, and done in the highest and most skillful manner possible. The work is not only stupendous in its nature; it is also magnificent in its character. Well, the years pass on and, at the seventh, the house of the Lord and the inner court have been built. Then began the work of the outer courts and the royal palaces. These, while parts of the Temple scheme, were not considered as parts of the sanctuary, and hence, sacred silence was no longer a necessary condition. All was now bustle. The sounds of hammer and chisel, and the stir of toil filled the air, while the great courts and palaces were gradually erected. Other eight years passed in this work, and Hiram the first, with his wonderful genius and skill, built a structure whose fame has been echoed down through the long corridors of Time. Now it is at this stage that Hiram the first disappeared and Hiram the second, "the son of a widow woman of the tribe of Naphtali" came into view. Everything, except the molten brass-work, has been done. Why did Hiram the first not do it? That he was perfectly capable, there can be no reasonable doubt. Why then, did Solomon need to send for Hiram the second to do it? It is evident that Hiram the first was no longer available. Why? Neither scripture narrative nor profane history, so far as we can trace, give any answer to this question. But the traditions of Masonry supply a very clear and natural answer. Hiram the first was dead, and hence Solomon sent and fetched Hiram (the second) out of Tyre, to finish the work. Everything had been completed except the brass-work. and Hiram the second is described specially as "a worker in brass." Five more years passed and the final finish of the Temple came. The mighty brass pillars — the casting of which was a wonderful achievement — the various altars and utensils, the golden candlesticks etc., were all made and put in their places and, with full pomp and sacrifice, Solomon dedicated and consecrated the house of the Lord.

In this way, on the assumption that there were two Hirams engaged at the work of the Temple the sacred narrative is clear and coherent; and the seeming inconsistencies and contradictions we have referred to, disappear.

But there still remain one or two passages in the narrative which puzzle us. In I. Kings VII. 45, we read: "And the pots and the shovels and the basins, and all these vessels, which Hiram made to king Solomon for the house of the Lord, were of bright brass." In II. Chronicles IV. 16, after ascribing as in the book of Kings, the various things made by Hiram — the pillars, the bases, the layers, and the sea with twelve oxen under it — we read: "And the pots also, and the shovels, and the flesh-hooks and all their instruments, did Hiram, his father make to king Solomon, for the house of the Lord, of bright brass." Here we have evidently a parenthetical remark interjected by the writer of the narrative with the object of making plain to the reader some fact which would be otherwise obscure. The words "of bright brass" arrest our attention. What do they mean? They evidently want to emphasize that the pots, shovels, and all the work of brass done by "Hiram, his father" were of bright brass that is, malleable brass; while the pillars, the bases, the lavers, as mentioned in the context were of cast brass. This distinction is associated with the words "his father." Whose father could it be, but the father of the person whose work is being described? In verse II of the last mentioned chapter in Chronicles, we read: "And Hiram made the pots and the shovels and the basins. And Hiram finished the work that he was to make for King Solomon for the house of God." Now, according to Hebrew scholars the words here translated "Hiram" in both instances, are distinct, and different in the original. In I. Kings VII. 40, our translation should read: "And Chirom made the layers and the shovels and the basins. So Chiram made an end of doing all the work, etc.": and in II. Chronicles IV. 11, it should read: "And Chiram finished the work that he was to make for king Solomon" etc.

In view of the distinction in the names, and of the apparent parenthetical character of the 45th verse in I. Kings VII. and of the 16th verse in II. Chronicles IV., the reading of the sacred narrative appears to be as follows, beginning at I. Kings VII. 40:

"But Chirom made the lavers and the shovels and the basins, and Chiram made an end of the work that Chirom was to have made king Solomon for the house of the Lord: the two pillars, and the two bowls of the chapters that were on the top of the two pillars; and the two net-works, to cover the two bowls of the chapters which were upon the top of the pillars; and four hundred pomegranates for the two net-works, even two rows of pomegranates for one net-work, to cover the two bowls of the chapters that were upon the pillars; and the ten bases, and ten lavers on the bases; and one sea, and twelve oxen under the sea: but the pots and the shovels, and the basins; and all those vessels which Chirom made to king Solomon for the house of the Lord were of bright brass."

In the same way beginning at II. Chronicles IV. 11, we would read: "But Churam made the pots, and the shovels, and the basins; and Chiram finished the work which Churam was to have made for king Solomon for the house of God — to-wit: the two pillars, and the pommels, and the chapters which were on the top of the two pillars, and the two wreaths to cover the two pommels of the chapters which were upon the pillars. He made also bases, and lavers made he upon the bases: One sea and twelve oxen under it; But the pots, and the shovels and the flesh-hooks, and all the instruments which Churam, his father, did make to king Solomon for the house of the Lord were of bright brass."

This reading of the narrative, seems to us, the only one that gives any appearance of consistency and plain sense. The repetition of the name "Hiram" in I. Kings VII. 40, and its use in verse 45; the repetition of "Hiram" in II. Chronicles IV. 11, and the words "Hiram his father" are all inexplicable and confusing, as they stand. The explanation that makes everything plain and clear is that Hiram the son made the pillars, the lavers, etc., of cast-brass, and that Hiram his father made the pots, basins, etc., of bright or malleable brass. In this view the words "his father" (in the original "Abif") is rendered quite natural and intelligible, and accords with Masonic tradition.

In all the variations of the Masonic traditions, the Hiram whose death occurred immediately preceding the completion of the Temple is named "Hiram Abif." This designation becomes significant only in view of the fact that another Hiram, his son, also superintended at the building of the Temple and finished the work which his father would no doubt have finished had he lived a few years longer. Why should the designation "Abif" have been given if there was no other Hiram engaged at the Temple? It surely indicates not only another Hiram, but also that the other was the son of the Hiram so named.

The Hiram whom Solomon "fetched out of Tyre" is described as the son of a widow. This description accords exactly with the theory now advanced. If Hiram Abif was dead and his wife alive, his son Hiram would naturally be the son of a widow.

The expression "sent and fetched" is peculiar and is also perhaps very significant. It seems to indicate in all probability that the King Solomon sent an escort for Hiram. Our Rev. Brother Rosenbaum thinks this was to protect him from his father's enemies. With this we can scarcely agree. These enemies were all too insignificant to demand for him a royal escort. Ordinary guards as was usual for travelers, would have been sufficient so far as safety was concerned. A royal escort was, and is a mark of honour and it seems much more probable that this respect was shown to the son, in honour of the fame and memory of the father.

This theory of the two Hiram-Artisans at the building of the Temple also harmonizes with the statement made by Dr. Oliver to which reference has already been made, viz: "It is well known that the celebrated artist was living in Tyre many years after the Temple was completed." This statement has been used as an argument against the truth of the Masonic tradition regarding the death of Hiram. But if there were two Hiram's the statement of Dr. Oliver and the tradition of Hiram's death may both be true. Hiram the son may very probably have returned to Tyre and lived, let us fondly believe, many years the worthy son of a noble father.

* * *

TO A SKELETON

The MS. of this poem was found in the Museum of the Royal College of Surgeons, in London, near a perfect human skeleton, and sent by the curator to the *Morning Chronicle* for publication. It excited so much attention that every effort was made to discover the author, and a responsible party went so far as to offer a reward of fifty guineas for information that would discover its origin. The author preserved his incognito, and, we believe, has never been discovered.

The above ascription is fictional. The correct attribution is given below. Several stanzas of the poem have been incorporated into the Third Degree ritual of some Masonic lodges. (The Skirret)

Anna Jane Vardill

1781-1852

Behold this ruin! 'Twas a skull,
Once of ethereal spirit full,
This narrow cell was life's retreat;
This space was thought's mysterious seat.
What beauteous visions filled this spot;
What dreams of pleasure long forgot?
Nor hope, nor joy, nor love, nor fear
Have left one trace of record here.

Beneath this mouldering canopy
Once shone the bright and busy eye;
But start not at the dismal void.
If social love that eye employed,
If with no lawless fire it gleamed,
But through the dews of kindness beamed -
That eye shall be forever bright
When stars and sun are sunk in night.

Within this hollow cavern hung
The ready, swift, and tuneful tongue;
If falsehood's honey it disdained,
And when it could not praise was chained;
If bold in virtue's cause it spoke,
Yet gentle concord never broke -
This silent tongue shall plead for thee
When time unveils eternity!

Say, did these fingers delve the mine,
Or with the envied rubies shine?
To hew the rock or wear a gem
Can little now avail to them.
But if the page of truth they sought,
Or comfort to the mourner brought,
These hands a richer meed shall claim
Than all that wait on wealth and fame.

Avails it whether bare or shod
These feet the paths of duty trod?
If from the bowers of ease they fled,
To seek affliction's humble shed;

If grandeur's guilty bride they spurned,
And home to virtue's cot returned -
These feet with angel wings shall vie,
And tread the palace of the sky!

* * *

THE SIGNIFICANCE OF MAUNDY THURSDAY

Bro. Frank B. Gault, Washington

MASONIC observances and ceremonies are founded upon authentic history or upon legends and traditions our race cherishes with unremitting fervor. In our recurring commemorations of these time-honored events we, in an appreciative way, reengage with those ancient worthies in their notable contributions to human welfare. Thus the Maundy Thursday feast reminds us of the closing scenes of the earthly career of the Saviour of the world. Yea, more, for by our recurring celebrations of this mystic banquet we perpetuate and we accentuate the greatest world-lesson that ever fell upon the ears of our common humanity for inspiration and guidance. The outlying incidents may be briefly told.

Our Lord was reaching the culmination of his week of passion. A few days before he had entered Jerusalem in triumph amid the waving of palms and the glad acclaims of an expectant populace. The people looked for a king. Our Lord was truly to found a kingdom but it was to be a spiritual kingdom, investing man with a new worth and dignity. Peace on earth, social equality, liberty of conscience, and the worth of the common man were to be ruling virtues in this new order of human affairs.

It was Thursday "Green Thursday," the Middle Ages called it. Approaching night had thrown its lengthening shadows o'er the Judean hills. The Son of Man, accompanied by the Twelve, leaving the little city of Bethany, passed over "Olive's brow" to the upper room in the city of David where, by prearrangement, the great Jewish feast of the Passover was to be celebrated. It proved to be the first Maundy Thursday feast, now so happily known as the "Mystic Banquet."

In that land the host met his guests with a laver of water that they might bathe their feet after laying aside their sandals, a most welcome attention after travel upon the dusty roads. This service was committed to slaves. Upon this occasion there being no host, provision for this refreshing act had been omitted. Observing this our Lord arose and in simple but gracious manner washed the feet of his disciples not, however, without some earnest protests.

Thus was exemplified in unaffected sincerity and modest condescension the most impressive lesson in human service and social democracy the race ever received. In thus bestowing upon his disciples this omitted act of hospitality, although the courtesy of menials, the Lord gave mankind an object lesson for all time which means that he who rules must himself serve. Let us in this festal hour hearken unto this effective lesson, centuries old, though too often neglected, that all must serve. It is not the obeisance of the inferior to a superior; not a mercenary hope of reciprocal gain; but the mercy that is unrestrained. Our civilization is based upon this principle. Our firesides, our schools, our hospitals, our neighborliness, our democracy itself, rest upon this law of human relationship — we serve each other and together we are servants of the common good. However humble that service, if it is needed, it must be rendered freely and joyously.

This simple ceremony concluded, our Lord, turning to his disciples, said, "A new commandment I give unto you, that ye love one another." Here is the motive of the service — love, good will to men, sympathy, devotion to well being, lending a hand.

Of kindred origin with the word commandment is mandate, mandatory and mandamus. These words, indeed, are identical. The day of the command, the Thursday of the commandment, the mandate Thursday, and we have Maundy Thursday.

The literal and formal observance of the washing of feet in a public manner by church and state officials has long existed. The emperor of Austria, the king of Bavaria, and the czar of Russia are notable examples. Usually the twelve oldest men in the realm are selected and the sovereign through servants, performs the ablution. Sometimes prelates of the church select twelve very poor men for the rite.

This incident and the new commandment afford many candid variances of opinion as to important features, but these must not be obscured by the imperative lesson, — our obligations to our fellow man regardless of race, status or creed. The attitude toward humanity exemplified at that Passover feast two thousand years ago is our challenge. Democracy must be the ruling principle in the world, and humanity our service, aristocracy, royalty, dynasty, imperialism, undeserved privilege, and "man's inhumanity to man" must cease to disturb and destroy. The sorrows, the distresses and the enmities of today show that the incident and the commandment of that far-off first Maundy Thursday feast can not too often be impressed upon a chaotic and unhappy world.

The democracy of service and the service of democracy are the hope of mankind.

* * *

THE WORK OF A MASON

The work of the Freemason is the important work of life. It involves the development of his body so that he may be the better enabled to support himself and family; the development of his mind so that he may be enabled to think and act intelligently and rationally; the development of his soul so that he may gradually evolve into that more perfect condition — the Master.

— W. L. Sharp.

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THE MASONIC COMPEERS OF WASHINGTON

Bro. Frank E. Notes, Wisconsin

GREAT exigencies and great occasions give birth to great men, and many a man who under ordinary circumstances would not rise above mediocrity, has, under the spur of great demands, become really and truly great.

There is always a tendency to make heroes of those who took prominent part in the birth of the Nation; but when all allowances have been made, the fact still remains that in proportion to numbers the years preceding and following the organization of our National government produced more men of courage, ability and true patriotism than any other period in our history, not even excepting the years of the Civil War.

Among the colossal figures that stood out prominently in those trying years, the Masons of revolutionary times, the Masonic Compeers of our immortal Washington, are justly entitled to have their names written high on the pillars of worldly fame.

There is an unwritten history of the silent but patient influences of Masonry in producing the various political associations of that period, and the mighty brotherhood of Masonry, ever the friend of liberty, was omnipotent for good.

While there were doubtless transient meetings of Masons in different American colonies from time to time late in the seventeenth and early in the eighteenth centuries, it was not until about the time of Washington's birth that the workings of the order began to assume definite shape and the written records of Masonry in America commenced. In April, 1733, Lord Montagu, Grand Master of the Grand Lodge of England, appointed Henry Price as "Provincial Grand Master of New England and dominions and territories thereunto belonging." Organizing the Grand Lodge in July of that year, he granted a charter to eighteen brethren in Boston to form "First Lodge," a name maintained till 1783 when it was changed to St. John's Lodge. If Washington was the "father of his country," Henry Price was in a like sense the father of American Masonry. In the following year, 1734, his authority was extended to the whole of North America and he granted warrants to brethren for lodges at Philadelphia, Pa., and at Portsmouth, N. H.; and in December, 1735, for one at Charleston, S. C.

Prominent in the early history of the country was the Randolph family of Virginia. Peyton Randolph was the first president of the Continental Congress which convened in 1774. He was also the last provincial Grand Master in that colony. In 1778 an Independent Grand Lodge was organized in Virginia and Edmund Randolph, nephew of Peyton, became its Grand Master in 1786. He was also Governor of Virginia the same year and in 1787 was a member of the convention that drafted the Federal Constitution.

In 1787 an independent Grand Lodge was formed in Georgia and Gen. James Jackson became its Grand Master. Distinguished in his state for military valor, he was also, in 1788, its first elected Governor.

In the same year the Grand Lodge of South Carolina was organized and in 1790 Gen. Mordecai Gist became its Grand Master.

North Carolina organized its Grand Lodge in 1787. Richard Caswell, who was the first elected Governor in that state and who served as such in 1776, '77, '78 and '79, and again in 1787, was the second Grand Master in 1788. Also in national affairs he was prominent in the Continental Congress and as a member of the Constitutional Convention. Another prominent Mason in that state was Wm. R. Davie, Governor in 1798 and Grand Master in 1790.

The first Grand Master of Connecticut was Pierpont Edward in 1790. He was a son of the famous divine, the Rev. Jonathan Edward, one of the early Presidents of Princeton College.

Gen. John Sullivan was Governor of New Hampshire from 1786 to 1790. During his last term a Grand Lodge was organized in that state and he was its first Grand Master. Gen. Sullivan is noted for the splendid campaign he made in 1779 against the Six Nations of Indians who were fighting with the British troops.

Gen. Rufus Putman was prominent in Massachusetts, went to Ohio late in the eighteenth century and became Grand Master in that state in 1808.

There were many other prominent men who were Masonic Compeers of Washington, but the list is too long to dwell upon.

How many Masons are familiar with the part that Masons played in the Boston Tea Party? It was on the evening of the 18th of December, 1773, when a party of Masons, mostly members of St. Andrew's Lodge in Boston, assembled for the purpose of protesting against the iniquitous tax on tea. Samuel Adams is said to have been a member of that party. Gen. Warren, the first prominent martyr to the cause of American Independence and once Grand Master of Massachusetts, was a member of that party. Paul Revere, celebrated for his famous ride before the battle of Lexington, at that time Junior. Warden of the Lodge and afterwards Grand Master, was a leading spirit among the resolute Masons who emptied the tea into Boston harbor.

While much of the specific wording of the Declaration of Independence is credited to Thomas Jefferson, Masons were the leading spirits in the movement. Almost simultaneously and perhaps not knowing of the other's action, Samuel Adams in Massachusetts and Richard Henry Lee in Virginia wrote vigorous protests in 1774 against the tyrannous acts of the English government. It was Lee who in the Constitutional Congress, June 12, 1776, made the motion that the colonies were and of right ought to be free and independent.

The battle of Lexington was the result of an attempt on the part of the British soldiers to arrest John Hancock and Samuel Adams as arch traitors, but they were warned and escaped to Philadelphia. Of the fifty-six members of the Continental Congress who signed the Declaration of Independence, twenty-two are known to have been Masons and quite a number of others are believed to have been members of the order, but the imperfect records of those days leaves a doubt as to their membership. Of the committee of five appointed to prepare the Declaration, three, viz: Sherman, Livingston and Adams, were Masons. John Hancock, who was the president of the Congress, was the first Mason to affix his signature. He was afterwards for thirteen years Governor of Massachusetts. Of the first eight signers of the declaration, seven were Masons. The Masons were the head and front of the movement.

Besides Hancock and Adams, the following Masons signed the Declaration:

Josiah Bartlett, first to vote for and second to sign. He was at first a prominent physician, afterwards a lawyer and for six years Chief Justice of the Supreme Court of New Hampshire and the first Governor of that state. He was also Grand Master of the Grand Lodge in 1798.

William Whipple, born in Maine two years before Washington, prominent as a lawyer and a Judge of the Supreme Court of New Hampshire for three years.

Matthew Thornton, born in Ireland in 1714 and an advocate of ability; for six years a member of the Supreme Court of New Hampshire.

Robert Treat Paine, born the year before Washington in Boston; was for fourteen years a justice of the Supreme Court of Massachusetts.

Elbridge Gerry, a member of the Constitutional Congress five times, member of the Constitutional Convention, Governor of Massachusetts in 1810-'11 and Vice President at the time of his death in 1814. It was from his work of districting the state that we get the word "gerrymander."

Stephen Hopkins, Speaker of the Massachusetts Assembly in 1742 and for several years following, Governor of the state for thirteen years and for several years a member of the Continental Congress.

Roger Sherman, prominent in the legislative affairs of Connecticut, member of the first and several succeeding Continental Congresses, and one of the five members of the committee to draft the Declaration of Independence. Among his distinguished descendants were Senators Wm. M. Evarts of New York and Geo. F. Hoar of Massachusetts.

Philip Livingston, member of the Continental Congress and of the Constitutional Convention, and one of the Committee of five who drafted the Declaration.

Oliver Wolcott, member of the Continental Congress for several years and Governor of Connecticut for eleven years.

Francis Lewis, a native of Wales, who engaged in commerce and amassed a large fortune much of which he spent in the cause of American liberty, was a member of the Continental Congress from New York, in which state he died at the ripe old age of 90 years.

John Witherspoon, a Scottish Doctor of Divinity who came to the Colonies after he had made a reputation as one of the strongest preachers of his age. He became president of Princeton College in 1768 and by his wise administration greatly raised the rank of that institution. Sat in the Continental Congress for three years at a time at two different periods.

Francis Hopkinson, head of the Navy during the Revolution, Judge of the Admiralty in Pennsylvania for ten years to 1789 and then, as an appointee of President Washington, a United States Judge till his death in 1791.

Lewis Morris, a wealthy resident of New York who risked his fortune in the cause of liberty and whose large estates were burned by the British in 1776.

Benjamin Rush, the most noted physician of his age, who, with Richard Henry Lee moved the adoption of a resolution for independence early in June, 1776. He was treasurer of the U. S. Mint in Philadelphia from 1799 till his death in 1813. It was after him that Rush Medical College in Chicago was named.

Benjamin Franklin, Grand Master of Pennsylvania in 1784 and the most distinguished diplomat and scientist of that period. George Ross, a judge of the Pennsylvania Admiralty Court who died in 1779.

Richard Henry Lee, who, although a Virginian, took strong grounds against Slavery in 1761. In 1784 he was president of the Continental Congress and was the first U. S. Senator from Virginia. His younger brother, Francis Lightfoot Lee, was also a signer of the Declaration.

Benjamin Harrison, four times a member of the Continental Congress, twice Governor of Virginia, and the father of William Henry Harrison ("Old Tippecanoe"), the ninth President.

William Hooper, a native of Boston but a representative for several terms of North Carolina in the Continental Congress. These twenty-two Masonic signers of the Declaration were a sturdy group — men for the

most part of great learning and influence. By occupation eleven of them were traders and farmers, eight of them were lawyers, two were doctors and one a minister of the gospel. Seven of them served their states as governors and gave a combined service of 48 years or an average of about seven years each. Seven of them were judges, mostly of the highest courts, and rendered a combined service of 64 years or an average of about 9 years each. Two of them were Grand Masters of Masonic Grand Lodges.

Statisticians tell us that science and modern methods of living have greatly increased the average span of human life in these latter days. But the twenty two Masonic signers of the Declaration, living for the most part under primitive conditions, far outran the average age of their fellows both in those times and now. Only two of them died before the age of 50; twelve of them were over 70 years of age; five of them were over 80, and one reached the age of 90 years; while the average span of life for the whole twenty-two was 70 years. The earliest death among them was in 1779, the latest in 1814. This is a remarkable exhibit of the strength of mind and body of the leading founders of the government of our great Nation.

They did their work well and were an honor not only to themselves, their families, their communities, their states and the Nation, but they honored the great brotherhood to which they belonged and were among the noblest representatives of true Masonry, which has always stood for the highest patriotism. Of them may well be said,

"When mature growth had marked their manly brows,
They sought our altar and they made their vows —
Upon our tessellated floor they trod,
Bended their knees and placed their trust in God.
Through all their great and glorious lives they stood
As true, warm brothers, foremost e'er in good;
And when they died, amid profoundest gloom,
Their mourning brethren bore them to the tomb."

Upon their coffins were the aprons placed
Of Masonry, which through their life they graced.
The profound gratitude of men unborn
Will follow them until the dawn of morn
When Nations, true to Christian brotherhood
Shall nevermore shed unprotected blood.
When Peace, the angel guest of heaven divine,
Brings greatest happiness to all mankind.

* * *

LINCOLN

Would I might rouse the Lincoln in you all,
That which is gendered in the wilderness,
From lonely prairies and God's tenderness.
Imperial soul, star of a weedy stream,
Born where the ghosts of buffaloes still dream,
Whose spirit hoof-beats storm above his grave,
About that breast of earth and prairie-fire —
Fire that freed the slave.

— Vachel Lindsay.

* * *

LET THE LIGHT SHINE

The essence of Free Masonry is light. Its function is to illumine. To be sure Masonry has its secrets and mysteries, but so has sunlight. The one may be understood by the adept as the other has been analyzed by the scientist. Opaque objects on the earth cast shadows and in the movements of the planets the sun becomes eclipsed. So in Masonry there are emblems of darkness and ceremonies wherein light is extinguished; but these are only for contrast. Light, ever increasing light, is the ideal.

And yet there are dimmers in the Masonic World. A lodge is such if it fails to illumine, and so is a Mason who does not let his light shine before men. Such lodges and such brethren are like opaque objects in nature. Light either does not permeate them, or if it does, it stays there instead of shining through or being reflected by them. They not only shut off light from others, but really stand in their own light; for if a lodge would flourish, or if a brother would get for himself the best that Masonry can give him, that lodge and that brother must let the light shine, not within only, like an electric light with dimmers on, but through them and from them out into the world upon human institutions and upon humanity outside the Craft.

The final test of Masonry is its altruism, what it accomplishes, not for itself and its votaries only, but for humanity; and he is the best Mason and does the most for his lodge and the advancement of the Order, who most carries out into the business, political and social world, the light with which he himself has been illuminated in the lodge room, and who most lets that light shine, through his beneficent words and deeds, for enlightenment and enlivening of his fellow men.

— Calvin Graves Greene, 33° Hon.

* * *

THE THINGS I SHARE

I thank Thee, Lord, for strength of arm
To win my bread,
And that, beyond my need, is meat
For friend unfed:
I thank Thee much for bread to live,
I thank Thee more for bread to give.

I thank Thee, Lord, for snug-thatched roof
In cold and storm,
And that beyond my need is room
For friend forlorn:
I thank Thee much for place to rest,
But more for shelter for my guest.

I thank Thee, Lord, for lavish love
On me bestowed,
Enough to share with loveless folk
To ease their load:
Thy love to me I ill could spare,
Yet dearer is Thy love I share.

— Robert Davis.

* * *

EDITORIAL

HAIL! COLUMBIA

SLOWLY our Republic is being drawn into the vortex of world-war, which it cannot much longer honorably avoid. Indeed, by the time these words are read it may already have made the plunge, taking up its great white sword in behalf of the humanity of the nation and the humanity of the world. Peace without victory, peace at any

price, are becoming increasingly impossible in theory and in fact. They are not just who will not fight for justice; and there is one thing better than keeping the peace — that is having a peace that is worth keeping.

No nation can turn hermit and live apart from the world, shut in by a narrow, selfish nationalism. The world is too small, too closely bound together, too delicately organized. In 1870 England held aloof and saw France crushed, but she prepared disaster for herself. This lesson is for us, because we have behind us three generations of national isolation, and that policy is now obsolete. It is not whether America shall enter the war — that hangs in the balance — but whether she shall enter the world, not for conquest but for co-operation, for service, for sacrifice, if need be, in behalf of a common civilization.

Some things there are more precious than life, without which life is not worth living — Liberty, Justice, Mercy. If these precious things can be secured by wise delay, by moral power alone, let us give thanks; but if moral power is finally set at naught, let the aggressor meet an invincible defender of humanity! If that issue is drawn, no one need be told where American Masons will stand: they will insist that the flag should stand for the protection of our citizens, and that our citizens stand for the protection of the flag! A little high school girl wrote these words, and through them her gentle hand will touch the heart-strings of thousands of men:

"This is my flag. For it I will give
All that I have, even as they gave -
They who dyed those blood-red bands -
Their lives that it might wave.
This is my flag. I am prepared
To answer now its first clear call,
And with Thy help, oh God,
Strive that it may not fall.
This is my flag. Dark days seem near.
O Lord, let me not fail.
Always my flag has led the right,
O Lord, let it not fail."

* * *

THE NEW THINKING

Every movement, every institution, has two wings, and must have if it is to fly very far. Time out of mind they have been called the Radical and the Conservative; the one looking to the future, and the other seeking to conserve the hard-won inheritance of the past. Both are needed, but they must be held in balance, each serving the other and working together, else the result will be disaster and wreck. Between those who will let nothing alone, and those who will allow no change at all, there is a middle path of cautious and reliable progress. If we do not conserve what we have gained, we cannot improve it. Nor can we really conserve it without improving it. But we must have not only the wish but the ability to improve, else we shall lose what we have while blunderingly trying to get what we want.

Now these principles apply equally to Masonry, and ye editor confesses that he is a radical in heart but a conservative in thought, having the disposition to improve and the desire to conserve, seeking, as John Bright was wont to say, to "make the past glide easily into the future." For that reason, he would have Masons be doers as well as dreamers, conservatives but not mere preservatives, and radical without being revolutionary — in short, Builders and not mere Agitators. For the same reason he is ready and willing to listen to Brethren of the radical wing of the maternity, who are making themselves heard of late, assured that they ought to be heard because they have something to say, as witness the following words from a letter before us:

"How can the Society undertake a progressive study of Masonic fundamentals with its back turned to the future? The facts are, Brother, the Society has not dared to touch on a single vital issue before us. While it may be a

subject highly interesting to a close student, you would hardly admit that a controversy over some technicality in the records of the Mystics of the Middle Ages is a matter of vital importance to us here in the flesh and blood now. I am a radical in thought, and although as were promised that a circle would be drawn that would include all, we find that the promise has not been fulfilled. If the motive back of the formation of the Society visas the hope of diverting a rapidly growing radical sentiment into conservative channels, I will admit that in part you have succeeded. But the tide will turn and you will soon have to take cognizance of the radical wing of the Society. Among the present-day subjects of vital interest to the Craft are the following:

Universal military training, would it be used to defeat or to aid Masonic Brotherhood? Famous Masons who are working for a league to enforce world-peace. Are Masons neglecting the public schools, if so what will be the ultimate result? President Wilson's challenge to the liberals of the world on world peace, is it a challenge to Masonry or Democracy? What is Masonry doing today to uphold the right of free speech, free press, and free public assembly? Where must Masonry stand tomorrow on present-day subjects, if its future is to be as honorable as its past? Is Masonry an institution with definite objects in view; if so, what are they? Is Masonry merely a set of rules for individual conduct? Can Masonry squarely turn from its age-old admiration of its past and resolutely face the problems of the future? Shall Masonry organize to combat the growing influence of Romanism in American politics? Can Masonry afford to allow its membership to form its opinions from a controlled press?

But I hear you saying that these are political, moral and economic questions, and have no part in the program of Masonry, nor are they proper subjects for discussion in our journal. If this is your thought, Brother, then I ask you where under high heaven can a poor soul go for reliable information? Far be it from me to detract from the glory of Masonry's past, but I am interested more in a glorious present and a bright and shining future. Before the coming of *The Builder*, recent Masonry was like the Chinese Empire, great in bulk, unwieldy, selfsatisfied and with no particular object in view worthy of its manhood or traditions."

Here is the typical radical — God bless him — eager, utterly sincere, impatient, a pace-maker but not a peace-maker, who would transform the Masonic Lodge into a debating society, and so upset things that it would take a generation to set them right. We respect his motive — even if he suspects the motive which prompted the founding of this Society; we admire his idealism and enthusiasm; but we cannot agree with his method. And, after all, it is all a matter of method; since all of us want to do what is wisest and best, making the present worthy of the past and prophetic of the future. Of course our Brother exaggerates, after the manner of his clan, leaving the impression that our present studies are devoted to untangling the technicalities of the Mystics of the Middle Ages. But if he thinks that honorable past of Masonry, to which he wishes us to be true, was made by methods such as he recommends, he had better look into the old records a little.

Far, very far from it. Had our fathers followed such leadership, there would be no Masonic Lodge today, or else it would be only an indistinguishable atom in a welter of partisan feud. Suppose the church should open its pulpit to issues such as our Brother outlines, it would become a place not of devotion but of debate, and injure its influence — as, indeed, it has done in so far as it has followed this program. No more can the Masonic Lodge commit itself to such a program, unless it wishes deliberately to invite destruction. What then shall we do? Ignore present-day issues, turn our back upon them and leave them to be fought out in the spirit of feud? Not at all. Masonry, as an organized body, cannot deal with issues of this sort, but Masons can. And it is the mission of Masonry so to train men in the spirit of truth, righteousness, human sympathy and social obligation that they will face and solve such questions in a spirit of justice, wisdom and truth!

Once for all ye editor stated his position in respect to this whole matter in "The Builders," (pp. 244-250) and he sees no reason to alter it by one iota; but instead all the more reason to insist upon it, with due regard for his Brethren who disagree. He feels profoundly in the matter, not because he is indifferent to the living issues of this dark and troubled time — God forbid — but just because the tendency which our Brother voices, now becoming clamorous, means the overthrow of the Order. Speaking plainly, yet kindly, he is frank to say that if such a program

were adopted by the Masonic Order he would leave it instantly, and he would be followed by the vast majority of its members. It would no longer be the Masonry he loves and seeks to serve, but something so utterly unlike the Masonry whose past is honorable, and so alien to its spirit, as to be its enemy. So may it never be, while grass grows and the sun shines!

Masons may form groups, if they like, and discuss the questions which our Brother suggests, and others of a sort similar; but the Fraternity cannot indulge in such debates without disaster. In saying this we are thinking far ahead to a time when the noises of today shall have followed the feet that made them into the Silence remembering, too, the wisdom of our fathers which has approved itself by results. Our Brother thinks we have drawn a circle too small to include him in its embrace. No, no, it is the other way round. Somehow, in thinking of this matter, we recall the words of Browning:

"Oh if we draw a circle premature,
Heedless of far gain,
Greedy for quick returns of profits, sure
Bad is the bargain!"

* * *

SPIRITUAL MASONRY

From Brother Oswald Wirth, of Paris, comes a very gracious letter, not only expressing appreciation of the work of the Society and its journal, but suggesting that it be made international. He is the editor of *Le Symbolisme*, and he gives a hint of the difficulties that beset him in publishing a Masonic journal under pressure of war conditions in France. Indeed, *Le Symbolisme* is suspended temporarily, owing to financial perplexities, but we trust that dawn will come soon, and that its gentle labors may be resumed. The following excerpt, as setting forth a more spiritual ideal of Masonry, may be of interest and profit to our readers:

"Since 1717, our Order has been especially ceremonial; the material, external side has been too predominant. It is not right to be contented henceforth to practice Freemasonry ritualistically; we must come to comprehend it, to possess all the intelligence of it. It is therefore no longer for men to wish to associate together, pay their dues, and bear the symbols by which we must address ourselves, but to have intellects capable of comprehending our philosophy. I am formulating no criticism in regard to Masonic bodies, and I do not wish to interfere, at least not directly, to reform them. That which interests me is the eternal wisdom to which the symbolism makes allusion. It is necessary to revive this wisdom, while searching everywhere for the remnants of its symbolic corpse. This is the task to which I have assigned myself; but when I have tried to communicate to others the fruits of my researches, I have found that Freemasons often show less receptivity than the profane. Having been consecrated and initiated, and placing there the value of Freemasonry, they believe too easily that they have nothing more to learn. This experience decides me to propagate a Masonry of the spirit independent of Masonic bodies."

* * *

If your morals make you dreary, depend upon it they are wrong. I do not say give them up, for they may be all you have; but conceal them, like a vice, lest they should spoil the lives of other mender. — R.L. Stevenson

* * *

THE LIBRARY

LIFE AFTER DEATH

DEAR EDITOR: In the list of books received by *The Builder*, I note the work of Sir Oliver Lodge, entitled "Raymond, or Life After Death," purporting to give the communications received from his son who was killed in Flanders. Remembering what you said about "Patience Worth," I have a keen curiosity to know what you think of this book. I venture to transcribe the following words written by William Dean Howells thirty-five years ago, in his

story, "The Undiscovered Country," and quoted in the March Atlantic Monthly, fearing that you may have missed them. Speaking of spiritualism and its materializations, he says:

"All other systems of belief, all other revelations of the unseen world, have supplied a rule of life, have been given for our use here. But this offers nothing but the barren fact that we live again. It is as thoroughly godless as atheism itself, and no man can accept it upon any other man's word, because it has not yet shown its truth in the ameliorated life of men. As long as it is used merely to establish the fact of a future life it will remain sterile. It will continue to be doubted, like a conjuror's trick, by all who have not seen it; and those who have seen it will afterwards come to discredit their own senses. The world has been mocked with something of the kind from the beginning; it is no new thing."

I do not say that this expresses my view of the matter. In fact, I do not say that I have any view, preferring to keep an open mind, and being deeply convinced of a future life on other grounds. Perhaps such a matter has no place in our journal, but if it has — and I recall your saying that Masonry is concerned with all things human — some of us would be glad to know your thought.

Fraternally,

— T. J. L.

My Brother, we live in dark and terrible times, and the Unseen World seems very near, its gates thronged by a host no man can number of the bravest and the best who are giving their lives for the things that make life dear. Death, so multitudinous and overwhelming, has brought immortality to light. For many, as for Sir Oliver Lodge, its silence is broken by the accents of familiar voices — as in a cablegram that lies before us, signed, "A Mother of Five" — and for all the assurance is doubly sure that "Life is ever lord of Death and Love can never lose its own." The book by Sir Oliver Lodge is noble and notable, not only for what it recites but for the dignity, restraint and austere care of the recital. As he says in the preface, only his sympathy with the appalling premature and unnatural bereavement due to the war would have induced him to remove the veil from his own private grief, and he writes in the hope that his words may help to heal hearts wounded by the deep stab of war and death.

The book is divided into three parts: the first of which tells the brief life of a boy, his letters home from the front, his death on the field of honor — a pitiful page by his mother, and a memoir by his brother. The second recites the messages supposed to have been received from him after his death, telling, in his characteristic manner, of the after life, trying to make its conditions real to his friends; of his interest and solicitude for them, with many touches as beautiful as they are tender. The third part is a discussion by the father of the meaning of it all — a majestic piece of writing, in which the mind of the scientist masters the heart of the father, making him critical of evidence, careful of fact, and doubly cautious because his heart is involved. Altogether it is a book to make one pause and ponder, and does not at all come under the category described in the words of Howells thirty-five years ago; because it is the work of a great man of science, and because the whole question is looked at in a different light now than then.

Personally, we are in much the same case as Brother Liggon, wishing to keep an open mind and a tender heart — not mistaking sentiment for substance, fancy for fact — and, like him, utterly convinced of eternal life on other grounds. Nevertheless, we confess that this book has been a great inspiration, in that it has helped to make the unseen world more real, more human, and has touched it with light and color and joy. Certainly it makes it something more than a "barren" fact, and that means very much to such as wait for those who return no more. Of Patience Worth we said that, while we were unable to say whether her stories and songs were revelations of the unseen, they were worthy of being such, alike for their beauty and grace. And we say the same of this book. If it deals at times, in matters seemingly trivial, we remember that they are the best kind of personal identification even in a court of law, and not less so in the Court of the Dead.

Nor can we agree with Howells that such communications, as they are now reported and studied, are "sterile" of influence and furnish no "rule of life." What it means to have a real assurance — to be triumphantly

convinced — of the deathless life may be seen in the life of Frederick Myers, who, by way of scientific psychic research, came to certainty about it. The result was not simply a transformation, but a transfiguration. He seemed to have a new character, a new personality — as William James has told us. A passionate, disdainful impatient unhandy man, became tender sympathetic endlessly patient and above all, radiantly hanny: and the fortitude of his last days, amidst atrocious sufferings touched the heroic. No, it does not delete life, but adds a new hemisphere to it.

Such thoughts are surely timely in a world of griefs and graves, and the more so on the eve of Easter day, when millions of men, women and little children find their way to the House of Hope — in quiet country meeting-houses, in old ivy-covered chapels, in stately cathedrals — to renew the ancient expectation of their race. Happy are those to whom it is given to see that there is no future life, but that life is one here and hereafter — a vision of love, comradeship and character — and that death is a shadowy gate through which we pass out of phantoms into reality, out of darkness into light!

* * *

THE EASTERN STAR

A new and elaborate "History of the Order of the Eastern Star," by Mrs. Jean M'kee Kenaston, of the Grand Chapter of South Dakota, lies before us. Taking as her motto the saying of Lord Acton, that "history, to be above evasion or dispute, must stand on documents, not opinions," the author has done a very careful piece of work worthy of the great Order whose story she tells with interest and charm. She has endeavored to perform two duties: first, to interest her readers in the records and achievements of those honored women and men whose acts combined to make possible the greatest fraternal organization of women; and second, to produce some evidence of the value and useful character of the Institution — that its claims for Charity, Truth and Loving Kindness may be the more readily seen and appreciated.

The work is well written, and informed by a noble spirit, including a sketch of the origin of the order, a biography of its founder, Dr. Morris — one of the best we have seen — the history of the General Grand Chapter, and brief accounts of the Grand Chapters of the States, as well as foreign Grand Chapters. To which are added the Mosaic Book, the Manual of the Eastern Star Degree, the Book of Instructions, and the Rosary of the Eastern Star — making the volume as nearly complete as it could well be. The work is a distinct achievement in Masonic research, a real addition to our literature, and we congratulate the author and the Order, the while we most heartily commend the volume to our Members. The book is neatly printed and well illustrated.

* * *

"YOU IN AMERICA"

As an example of noble writing, as an example of the spirit in which the men of Europe lay aside their dreams for the bitter reality of war, we venture to reproduce the following preface to "The Last Book of Wonder," by Lord Dunsany, of England. The dreams of this book will grow more real as the memory of the Europe of today fades. Our hope is, that out of the "burning house" not only his dreams, but the man himself will be saved to give us more books of beauty, to cast upon us the spell of his charms.

I do not know where I may be when this preface is read. As I write it in August, 1916, I am at Ebrington Barracks, Londonderry, recovering from a slight wound. But it does not greatly matter where I am; my dreams are here before you amongst the following pages; and, writing in a day when life is cheap, dreams seem to me all the dearer, the only things that survive.

Just now the civilization of Europe seems almost to have ceased, and nothing seems to grow in her torn fields but death; yet this is only for a while and dreams will come back again and bloom as of old, all the more radiantly for this terrible ploughing, as the flowers will bloom again where the trenches are and the primroses shelter in shell-holes for many seasons, when weeping Liberty has come home to Flanders.

To some of you in America this may seem an unnecessary and wasteful quarrel, as other people's quarrels often are; but it comes to this, that though we are all killed there will be songs again, but if we were to submit and so survive there could be neither songs nor dreams, nor any joyous free things any more.

And do not regret the lives that are wasted amongst us, or the work that the dead would have done, for war is no accident that man's care could have averted, but is as natural, though not as regular, as the tides; as well regret the things that the tide has washed away, which destroys and cleanses and crumbles, and spares the minutest shells.

And now I will write nothing further about our war, but offer you these books of dreams from Europe as one throws things of value, if only to oneself, at the last moment out of a burning house.

ALBERT PIKE'S LETTERS

By the kindness of Brother J. H. Tatsch, of Spokane, we have a copy of a letter written of Albert Pike, which he found some time ago in Goddspeed's Bookshop, Boston. It breathes a spirit which endeared Pike to those who knew him, showing the personal side in a way not always brought out in our usual conception of the man. Brother Tatsch suggests that we make request for copies of other letters by Pike, believing that such a request might bring to light, from unknown places, much of value to the Craft. We made such a request in one of the earliest issues of *The Builder*, but gladly renew it, hoping that the prophecy may come true. The Society is anxious to collect all possible material about Albert Pike, and we are sure that our Members will assist in every way. The letter referred to was addressed to Brother R.S. Spafford, in 1878, and is as follows:

My dear Friend: I thank you with all my heart. Simple words are the best. I am greatly touched by your kind words; and the poems come to me as a voice from the old State which I left near forty-seven years ago, not unkindly remembering me, now. I live here and rarely go out. Gout has lessened by locomotive powers and my inclination to move. If you can get about "fluently" come and see me. Please present my very kind regards to Mrs. Spafford, and for her and yourself accept all manner of good wishes, and especially that this New Year may prove a happy one for you both, until her latest breath.

Faithfully your friend and brother,
Albert Pike.

* * *

BOOKS RECEIVED

History of the Eastern Star, by Mrs. J. M. Kenaston. Torch Press, Cedar Rapids, Iowa. \$2.50.

Ancient Times, a History of the Early World, by J. H. Breasted. Ginn and Co., New York. \$1.50.

Lincoln's Cooper Institute Speech, by H. B. Rankin.

Valley Forge Revolutionary Encampment Commission, by J. H. Fort.

Installation Address, by B. H. Saxton, Fort Dodge, Iowa.

War the Cross of Nations, by L. Swetenham. Robert Scott, London.

The Gentle Art of Making Enemies, by J. M. Whistler. New Edition. London. \$4.00.

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THE QUESTION BOX

THE TK

Dear Brother: As a member of the Craft, I am enclosing a brief letter herewith sent me by the Indo-American Book Co., which explains itself: "The Harmonic Series, complete in three books, are now out of print, and cannot be furnished. They were discontinued because some of the claims set forth therein have been found to be untrue." Can you please inform me as to which of the claims as set forth in those books have been found to be untrue? Judging by the trend of this letter, it seems plain that thousands of Masonic Brethren have been imposed upon. I shall be under obligations for any information.

— O. B. S., Georgia.

Thereby hangs a long tale, which we were familiar with at the time we were writing replies to the dear Brethren who thought us stupid and unspiritual because we did not accept the claims and theories advanced by the TK. (*The Builder*, Vol. I, pp. 118, 143, 163, 181, 203-206). Fortunately, we could not tell it then, and it would serve no good purpose to recite it now. Let us be kind; it is a case calling less for censure than for the sweetest charity which our Order has taught us to cultivate.

* * *

THE CONTRACT

Some time ago you referred, in an address, to a statement by Edmund Burke which you said had long been the basis of all your political thinking, and that you first heard it used by the late Senator Hoar in a Lincoln-day address in Boston seventeen years ago. I see that you refer to it again in one of the sermons preached in the City Temple last summer, in the volume entitled "An Ambassador," but you do not give it in full — at least I infer that it is only reference. Will you please give it in full and tell me where I may find it in the works of Burke?

— A. W. P., Michigan.

It is indeed a remarkable utterance, and may be found in "Reflections on the French Revolution," by Edmund Burke — Bohn Library Edition of Works of Burke, pp. 368-9 — and is as follows: "Society is indeed a contract. It is to be looked upon with reverence, because it is not a partnership in things subservient only to the gross animal existence of a temporary and perishable nature. It is a partnership in all science; a partnership in all art; a partnership in every virtue, and in all perfection. As the ends of such a partnership cannot be obtained in many generations, it becomes a partnership not only between those who are living, but between those who are living, those who are dead, and those who are to be born. Each contract of each particular state is but a clause in the great primæval contract of eternal society, linking the lower with the higher natures, connecting the visible and invisible world, according to a fixed compact sanctioned by the inviolable oath which holds all physical and all moral natures, each in their appointed place."

* * *

PRAYER-CHAINS

Perhaps half a hundred Brethren have sent us the following prayer, saying that it had been sent to them with the request that they send it on to nine Brother Masons, forming an endless chain of prayer: "O Lord, I implore Thee to bless all mankind. Bring us to Thee, keep us to dwell with Thee." So far, good; it is a brief, wise, and universal prayer, like a line caught from a vast litany of humanity. But the usual form of the letter adds that this prayer was sent by all Masons in the olden time and that all who wrote it would be free from calamity, and that those who did not pass it on would be in danger of misfortune. What a pity to spoil the beauty of it all, breaking the links which Tennyson said bind us as with "chains of gold about the feet of God," with such a bribe and such a threat. It becomes a matter of luck, like wearing a rabbit-foot, or some other token handed down from old time magic — whereas prayer, if it has any meaning, much less worth, is a wish sent Godward, a law of life. Over against this superstitious notion of prayer set the noble words of George Meredith, in "Beauchamp's Career," and write them in your heart:

"He who has the fountain of prayer in him will not complain of hazards. Prayer is the recognition of laws; the soul's exercise and source of strength; its thread of conjunction with them. Prayer for an object is the cajolery of an idol; the resource of superstition. There you misread it. We that fight the living world must have the universal for succor of the truth in it. Cast forth the soul in prayer, you meet the effluence of the outer truth, you join with the creative elements giving breath to you. Who rises from prayer a better man, his prayer is answered."

* * *

MANUAL OF MASONRY

Brother Editor: I am anxious to find a manual of Masonry that will cover each degree and each rite briefly, with such information in general as an ill-read Mason would like to find in a small space, and would be obliged if you will cite me to such a book, if there is any.

— R. P. H., Ohio.

Ye editor has long wished to write such a book as you here ask for, but he fears that it will be among his lost and broken dreams. As it is, the best book of the sort, (so far, is "The Problem of Masonry," by J. G. Gibson, whose articles our readers have enjoyed. It is brief, comprehensive, accurate, and written in a style simple, lucid and singularly happy in its light and easy grace; the late Brother R. F. Gould furnished an introduction, in which he commended the book most highly. It contains a sketch of the history of the order, a chapter on each of the first three degrees, on each of the several rites, with much else which every Mason wishes to know. It is an English book, and will be difficult to obtain for a while, unless copies can be found in this country.

* * *

WAR LITERATURE

Brother Editor: Perhaps you do not know it, but many ladies also read *The Builder*, and I, for one, very much enjoy it. We read it aloud in our family circle. Some of us would like to know what you think are the best books which the war has produced, if that is not too big a question.

— Mrs. I.B. N.

So far there have been over three thousand books published about the war and that is only the beginning. For generations new books will be appearing, and even then the whole story will not be told — nor the half of it. Histories, biographies, memoirs, arguments, state documents, poems, stories — there will be a stream of them swelling into a flood. We can name only a few. The "Ordeal of Battle," by Oliver, is a very strong book, having one of the finest prefaces ever written; while "The War and Humanity" by Beck, shows what an American thinks of the vast tragedy — a brilliant book it is, too. "Mr. Britling Sees it Through," by Wells, is one of the best war stories behind the lines, showing the shock, the awakening, — both spiritual and political — in England; also the enthusiasm of the author over his own discovery of religion. "Mademoiselle Miss," made up of letters from an American girl serving with the rank of Lieutenant in a French Army Hospital at the front, is a book to stir the heart to the depth; and So is "My Home on the Field of Honor," by Huard. One of the most brilliant series of sketches is "Men, Women and Guns," by "Sapper," matched by "A Student in Arms," by Hankey — this last notable for its glimpses of the religious aspects of the war. In poetry there are the songs of Rupert Brooke, Emile Verhaven of Belgium, Oxenham, and not least of all our own Alan Seeger, who fell in Flanders on July 4th, 1916 — nor must we forget Cunliffe's collection of "Poems of the Great War." But, my dear friend, much of the deepest and most heart-gripping literature of war will never find its way into books, as for example the following letter of a French soldier to his wife, found on his body after battle, which you cannot read aloud in your home without choking:

"My Darling:

"I am writing this letter to you in any event — for one never knows. If it reaches you it will be that France will have needed me unto the end. You must not weep, for I swear to you that I shall die happy if I need to give my life to my country.

"My only care is the difficult situation in which you will find yourself — you and the children. How can you provide for yourself and the babies? Happily you can count upon your former profession of teaching and the full assistance of all my people. How I should like to feel sure that some arrangement will be found.

DISCUSSES HIS CHILDREN

"As to the education of the little ones, I am not worried. You will know how to direct it as well as I. I hope that they can create for themselves an independent position as I had hoped to assure for them had I lived. Kiss the dear little ones for their father; tell them that he has gone on a long, very long, journey without ceasing to love them; to think of them and to protect them from afar. I should like to have Cotte at least remember me.

"There will be the baby whom I shall not have known. If it is a boy, my wish is that he should be a doctor, unless after the war France still has need of officers. You will tell him when he is old enough to understand, that his papa gave his life for a great ideal — that of our country reconstructed and strong.

"DON'T BLAME FRANCE"

"I think I have written the most necessary. Good-by, my darling, my love. Promise me not to bear a grudge against France if she has asked my life. Promise me to console papa and mamma and to tell the little girls that their father, however far he may be, will never cease to watch over them and to love them.

"We shall find ourselves one day reunited, I hope, near Him who guides our lives and who has given me, near you and through you, such happiness.

"Poor darling, I have not even time to think long of our love, so great, however, and so strong. Good-by, the long goodbye, true one. Be strong. Your JEAN."

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THE INQUISITION

Brother Newton: You have several times recommended Hastings' Encyclopedia of Religion and Ethics, and I should like to know what you think of the article on the Inquisition. To me it seems a lame and miserable apology for an institution infernal in the extreme. Two sentences made me mad in six spots at once: "The tribunal of the Inquisition conformed to a very high ideal of justice." And this: "Taking everything into consideration we may hold that the institution and workings of the tribunals of the Inquisition were the means of real social progress." Surely that is the limit.

— G. W. L., Nebraska.

We do not remember to have recommended the Encyclopaedia as a whole, but only certain articles in it, notably the one on Freemasonry and the one on Circumambulation; but we do say that it is a great work, notwithstanding the article complained of. It was the policy of the editor, Dr. Hastings, to entrust articles to men of the communions most concerned, and so he selected Dr. Vacandard to write on the Inquisition. The article is indeed an unconvincing defense, but it is interesting as showing — what is repeated in regard to the atrocities of the present war — how far a man will go in defense of a thing which it suits his interest or purpose to explain away. He goes to great length, even making such use of Lea's classical "History of the Inquisition" as to misrepresent him utterly — actually garbling his words and twisting them every kind of way. It is absurd to say that the evils and iniquities of the Inquisition were incidental. They were inherent in the very genius of the institution, and foreknown — as, for example, in the Bull of 1256 which authorized Inquisitors to absolve each other, making a closed corporation of grime. The final verdict of Lea (111, p. 650) is overwhelming, when he says that the Inquisition "introduced a system of jurisprudence which infected the criminal law of the lands subjected to its influence, and rendered the administration of penal justice a cruel mockery for centuries. It furnished the Holy See with a powerful weapon in aid of political aggrandisement, it tempted secular sovereigns to imitate the example, and it prostituted the name of religion to the vilest temporal ends. It stimulated a morbid sensitiveness to doctrinal aberrations until the most trifling dissidence was capable of arousing insane fury and of convulsing Europe from end to end. On the other hand, when atheism became fashionable in high places its thunders were mute." That does not read like a description of a benign institution, or one that made for social progress. We could go into detail? but we are soon to publish an article in three parts describing, in cool fact, first, the organization of that infernal machine; second, its procedure; and third, its attempt to destroy Masonry.

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THE RESURRECTION

Brother Editor: I do not want to seem to "butt in" and raise a row, but do you understand that Masonry teaches the resurrection of the body? I have often thought of this, but never had the nerve to ask anyone. So there now, throw this in the waste basket, if you want to.

— F. J. D., Minnesota.

No; Masonry teaches the immortality of the soul, but it does not specifically affirm or deny the resurrection of the body — leaving that issue for each man to interpret for himself, and so avoid the "row" which our Brother fears. So far as Masonry is concerned, a man may believe in the resurrection of the body or not, according to his faith. Beyond the fundamental truths of faith it does not go — never adventuring into speculative theology which is a breeding place of animosities of many kinds. Personally — and our opinion is worth no more than that of another — we do not believe in the resurrection of the body, as it is, or used to be, held. Nor do we think the Great Light in Masonry teaches it. Certainly St. Paul distinguished very sharply between the "natural body and the spiritual body," and when he spoke of the resurrection of the body he did not mean our body of "flesh and blood," but our personality, the form and spirit of our life. Some of our Brethren may not agree with this, and they are at liberty to disagree and we promise not to start a "rough house."

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CORRESPONDENCE

HEBREW AND EGYPTIAN

If there is any one thing I am thankful for it is to have the brethren give us the titles of the books which have helped them on the way to Life and Light. In the last issue of *The Builder*, Brother Henderson mentions two books I do not have as yet, while in regard to the third I wish you would lose no time in giving us the bill of particulars, plans or specifications to demonstrate that General Pike's volume "Morals and Dogma" needs revision.

As *The Builder* is a "research" publication may I ask the various brethren to cite authorities for some of their more important statements? For instance: Some time ago I read an article, I think it was by Brother Norwood, in which he stated that the whole of Masonry was comprehended in the stars or the science of astronomy. That bothered me for quite a long time for I hardly knew where to look for the information without writing him. Shortly afterward, however, I learned of James Morgan Pryse's *New Testament Restored*. This book gave me a great deal of light on the subject.

In the February issue Brother Norwood has another very interesting article in which he refers to the declarations of early Christian Fathers relative to the pre-existence of Christianity before the advent of the Master. Pryse also refers to the incautious admissions made by early Christian writers regarding this matter but like Brother Norwood does not cite any volume to which we can refer. Fortunately, however, I can appreciate Brother Norwood's statement for the simple reason that within the week I found on the shelves of an old bookshop, an old, badly dilapidated copy of the Rev. Robert Taylor's volume entitled *Taylor's Diegesis*.

In the same article Brother Norwood states "Egypt has left the records of a Masonry where may be found all our signs and most of our words." Here, too, Brother Norwood should cite his authority. If I had not found Gerald Massey's two volumes, "A Book of the Beginnings," I'd simply have to take his "ipse dixit" and let it go until I ran upon the information in some way or other. That, however, is a haphazard way of development of the craft and I hope we can secure the information which will enable us to grow systematically.

Thinking it might be of interest to some of the brethren I will quote some of the information Massey gives us:

"So Mote It Be" — vol. I, page 178: "The Freemasons make use of a formula "So MOTE It Be," in stead of So Be It, or Amen. This MOTE is purely Egyptian, a rare form of May it be. "MET" is to fix, establish. "MET" is an ejaculation. "MET" means to pronounce conservative formulae. (Pierret "Met") "So Mote It Be," is the conservative formula of the Masons, as it was in Egypt of the Priests."

The same author also gives us a number of Egyptian words with their Hebrew equivalents.

I quote:

HEBREW	EGYPTIAN
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mmuth : a corpse, the dead, state of dying, dead.	mum : the dead
msa : a dart.	mash : an archer.
sair : goat.	ser : goat kind of sheep.
mah : the womb.	ma : the mother.
chvt : measuring line.	kept : measured out.
chbq : girdle.	sevekh : noose, tie, girdle.
ab : first ancestor, father.	ap : first ancestor.
bnh : to build, metaphorically to beget.	benn : engender.
chbrth : the coupling point or place of junction; chprth : the mercy seat and place of the two cherubs; in Egyptian arks the two scarabs, afterwards feather-winged.	Khepr-at : house of the two beetles; the crab constellation, as a place of summer solstice, the point of junction; sign of the god Khepr.
nth : a rod, staff, rod that blossomed, branch twig, sceptre, expansion, extension	mata : phallus.
hah : cry of joy.	haa : jubilation.
shrth : supposed black marble marble pavement tessellated in colors.	srut : sculpture, carve, engrave tessellated.
Succoth-benoth : 2 Kings xvii: 30, supposed image of the Pleiades.	Sekht : ark. bennu-t : the Phoenix constellation, emblematic of the resurrection.
qdm : eastward, Eden, image of the eternal and of the beginning.	khetam : shut, a circle, closed seal ring with ankh, image of life.
qvn : a horn, symbol of male power.	Ka : karu and karunata male symbols.
shba(g) : seven — the oath covenant, or binding, is synonymous with number 7 in the Egyptian sefekh as it is in the Hebrew read shevag .	Sefekh : seven.
shphchh : typical maid or handmaiden, one of a family, as if a noun of unity, the concubine or whore.	sefekh : a goddess, consort of Taht. Her name is number 7. Sefekh is a survival of Khefekh or Khepsh , of

	the Seven Stars, who was once the "Living Word," degraded as the Great Harlot.
kd : a symbolical pitcher Ecc. XII :6.	kat : the womb.

The last words "kd" and "kat" are interesting for the reason that the figures of speech in the third degree scripture reading have long been a puzzle to me. This is a clue worth following.

Here is another — relative to the "grasshopper" in the same reading which will be of interest to the Mason who is not satisfied with the superficial explanation so often given of Ecc. XII.

This item is found in Note 84, page 169 of the volume "Talks With Socrates About Life," published by Scribners, 1891. I quote:

"To be closely cropped was regarded in Athens as a badge of slavery, while flowing hair on the other hand was worn only by fops. It was customary for boys to wear their hair long until they were admitted to the rights of citizenship, when it was cut off and dedicated to some deity, generally a river god, although a visit was sometimes made to Delphi for the express object of consecrating this as an offering to Apollo. Upon reaching manhood, they allowed their hair to grow again. Thucydides (1, 6) speaks of the golden clasps, in the shape of grasshoppers, wherewith the Athenians, in the old times before the Persian Wars, were accustomed to fasten their hair in a knot at the top or back of the head."

I think we'll make much greater progress if we can refer to and verify the statements made by other research students instead of having to devote so much of our time to gain the heights they have already scaled. What do you think?

Yours very, sincerely and fraternally, John G. Keplinger, Illinois.

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DAVID VINTON

In the January number of "The Builder" just received I notice the inquiry of Bro. John Whicher of California, in regard to more light on the life of David Vinton, who is reputed to be the author of our hymn, "Solemn Strikes the Funeral Chime." I do not have access to the previous article referred to in the March, 1915, number, and so do not know how much you may know of him. But my mother was a "Vinton" and I have the Vinton Memorial Volume from which I can give you the following information which may be of interest to you, to him and to other Masons:

The said David Vinton was the son of another David Vinton who was a descendent of one JOHN VINTON, from whom all the Vintons in America trace their descent. The DAVID VINTON, of Masonic note, was born in Medford, Mass., Jan. 6, 1774, and married in Providence, R. I., one Mary Atwell who seems to have belonged to a prominent Providence family. Our DAVID, after serving an apprenticeship in Boston at the goldsmith business with David Tyler, went to Providence and established himself in business. He spent his life in Providence, engaged in traffic; not rich but moderately successful. He was quite prominent in the Masonic Fraternity, and compiled and published a volume entitled, "The Masonic Minstrel," (do you know anything about that book?), and according to the book, on a visit to Kentucky on Masonic business, died about 1830 when 56 years of age. His wife was a woman of uncommon powers of mind, and to her energy and force of character we owe the education and training of the children. As early as 1818 Mrs. Vinton wrote a letter to John C. Calhoun, then Secretary of War, and secured the admission of her son David to the Military Academy. Later, two other sons attended the same school. (The rules then were different, and this is the only instance of three brothers attending the same school as Cadets.) After the death of her husband Mrs. Vinton purchased an Estate called "La Plaisance," in Pomfret, Conn., where she died in 1854. Two of the children became prominent clergymen of the Episcopal Church. The Rev. Alexander Hamilton Vinton, D. D., was for many years. He was a graduate of Brown University and other schools, and after practicing medicine for a few years, studied for the ministry and was Rector of St. Paul's church, Boston, Mass. Another son

was Rev. Francis Vinton who also graduated at Brown; was also for awhile at West Point, and for a while served in the Creek War. Afterwards he, too, studied for the ministry and became Rector of several large Episcopal Churches in Providence, and later of Grace Church, Brooklyn, N. Y. In 1849 he was chosen Bishop of the Diocese of Indiana, but declined the honor. In 1854 he lacked only a few votes of election to the Bishopric of New York, at the election that elected the since famous Bishop Potter to the place. Dr. Vinton was chosen later assistant-minister of Trinity Church, New York, having charge of St. Paul's Chapel in that parish. Yet two other sons of DAVID were prominent in Military circles: John Rogers Vinton, who fell at Monterey, and was very prominently commended by Gerl. Scott for his bravery. He was Brevet Major at his death. Another brother was David Hammond Vinton who was also in the Mexican War as Major of Staff and Quartermaster. One of the daughters was married to Lieut. George Green of the U. S. Army. Truly a remarkable family.

Faternally yours,

Rev. C. L. Nye, Independence, Iowa.

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LINCOLN, THE FRATERNALIST

"Many of the best educated men of this and earlier ages never had any extended experience with the schools. A great number of the most religious men, in the history of the progress of Man, have been obliged, for conscience sake, to remain outside the Churches. And we are beginning to learn that one may be a Fraternalist without being a member of a lodge.

In the last analysis it will be found that the Thought, the Life and the Works of the individual count more than the professions. Perhaps no Man of modern times illustrates the principle we present more fully than does Abraham Lincoln. He was educated without the help or the hindrance of the schools. He was intensely religious without being hampered by the limitations of a creed. He was a Fraternalist, "in his heart" without having been brought to the Light through the process of Initiation in the lodge.

Lincoln achieved self-control, self-reliance and self-sacrifice — the three great achievements of Man — without any of the "helps" which most of us need, or think we need, for the accomplishment of The Great Work of fitting ourselves for the building of the Temple — that house not made with hands — a perfect Moral Character.

Few, if any, of the Great Masters of Life have been able to evolve within the hampering limits of the institutions of their times. In almost every case they have either developed without the help of institutions or have been ejected from the institutions within which they have begun their struggles for individual perfection. They have usually discovered that the "aids" of institutions were merely crutches to emphasize the infirmities of those who used them. Strong individuals soon learn that they must "tread the wine press alone."

Before the election of Lincoln to the office of President of the United States, he found himself opposed by all of the institutionalists of his day. Almost all of the products of the institutions of "learning" despised him openly. The ministers of the church were against him almost to a man. In reference to this last he says: "Here are twenty-three ministers of different denominations (in Springfield, Ill.), and all of them are against me but three. Mr. Bateman, I am not a Christian: God knows, I would be one; but I have garefully read the Bible, and I do not so understand this book. These men know that I am for Freedom in the territories, Freedom everywhere as far as the Constitution and; laws will permit; and that my opponents are for slavery. They know this; and yet with this book in their hands in the light of which human bondage cannot live a moment, they are going to vote against me. I do not understand this."

Later in his experience Lincoln understood. He learned, what all must learn, that Principle is one thing and the institution built up around the principle is another.

So must all of us learn that there is no saving power in lodges, as institutions, but that we shall grow and expand only as we understand the Principle and apply to our Life and Conduct that which is taught by the society, the association, the fraterlutu, of our own Free-will and accord."

"Not every one that saith unto me, Lord, Lord, shall enter into the kingdom of heaven; but he that doeth the will of my Father which is in heaven."

Lincoln was born on February 12, 1809, just ninety-two years after the Masonic Fraternity began to teach character building and just ten years before the Odd Fellows in America began to establish night schools for the teaching of character formation instead of character reformation. Fifty-five years after Lincoln was born, the Pythians began to establish their schools in the United States for the purpose of helping to restore reason by the process of fraternal education to a nation that had been captured by policy-controlled men, legal-minded men and money-mad men.

Since February 19, 1864, the fraternal orders have increased in the United States from three to over six hundred and some of these fraternal orders have over a million members. Perhaps over 12,000,000 men in the United States now belong to these various fraternal orders which teach men to shun war, hell and politics.

Oriental Consistory Official Bulletin of Chicago of February 12, 1917, had the above contribution on Fraternity and Lincoln. The word "Fraternalist" is substituted herein for the word "Mason" so that it will apply to all fraternities that are teaching Brotherhood.

Joe Beatty Burt.

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MASONRY AND ITS IDEALS

Dear Brother: "Masonry and Its Ideals" — that is the subject, too vast and too profound to be more than indicated in an article of this kind. The ideals of Masonry are co-extensive with the aspirations of men. Whatever is good, whatever is true, whatever is noble, whatever is manly, this appeals to one who has caught the vision of the spirit of Masonry.

Is it not worth while to pause and consider, and, if possible, to discover what is the one thing, or the several things, the underlying principle, it may be, that has enabled Masonry to survive these thousands of years, not only to survive, but ever to be in the van of the army of progress, civilization and enlightenment; that has caused men, real men, virile men whose names will be remembered and honored as long as history is read or tradition heard to be votaries at her shrine; and that has suffered her to endure more vicious and virulent abuse, calumny and anathemas from ignorance, superstition and blind hatred than any other institution, save one, of which the world's annals tell and yet gloriously triumph?

The fact that it is esoteric has no doubt been conducive to its longevity, though that would not suffice, and certainly could not explain its remarkable influence and power, because other fraternal orders innumerable have had their secret signs, emblems and words and miserably perished. Some have adopted this outward manifestation of Masonry, and others that, which did not avail to resist the dreadful onslaught of time. The soul of Masonry they did not find; its ideals they did not grasp. Whatever stands the attrition and test of time is grounded on the immutable principles of right and truth.

The history of Masonry is a history of the search for light and truth. Every step of the candidate from the time he first seeks admission until he beholds the last solemn scene is strewn with fragrant flowers of truth. It has been sought at times with patient zeal, and again with the feverish and fanatical enthusiasm with which the ancient alchemists pursued the philosopher's stone, the universal solvent and the elixir of life. And to what end? To teach men to know God and to love the good, the pure and the true. Masonry is non-sectarian, but no atheist can become a Mason; it points to the Supreme Being, and teaches the immortality of the soul, and he who profits by the precepts and spirit of Masonry must be a reverent man.

Masonry is, too, a system of morality, the truths of which are veiled in allegory and illustrated by symbols. Her purpose is to develop character, which, like an unseen garment woven about our souls with invisible fingers from materials of imperishable beauty, sparkling with the light of every virtue, guards us from all dangers and permits us to stand unabashed and unawed in the presence of the forms clothed with the spotless robes of

holiness, and to light and show the way of the struggling brother. "Morality is her foundation, Truth and Virtue are her pillars, and Brotherly Love is the High Priest that ministers at her altars." Her basic principle is the Fatherhood of God and the Brotherhood of man.

Elbert Johnson, Miss.

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DETROIT LODGE

My dear Brother: We have in our Lodge Library a pamphlet, the title page of which reads as follows: "Oration delivered at the City of Detroit, to Zion Lodge No. 1 at their request on the anniversary of St. John The Evangelist, December 27th A. L. 5810 by brother Harris Hampden Hickman, published at the request of the Lodge, Pittsburgh, 1811." On the last page of the pamphlet is the following: "The first charter of Zion Lodge was obtained in the year 1764 from an authority in the (then) Colony of New York, and was renewed in the year 1806 by the Grand Lodge of the State of New York."

Officers of Zion Lodge for the year 1811: W. Sylvester Day, Master. Bro. Jonathan Eastman, S.W. Bro. Augustus B. Woodward, J.W. Bro. Philip Lecuyer, Treasurer. Bro. James Abbott, Secretary. Bro. Harris H. Hickman, S.D. Bro. John Anderson, J.D. Bro. Andrew W. Vanalstine, Steward. Bro. George Johnston, Steward. Bro. John Palmer, Tyler

This book came into the possession of our Lodge in 1816. In two recent numbers of *The Builder* there have been statements made that the first lodge of Detroit was founded about 1799.

It seems to me that Zion Lodge should get into communication with the Grand Lodge of New York.

Yours fraternally Wm. M. Simons, Secretary, Hiram Lodge No. 18, Delaware, O.

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THE APRON LECTURE

Written for and suggested by Dr. Walter C. Miller, J. W., of Webb's Lodge No. 166, Augusta, Ga.

The coming years may bring to you success,
The victory laurel wreath may deck your brow,
And you may feel Love's hallowed caress,
And have withal domestic tenderness,
And fortune's god may smile on you as now,
And jewels fit for Eastern potentate
Hang over your ambitious heart, and Fate
May call thee "Prince of Men," or "King of Hearts,"
While Cupid strives to pierce you with his darts.
Nay, even more than these, with coming light
Your feet may press Fame's loftiest dazzling height,
And looking down upon the world below
You may exclaim, "I can not greater grow!"
But, nevermore, O worthy brother mine,
Can innocence and purity combine
With all that's sweet and tender here below
As in this emblem which I now bestow.
'Tis yours to wear throughout a life of Love,
And when your spirit wings to realms above
'Twill with your cold clay rest beneath the sod,
While breeze-kissed flowers whisper of your God.
O, may its stainless, spotless surface be

An emblem of that perfect purity
Distinguished far above all else on earth
And sacred as the virtue of the hearth,
And when at last your naked soul shall stand
Before the throne in yon great temple grand,
O, may it be your portion there to hear
"Well done," and find a host of brothers near
To join the angel choir in glad refrain
Till Northeast corner echoes come again.
Then while the hosts in silent grandeur stand
The Supreme Builder smiling in command
Shall say to you to whom this emblem's given,
"Welcome art thou to all the joys of heaven."
And then shall dawn within your 'lightened soul
The purpose divine that held control -
The full fruition of the Builder's plan -
The Fatherhood of God — The Brotherhood of man.